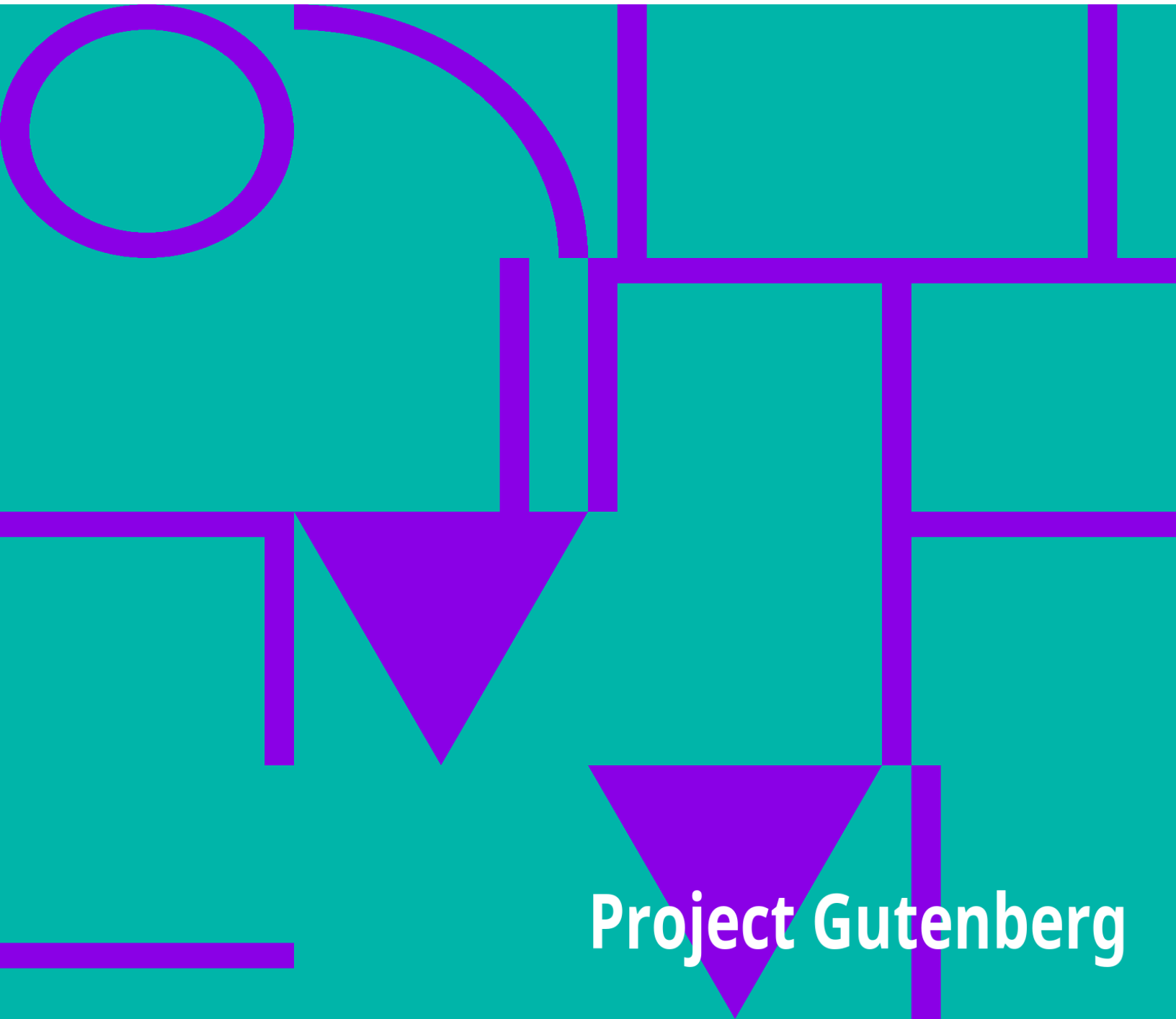


With Hoops of Steel

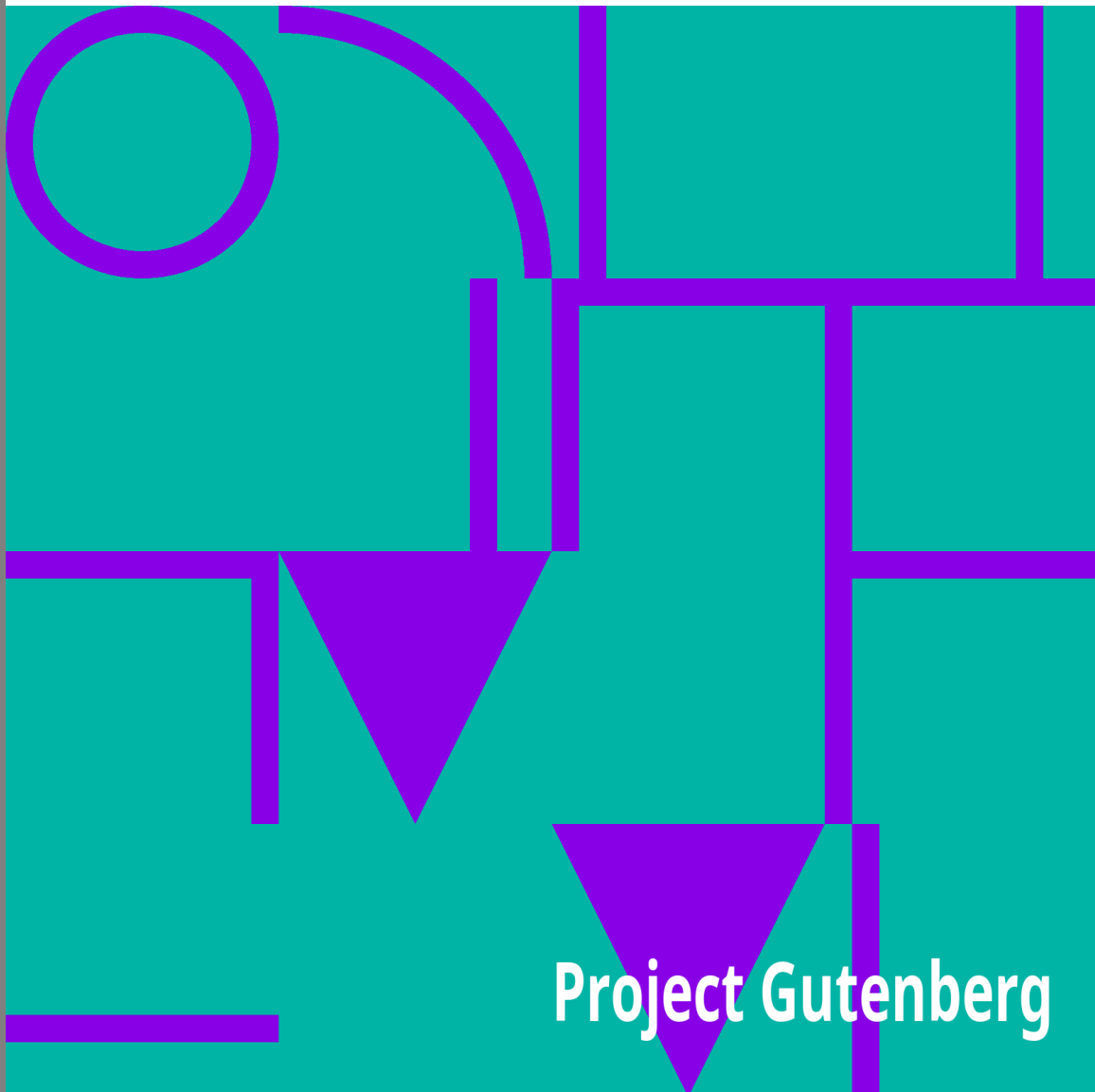
Florence Finch Kelly



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With Hoops of Steel

Florence Finch Kelly



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*** START OF THE PROJECT GUTENBERG EBOOK WITH HOOPS OF
STEEL ***

**WITH
HOOPS OF STEEL**

BY

FLORENCE FINCH KELLY

ILLUSTRATED BY

DAN SMITH

*“The friends thou hast, and their adoption tried,
Grapple them to thy soul with hoops of steel.”*



NEW YORK

GROSSET & DUNLAP

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“ON AND ON THROUGH THE NIGHT THEY GALLOPED, NECK TO NECK AND HEEL TO HEEL.”—p. [63](#)

PUBLISHERS’ NOTE

Owen Wister’s *THE VIRGINIAN* and Florence Finch Kelly’s *WITH HOOPS OF STEEL* were the first of the modern cow-boy novels. Twenty-five years have passed since Mrs. Kelly’s enthralling story first appeared—September, 1900. Most of the novels published then and since, are dead and forgotten. Not so *WITH HOOPS OF STEEL*. It was in continuous demand from its first friendly welcome by the critics until the World War turned public attention to Europe. Even so its vitality persisted, justified this new edition, and seems to warrant the belief that the present generation will find its story interest as vivid and as exciting as did the past, and its value even greater, for it presents an authentic portrait of the old southwestern cattlemen and a fascinating picture of a phase of national development now passed into history.

THE PUBLISHERS.

WITH HOOPS OF STEEL

CHAPTER I

The soft, muffling dusk settled slowly downward from the darkening blue sky and little by little smothered the weird gleam that rose from the gray-white plain. Away toward the east a range of mountains gloomed faintly, rimming the distance. Another towered against the western horizon. Cactus clumps and bunches of mesquite and greasewood blotted the whitely gleaming earth. In and out among these dark spots a man was slowly riding. Now and then he leaned forward and looked keenly through the growing darkness as though searching for some familiar landmark. The horse lagged across the heavy sand, with drooping head and ears. The rider patted its neck with a buckskin gloved hand and spoke cheerily to the tired animal:

“Hot and tired, ain’t you, old fellow? You want your supper and a big drink of water. Well, you oughtn’t to have wandered off the road while I was asleep. Now, I sure reckon we’ve got to bunk on a sand heap to-night and wait till daylight to find out where we are.”

Again he peered through the dusk, and a little ray of light came glimmering from far away toward the right. He knew that it must come from either a ranch house or a camp-fire.

“I don’t remember any ranch as far up toward the White Sands as that seems to be,” he thought. “It must be a camp-fire. We don’t know whose it is, old pard, but we’re goin’ to take chances on it.”

He rode on in silence, the bridle lying loosely on the horse’s neck. All the senses of the plainsman were on the alert, his ears were strained to catch the faintest sound that might come from the direction of the fire, while his eyes alternately swept the darkened plain and fastened themselves on the light. His horse pricked up its ears and gave a loud whinny, which was answered in kind from the direction of the fire. Presently the man shouted a loud “hello,” but there was no reply. “That’s queer!” he thought. “My voice ought to carry that far, sure!” He waited a few moments, listening intently, then, drawing in a deep breath, he sent out another long, loud call that bellowed across the plain and sank into the far darkness. Still there was no reply, but when his

horse neighed again there was instant response. The animal had quickened its pace and with head up and ears bent forward was rapidly lessening the distance between them and the light. The rider could see that it was a camp-fire, and soon could distinguish the flickering of the flames, but, in the illuminated circle around it there was no sign of human beings nor shadow of moving life. He drew rein and again sent a full lunged, far-reaching "hello-o-o" across the distance. The moon, just showing a silver edge above the mountain tops, threw a faint glimmer of light across the plain, making visible the nearest clumps of bushes.

"I guess that would mighty near wake a dead man. If there's anybody alive around that camp they sure heard me this time," he thought, as he looked and listened with straining eyes and ears. But there was no movement about the fire, and another whinny was the only sound that came from its direction. "Mighty queer!" was his inward comment, as his hand sought the revolver which hung by his side, while a light pressure of spurs started his horse forward again. Suddenly there was a swift rustle of the bushes beside him.

"Stop! Throw up your hands!"

A man had sprung from a tall clump of mesquite, and the traveler saw the faint light reflected from a gun barrel pointed straight at his breast. He stopped his horse, but did not respond to the other summons; instead, his fingers closed quickly over the butt of his revolver.

"Throw up your hands, or I'll blow a hole through you!"

"Well, the drop's yours, stranger, so here goes," and the traveler's hands went straight above his head.

"That's better! Now, what do you want here?"

"I saw your camp-fire and I reckoned I might get some water for my horse and some supper for myself."

"Who are you?"

"My name is Thomson Tuttle."

"What are you doing here?"

“Attendin’ to my own affairs and lettin’ other people’s alone.”

“You allowed just now it was my drop.” There was a note of warning in the man’s voice. The traveler hesitated a moment. The click of a trigger quickened his discretion.

“I am on my way from Muletown to Las Plumas, but I lost the road this afternoon and I’ve no idea where I am now. As soon as I saw your camp-fire I came straight for it, for my horse needs water mighty bad.”

There was a moment of silence. The moon was well above the mountains, and in its brightening light the form of the traveler stood out in ridiculous silhouette, his hands held high above his head. He could see plainly the figure of the man and the gun leveled at his breast.

“How long had you been in Muletown?”

“I got in this forenoon, and I guess I stopped an hour. I left about noon.”

“Where from?”

“I started yesterday morning from Millbank. I had been there two days. I went there from Santa Fe. I’ve been in New Mexico about ten years, and I was born—”

“Never mind about that. You can have some supper. Unfasten your belt with your left hand, and be sure to keep your right hand where it is.” Tuttle’s left hand fumbled a moment with his cartridge belt, and revolver and belt dropped to the ground.

“Anything else?”

“No.”

“Put up your hands again until I fix these things.”

Again the traveler lifted his hands above his head, while the other buckled the belt around his own body, which it circled above another already heavy with cartridges and revolver. This latter weapon he drew from his holster, and, coming close beside Tuttle, held it at cock while he passed his hand lightly over the rider’s person.

“I guess you spoke the truth,” he said, returning the pistol to his belt, and again leveling the shot-gun. “Now, Mr. Thomson Tuttle, you’ve been a gentleman so far, and as long as you keep up that play you’ll be all right. You won’t be hurt if you don’t make any breaks. Take down your hands and we’ll go into camp and have some supper.”

Tuttle held his hands motionless in the air a moment longer as he said:

“Any objection to my askin’ who you are?”

“You said yourself that the drop’s mine.”

“All right, pard.”

As they neared the camp, the man called to him to dismount, walk forward and sit down in a wagon seat near the fire. Tuttle could see the wagon from which the seat had been taken, a small, light affair, standing back in the shadow, and near it two horses feeding. Another man stood a little way off with leveled gun, apparently relieving guard for the first. He was in the shade of a tall mesquite bush, but Tuttle could see that he was of medium height and build and was dressed in a Mexican suit of closely fitting, braided trousers and jacket. The wide brim of his Mexican sombrero was pulled low over his eyes, so that only the lower part of his face could be seen, and that dimly. But it was evidently dark-skinned, and the mouth was shaded by a black mustache. “Some Greaser scalawag,” was Tuttle’s immediate decision. The other unsaddled, watered and fed the horse, and then returned to the fire and began making coffee.

“We haven’t much to eat,” he said apologetically, “but you’re welcome to a share of whatever we’ve got.”

Soon he put beside Tuttle a supper of hot coffee, fried bacon, canned baked beans, and a loaf of bread. Then he sat on the ground near by and talked cheerfully while Tuttle ate, now and then urging him, in hospitable fashion, to eat heartily. But all the time he held his revolver in his hand, and the other man stood in the shadow with his Winchester ready to fire at a second’s notice. Tuttle and his captor talked on in a friendly way for half an hour after supper, while the other still kept guard from the shadow of the mesquite bush. At last the first man got up leisurely, took a flask from his pocket and handed it to Tuttle with the request, “Drink hearty, pard.” With a little

flourish and a kindly “Here’s luck,” he took a long pull himself, then, telling Tuttle he could use his saddle for a pillow and lie down near the fire, he picked up his shot-gun and sat down on the wagon seat and the man who had stood beside the mesquite walked away into the bushes.

“Now,” said the man with the shot-gun, “you can sleep just as sound as a baby in its cradle, for I’m going to watch here and see that the coyotes don’t bite you. You’ll be safe,” and the note of warning filled his voice again, “as long as you don’t make any breaks.”

“I’m not a fool,” responded Tuttle, stretching out on the ground and resting his head against the saddle. Whenever he awoke during the night he saw his guard keeping alert watch, gun in hand and revolver by his side. Just before daybreak the other man returned and held guard while the first watered and saddled Tuttle’s horse and prepared breakfast. The captive was dimly conscious of the change, and then slept again until he was awakened at sunrise.

“I had a mind to wake you by shooting a button off your coat, just to see if that would do the business,” said his host, smiling pleasantly, as he handed Tuttle the flask which had done duty the night before. “I reckon you’re about the soundest sleeper I ever saw.”

By daylight Tuttle saw that the man was well along in middle life and that his face was smoothly shaven. Tuttle himself looked to be less than thirty years old. He was tall, broad of shoulder and big of girth, with large hands and great, round, well-muscled wrists that told of arms like limbs of oak and of legs like iron pillars.

The young man ate his breakfast alone, his captor standing near by and talking pleasantly with him, but holding alertly a shot-gun at half cock, while crouching behind a bunch of greasewood was the Mexican with a drawn pistol in his hands. As Tuttle mounted, the tall man called out sternly:

“Hold up your hands!”

Tuttle hesitated for a moment, looking at him in surprise.

“I mean it!” and the trigger of his shot-gun clicked to full cock. Tuttle’s hands went up quickly. The man came beside him and buckled on his

cartridge belt, with the revolver in its holster. Then he backed to his own horse, mounted it, and leveled his shot-gun at Tuttle's breast.

"Now you can take down your hands and go," he said. "But remember that I'm ridin' behind you, ready to bang a hole through your head if you make the first motion toward your gun, or anything happens that ain't straight. I'll put you on the road to Plumas, and then I want you to make tracks, for we've got no time to waste."

As they rode away, Tuttle could hear the hoof beats of two horses and knew that both men were following. After a few miles the tall man called to Tuttle to halt and said, pointing to a road that wound a white line across the distance:

"That's your road over there, and you can go on, now alone. But I want you to remember that I'm here watchin' you, with two loads of buckshot and six of lead, and every one of them is goin' plumb through you if you ain't square. You've been a gentleman so far, and dead game, and I'm proud to 've met you, Mr. Thomson Tuttle. If it ever comes my way to treat you whiter than I have this time, I'll be glad to do it. Good-bye, sir."

As Tuttle rode away, he saw, from the corner of his eye, the tall man, shot-gun in hand, sitting motionless on his horse, and the other, watchful, holding a rifle, a little distance behind him. The young man put spurs to his horse and rode several miles with his eyes steadily in front of him, discreetly holding curiosity in check. He did not look back until he reached the highroad, and then he saw his two captors galloping across the plain toward their camp. He took out his pistol and examined it carefully. It was just as he had left it the night before.

"They might have put every bullet into my head," was his mental comment, "but they didn't, and they might have emptied 'em all out and left me in a box. But they didn't do that, either. I guess they played as square as they could."

CHAPTER II

“Me, Tom Tuttle, holding up my hands while a fellow takes my gun! What will Emerson Mead say to that! Well, I reckon he wouldn’t have done different, for Emerson’s got good judgment.”

Such was Tuttle’s soliloquy as he mounted the gradual ascent of the range that bounded the plain on the west. Alternately he chuckled and slapped his thigh in appreciation of the joke on himself, and exploded an indignant oath as mortified pride asserted itself.

After a time he espied a black dot in a halo of dust coming down the mountain side. He considered it a moment and then decided, “It’s a man on horseback.” He took out his revolver and, holding it in his hand, made another scrutiny of the approaching figure.

“Je-e-mima! If he don’t ride like Nick Ellhorn! I shouldn’t wonder if it’s Nick!”

Presently the figure flourished a black sombrero and down the dusty road came a yell which began full-lunged and ended in a screeching “whee-ee-e.” Tuttle answered with a loud “hello,” and both men put spurs to their horses and were soon shaking hands.

“What’s the news at Plumas and out at Emerson’s?” asked Tuttle.

“Oh, things are fairly quiet at Plumas just now, but you never know when hell is going to break loose there. You’re just in time, though, for Emerson’s up to his ears in fight. Goin’ to stay?”

“I will if Emerson needs me. I’ve been with Marshal Black over to Millbank after some counterfeiterers from Colorado. He took ’em back, and, as he didn’t need me, I thought I’d just ride over here and see if you-all mightn’t be in trouble and need some help.”

“Ain’t after anybody, then?”

“No. But, say, Nick! I struck the darndest outfit last night! I got regularly held up!”

“What! You! Held up?”

“Yes, I did. Sat with my hands in the air like a fool tenderfoot while a man took my gun and cross-questioned me like a lawyer.”

Ellhorn rolled and rocked on his horse with laughter. When he could speak he demanded the whole story, which Tuttle told him in detail.

“What was their lay?” he asked.

“I’ll give it up. I’ve thought of everything I could, and there ain’t a blamed thing that’ll explain it.”

“Tommy, I reckon they need to be arrested about as bad as two men ever needed anything. Come along and we’ll corral ’em.”

“We’ve got no warrants, Nick!”

“Haven’t you got any in your pockets?”

“Yes, but not for them.”

“Tommy, you’re a deputy marshal, and that outfit took you at a disadvantage and misused you shameful. You’re an officer of the law, Tommy, and it was as bad as contempt of court! It’s our duty to arrest ’em for it and bring ’em in.”

“But we can’t do it without warrants, Nick.”

Ellhorn took some papers from his pocket and looked them over. “I’m lookin’ for a Mexican named Antonio Diaz,” he said. “Here’s the warrant for his arrest. Violation of the Edmunds act. You say one of these men was a Mexican. I think likely he’s Antonio. We’ll go and find out. Never mind tellin’ me how he looked,” he went on hastily, as Tuttle began to speak. “It’s likely he’s Antonio, and it’s my duty to go and find out. Of course, they’ll resist arrest, and then they’ll get their punishment for the way they treated you.”

Tuttle looked disapproving. "Nick, what do you think would be Emerson's judgment?"

"Emerson ain't here, and I'm acting on my own judgment, which is to go after this outfit and pepper 'em full of holes if they're sassy."

Tuttle shook his head. "I don't like the scheme."

"Well, it ain't your scheme, and you don't have to like it. I think we ought to go after these men right now. They've done something they ought to be arrested for. And, anyway, they ought to be punished for holdin' you up."

"Nick, I'd go with you in a minute, you know I would, if we had a warrant for 'em, or if I had any reason to think that the Mexican is the man you want. You don't think so yourself. They might have blowed my brains out any minute, and nobody would ever have known a thing about it. But they didn't and I reckon they treated me as white as they could and look after their own interests. It's my judgment, and I think it would be Emerson's, too, that it would be a mean trick for me to come up behind 'em and begin shootin', just for holdin' me up, when they might have treated me a whole heap worse. I won't go with you, Nick."

"Sure, then, and I'll go alone," Ellhorn responded cheerfully.

"They'll be two to one."

"Not very long, I reckon."

"Better wait a few days, Nick, till you can go after 'em legally."

"They'll be out of the country by that time. I'm under no obligations to be kind to 'em, and I don't mean to be. I'm goin' to camp on their trail right now." He dismounted and cinched up his saddle and inspected his revolver.

Tuttle regarded him dubiously and in silence until he remounted. Then he said, slowly: "Well, my judgment's against it, Nick, but I won't see you go off alone into any such scrape as this is bound to be. I'll go with you, but I won't do any shootin'—unless you need me mighty bad."

They galloped back to the scene of Tuttle's captivity the night before. They found the trail of the wagon, and followed it rapidly toward the north. Soon

they saw a glaring white line against the horizon. “There’s the White Sands,” said Ellhorn. “We ought to catch ’em before they get there.” A few moments later they came within sight of the wagon. Tuttle and Ellhorn spurred their horses to a quicker pace and when they were within hailing distance Ellhorn shouted to its two occupants to surrender. Their only response was to put whip to their horses, and Ellhorn sent a pistol ball whizzing past them. They replied in kind and a quick fusillade began. Tuttle rode silently beside his companion, not even drawing his six-shooter from its holster. A bullet bit into the rim of his sombrero, and he grumbled a big oath under his breath. Another nicked the ear of Ellhorn’s horse. In the wagon, the Mexican was crouched in the bottom, shooting from behind the seat, apparently taking careful aim. The tall man stood up, lashing the horses furiously. He turned, holding the reins in one hand, and with the other discharged another volley, necessarily somewhat at random. But it came near doing good execution, for one bullet went through Tuttle’s sleeve and another singed the shoulder of Ellhorn’s coat.

“Whee-ee-e!” shouted Ellhorn. “Sure, and I’ve winged him! I’ve hit the big one in the leg!”

The next moment his pistol dropped to the ground. A bullet from the Mexican’s Winchester had plowed through his right arm. Tuttle, who had not even put hand to his revolver, drew rein beside him while the other men stopped shooting and devoted all their energies to getting away as quickly as possible. Tuttle tore strips from his shirt with which to bind Ellhorn’s wound, and persuaded him to return to Las Plumas, where he could have the services of a physician.

“I guess I’ll have to, Tom,” he said regretfully. “I’d like to go after ’em and finish this job up right now. I got one into the big one, but that’s nothin’ to what they deserve. Lord! but they need to be peppered full of holes! But I can’t fight now, and you won’t, so it’s no use.”

As they rode back Tuttle said: “You say that Emerson’s up to his ears in fight? What’s it about? That cattle business?”

“Yes, that’s it. You know he’s been havin’ trouble for some time with Colonel Whittaker and the Fillmore Cattle Company, and I reckon hell’s a-popping over there by this time. Colonel Whittaker—he’s manager of the

company now, and one of the stock-holders—wants to corral the whole blamed country for his range. Well, there's Emerson Mead has had his range for the last five years, and Willet still longer, and McAlvin and Brewer, they've been there a long time, too, and they all say they've got more right to the range than the company has, because they own the water holes, and they don't propose to be crowded out by no corporation. But I reckon they'll have to fight for their rights if they get 'em."

"How's Whittaker off for men? Got anybody that can shoot?"

"You bet he has. Young Will Whittaker is mighty near as good a shot as Emerson is. He does most of the managing at their ranch headquarters, while the old man works politics over in Plumas."

"Have they had any fights yet?"

"I haven't seen Emerson for a month. He was over in Plumas then and he said he expected to have trouble and wanted me to come out."

"You don't mean to say that the Fillmore outfit is really tryin' to drive Emerson and the rest of them out of the Fernandez mountains?"

"Well, they want to get control of the whole range for about a hundred miles, if they can. And there's some politics mixed up in it, of course. Old Whittaker is a Republican, you know, with a lot of political schemes he wants to put through. Of course Emerson and the others are Democrats and stand in with the party, and the Colonel thinks he'll be doing the Republicans a big service if he can break them up. Emerson expected the trouble to come to a head over the spring round-up, for Colonel Whittaker said that Emerson and McAlvin and the rest of them shouldn't round-up with him."

"Well, Emerson won't stand any such nonsense as that!"

"I guess Whittaker and his cow-boys will have to flirt gravel mighty fast if they keep him from it!"

CHAPTER III

Unkempt, dusty and dirty, straggling its narrow length for a mile along the irrigating ditch, the village of Las Plumas lay sleepily quiet under the hot, white, brooding spring sunshine. A few trim-looking places cuddled their yards and gardens close against the life-giving channel, whose green banks, covered with vegetation and shaded by trees, bisected the town. Elsewhere, naked adobe walls flanked the dusty streets and from their stark surfaces gave back the sunshine in a blinding glare. Here and there an umbrella tree, or a locust, made a welcome splotch of green and shade down the length of the barren, dusty streets, or the tiny yard of a house set back a little from the adobe sidewalk held a few clumps of shrubs and flowers. A half dozen cross streets sprang up among the scattered adobe houses that dotted the edge of the plain rising to the Hermosa mountains on the east, crossed the bridges of the irrigating ditch, and ended in the one business street, which trailed a few closely built blocks along the western edge of the town, near the railroad and its depot. On one of these cross streets a yard and orchard of goodly size extended from the ditch a block or more to the east and surrounded a flat-roofed, square adobe house. A wide veranda, its white pillars covered with rose and honeysuckle vines, ran around the house, and a square of lawn, with shrubs and flowers and trees, filled the yard. A little boy, perhaps four years old, with flaxen curls floating about his neck, played in the shade of a fig tree beside the veranda.

Down the dusty road which wound a white strip over the pale, gray-green upland and merged into the street which passed this house, a man came riding at a leisurely lope. He was tall and broad shouldered, straight in the back and trim in the girth, and he sat his horse with the easy, unconscious grace of a man who has lived much in the saddle. His black sombrero shaded a dark-skinned face, tanned to a rosy brown. An unshaven stubble of beard darkened his cheeks and a soft, drooping, black mustache covered his lip. A constant smile seemed lurking in the corners of his mouth and in his brown eyes. But his face was square, firm-jawed and resolute, and had in it the look of a man accustomed to meet men on their own ground and to ask favors of none.

He checked his horse to a slow trot and, without turning his head, searched with a sidewise glance the yard and veranda of the adobe house. When he saw a flutter of pink inside a window he stopped at the gate and called to the child:

“Hello, little Bye-Bye! Don’t you want a ride?”

The child ran to the gate with a shout of welcome.

“Better ask your sister if you can come.”

“Daisy! Daisy! May I go?” the boy called, running back to the porch. A young woman in a pale pink muslin gown came out and led the child to the gate.

“Good morning, Miss Delarue. May I take little Bye-Bye for a ride?”

The roses in her cheeks deepened as she looked up and saw the admiration in his eyes.

“Certainly, Mr. Mead. It is very kind of you, I’m sure. But please don’t take him far.”

The boy, shouting with laughter, was lifted to the saddle in front of the rider, and the girl, smiling in sympathy with his delight, leaned against the gate watching them. She was tall, with the broad shoulders, deep bosom, slender waist, and clear, blooming complexion that tell of English nativity. Her eyes were blue, the soft, dark blue of the cornflower, and her face, a long, thin oval, was gentle and sweet in expression. Her light brown hair, which shone with an elusive glimmer of gold in the sunlight, was gathered on her neck in a loose, rippling mass. She took the child from Mead’s hands when they returned, and her eyes went from the boy’s laughing face to the smiling one of the man. Then the roses deepened again and she looked away. The man said nothing and they both waited, silent and smiling, watching the antics of the child. Presently she turned to him again:

“Are you—do you expect to stay long in town, Mr. Mead?”

“I think—I—do not know. It will depend on business.”

They were silent again, and after a moment he gravely said, "Good morning," and rode away. He frowned and bit his lip, muttered a mild oath under his breath, and then put spurs to his horse and rode on a gallop up the main street. The girl glanced after him, still blushing and smiling. Then a frown wrinkled her forehead and she said, "Well!" under her breath with such emphasis that the child looked up at her curiously. At that, she laughed with a little touch of embarrassment in her manner, and, taking the boy in her arms, ran into the house.

In the busiest part of the main street, a flat-roofed adobe house with a narrow, covered porch forming the sidewalk in front, flanked the street for half a block. Offices and shops of various kinds filled its many rooms, and the open door of a saloon showed a cool and pleasant interior. In front of this saloon Emerson Mead halted as Tuttle and Ellhorn came out of a lawyer's office beside it. Ellhorn explained his non-appearance at the ranch and told the story of Tuttle's capture, over which they made jokes at his expense.

"The doctor says this is only a flesh wound," said Nick, touching his sling-swung arm and speaking in answer to Mead's question, "and that I can use my gun again in another week."

"I'd have been out right away, Emerson," said Tuttle, "but Nick had to stay here for the doctor to take care of his arm, and I didn't dare leave him alone. He was bound he'd go on a spree, and he couldn't shoot, and the Lord knows what trouble he'd have got into. Maybe I haven't had a time of it! I'd rather have had a fight with the Fillmore outfit every day!"

"Yes," growled Ellhorn, "he put me to bed one night and sat on my neck till I went to sleep. And yesterday morning he planted himself against the door and held his six-shooter on me till I promised I wouldn't drink all day. Lord! the week's been long enough for the resurrection!"

"How's things at the ranch, Emerson?" asked Tuttle. "Have you had any fightin' yet with the Fillmore outfit?"

"No, not real fightin'. I caught 'em puttin' a branded steer into one of my herds, so they could say I stole it, about a week ago, and Will Whittaker and I exchanged compliments over the affair."

As he spoke a tall, gray-haired man, riding a sweating horse at a hard gallop, rushed up the street and dismounted on the opposite side. His thin, pale face bore a look of angry excitement.

“What’s the matter with Colonel Whittaker?” exclaimed Ellhorn. “He looks as if he’d heard the devil behind him!”

Whittaker had spoken to a man in the doorway of an office bearing the sign, “Fillmore Cattle Company,” and already several others had gathered around the two and all were listening eagerly.

“Something’s happened, boys,” said Mead, as they watched the group across the way. “They told me in Muletown that Colonel Whittaker had passed through there the day before on his way to the ranch.”

Just then Miss Delarue came up the sidewalk leading the flaxen-haired child, and as she passed the three men she smiled a pleasant recognition to Ellhorn and Mead.

“Who’s she?” Tuttle asked, gazing after her admiringly.

“Why, Frenchy Delarue’s daughter!” Ellhorn answered. “Didn’t you ever see her before? That’s queer. You remember Delarue, the Frenchman who has the store up the street a-ways and loves to hear himself talk so well. He came here two years ago with a sick wife. She was an Englishwoman and the girl looks just like her. She died in a little while and the daughter has taken care of the kid ever since as if she was its mother. She’s a fine girl.”

“She’s mighty fine lookin’, anyway,” Tuttle declared.

“Well, boys,” said Mead, “I’m goin’ to my room to slick up. If you find out what the excitement’s about, come over and tell me.”

“I reckon if Emerson was rich he’d be a dude,” said Ellhorn, looking meditatively after Mead. “He keeps a room and his best duds here all the time, and the first thing he does after he strikes town is to go and put on a bald-faced shirt and a long-tailed coat. He don’t even stop to take a drink first.”

The crowd across the street had increased, and the men who composed it were talking in low, excited tones. As Emerson Mead walked away many

turned to look at him, and significant glances were sent over the way to Ellhorn and Tuttle, who still stood on the sidewalk. They stopped a man who was hurrying across the street and asked him what the excitement was about.

“Will Whittaker has disappeared. His father thinks he’s been killed. He left the ranch a week ago to come to town and nobody’s seen him since. I’m goin’ after Sheriff Daniels.”

“Gee-ee! Moses!” Ellhorn exclaimed, as his eyes, full of amazed inquiry, sought Tuttle’s. But amazed inquiry of like sort was all that flashed back at him from Tuttle’s mild blue orbs, and after an instant’s pause he went on: “Whew! won’t hell’s horns be a-tootin’ this afternoon! Confound this arm! Say, Tom, you-all go and tell Emerson about it and I’ll skate around and find out what’s goin’ on.”

Tuttle hesitated. “You won’t go to drinkin’?”

“Not this time, Tommy! There’ll be excitement enough here in another two hours without me making any a-purpose, and don’t you forget it! Things are a-goin’ to be too serious for me to soak any of my wits in whisky just now!”

“No, Nick,” said Tuttle, looking at the other’s helpless arm, “I reckon I better go along with you-all, if there’s likely to be any trouble.”

It was as Ellhorn predicted. Before night the town was buzzing with excitement. Wild rumors flew from tongue to tongue, and with every flight took new shape. Shops and offices were deserted and men gathered in knots on the sidewalk, discussing the quarrel between the cattlemen and Emerson Mead’s possible connection with young Whittaker’s disappearance, and predicting many and varied tragic results. All those who congregated on one side of the street scouted the idea that the young man had been murdered, indignantly denied the possibility of Emerson Mead’s connection with his disappearance, insisted that it was all a trick of the Republicans to throw discredit on the Democrats, and declared that Will Whittaker would show up again in a few days just as much alive as anybody. Nearly all the men who had offices or stores in the long adobe building were Democrats, and the saloon it contained, called the Palmleaf, was the place where the men of that party congregated when any unusual excitement arose. On the other side of the street were the offices of the Fillmore Cattle Company, the White Horse saloon, and Delarue’s store, all gathering places for the Republican clans.

There it was declared that undoubtedly Emerson Mead had killed young Whittaker, and had come into town to kill the father, too, that other outrages against the Republicans would probably follow, and that the thing ought to be stopped at once. But each party kept to its own side of the street, and each watched the other as a bulldog about to spring watches its antagonist.

A man, whose manner and well-groomed appearance betokened city residence, mingled with the groups about the cattle company's office, listening with interest to everything that was said. He himself did not often speak, but when he did every one listened with attention. He was of medium stature, of compact, wiry build, had large eyes of a pale, brilliant gray, and a thin face with prominent features. He joined Miss Delarue when she came down the street on her way home.

"You get up very sudden storms in your quiet town, Miss Delarue," he said. "An hour ago Las Plumas was as sleepy and decorous—and dead—as the graveyard on the hill over yonder. But a man rides up and says ten words and, br-r-r, the whole population is agog and ready to spring at one another's throats."

"Yes," she assented, "when I went up town a little while ago everything was as quiet as usual. What is the excitement all about?"

"Why, they are saying that Emerson Mead has killed Will Whittaker!"

"What!"

Her face suddenly went white, and she stared at him with wide, horrified eyes.

"It may not be true."

"Oh, I don't believe it can be true!"

He swept her face with a sudden, curious glance.

"Nobody seems to know, certainly, that Will is dead. He and Mead had a quarrel a week ago and Mead threatened to kill him. Will left the ranch that day to come to town, and he hasn't been seen since. Of course, he may have changed his mind and gone off to some other part of the range."

“Of course,” she assented eagerly. “At this time of year he is very likely to have been needed somewhere else on the range. I don’t believe he has—he is dead.”

“There is much feeling about it on the street. And it seems to be quite as much a matter of politics as a personal quarrel.”

“Oh, everything is politics here, Mr. Wellesly!” said the girl. “If the people all over the United States take as much interest in politics as they do here, I don’t see how they have found time to build railroads and cities.”

Wellesly laughed. “They don’t take it the same way, Miss Delarue. Las Plumas politics is a thing apart and of its own kind. Except in party names, it has no connection with the politics of the states. Here it is merely a case of ‘follow your leader,’ of personal loyalty to some man who has run, or who expects to run, for office. Being so personal, of course, it is more virulent.”

“Do you think there is likely to be any violence this time?” she asked, with a tremor of anxiety in her voice.

“There is violent talk already. I heard more than one man say that Mead ought to be lynched”—he was watching her face as he talked—“and his two friends, Ellhorn and Tuttle, along with him. There is a great deal of feeling against Mead, and the general idea seems to be that he is an inveterate cattle thief, and that the country would be better off without him.”

She turned an indignant face and flashing eyes upon him and opened her mouth to reply. Then she blushed a little, caught her breath, and asked him if he thought her father was in any danger. When Wellesly left her he said to himself: “That’s an unusually fine girl. Handsome, too. Or she would be if she didn’t wear English shoes and walk like an elephant. She seems to be interested in Emerson Mead, but old Delarue certainly wouldn’t permit anything serious. He’s too ardently on our side, or thinks he is, the old French windbag, though he’s never even been naturalized. I’ll see her again while I’m here and find out if there is anything between them. It might have some consequence for us if there is. I wish the Colonel hadn’t got the company so mixed up in their political quarrels. But there may be an advantage in it, after all, for I guess it will furnish the easiest way of getting rid of those one-horse outfits. The old man’s got the upper hand now, and as long as he keeps it we’ll be all right.”

Marguerite Delarue stood on her veranda looking after Wellesly as he walked away. "What a nice looking man he is," ran her thoughts. "He is interesting to talk with, too. The people here may be just as good as he is, but—well, at least, he isn't tongue-tied."

Ellhorn and Tuttle met Emerson Mead as he stepped from his room, freshly shaven and clad in black frock coat and vest, gray trousers and newly polished shoes. As he listened to Ellhorn's account of the sudden storm that was already shaking the little town from end to end, a yellow light flashed in his brown eyes and there came into them an intent, defiant look, the look of battle, like that in the eyes of a captured eagle. He went back into the room, buckled on a full cartridge belt, and transferred his revolver from his waistband to its usual holster.

"Now, boys," said Mead, "we'll go back up town and have a drink, and I'll talk with Judge Harlin about this matter."

The three friends walked leisurely up Main street, talking quietly together, and apparently unconscious of any unusual disturbance. Except that their eyes were restless and alert and that Mead's glowed with the yellow light and the defiant look, they showed no sign of the excitement they felt. They were all three of nearly the same age, they were all Texan born and bred, and for many years had been the closest of friends. Each one stood six feet and some inches in his stockings, and their great stature, broad shoulders, deep chests and sinewy figures marked them for notice, even in the southwest, the land of tall, well-muscled men.

Thomson Tuttle was the tallest and by far the heaviest of the three—a great, blond giant, with the round, frank, sincere face of an overgrown school-boy, glowing with the red tan which fair skins take on in the hot, dry air of the southwest. From this red expanse a pair of serious blue eyes looked out, while a short, tawny mustache covered his lip, and auburn hair curled in close rings over his head. It was never necessary for Thomson Tuttle to do any swearing, for the colors that dwelt in his face kept up a constant profanity. There was a strain of German blood in him—his mother had come from Germany in her childhood—which showed in his impassive countenance and in the open, serious directness of his mental habit.

Ellhorn was the handsome one of the three friends. He was straight, slender, long of limb, clean of muscle, and remarkably quick and graceful in his movements. His regular features were clear-cut and his dancing eyes were bright and black and keen. His sweeping black mustache curled up at the ends in a wide curve that shaded a dimple in each cheek. He was as proud of the fact that both of his maternal grandparents had been born in Ireland as he was that he himself was a native of Texas. The vigorous Celtic strain, that in the clash of nationalities can always hold its own against any blood with which it mingles, had dowered him well with Celtic characteristics. A trace of the brogue still lingered in his speech, along with the slurred r's and the soft drawl of his southern tongue, while his spontaneous rebellion under restraint and his brilliant disregard of the consequences of his behavior were as truly Celtic as was the honey-sweet persuasiveness with which he could convince his friends that whatever he had done had been exactly right and the only thing possible. He was all Irish that wasn't Texan, and all Texan that wasn't Irish, and everybody he knew he either loved or hated, and was ready, according to his feeling, either to do anything for, or to "do up" on a moment's notice.

Emerson Mead's stronger and more sober intelligence harked back to New England, whence his mother had come in her bridal days, and although the Puritan characteristics showed less plainly in his nature than she wished, having been much warmed and mellowed by their transplantation to southern soil, no Puritan of them all could have outdone this tall Texan in dogged adherence to what he believed to be his rights. His mother had kept faith with the land of her nativity, and as part of her worship from afar at the shrine of its great sage had given his name to her only son. By virtue of his stronger character and better poised intelligence, Emerson Mead had always been the leader of the three friends. Tuttle yielded unquestioning obedience to "Emerson's judgment," and, if Emerson were not present, to what he imagined that judgment would be. Ellhorn, in whose nature dwelt the instinctive rebellion of the Irish blood, was less loyal in this respect, but not a whit behind in the whole-heartedness with which he threw himself into his friend's service. For years they had taken share and share alike in one another's needs, and whenever one was in trouble the other two rushed to his help. Together they had gone through the usual routine of southwestern occupations. They had prospected together, had herded cattle together, together they had battled their way through sudden quarrels and fore-planned

gunfights, and together, with official warrants in their pockets, had helped to keep the peace in riotous frontier towns. Some years before, they had gone into partnership in the cattle business, on the ranch which Mead still owned. But Tuttle and Ellhorn had tired of it, had sold their interest to Mead, and ever since, as deputy United States marshals, had upheld the arm of the law in its contests with the "bad men" of the frontier. All three men were known far and wide for the marvelous quickness and accuracy with which they could handle their guns.

Main street was lined, in the vicinity of the two saloons, with knots of men who talked in excited, repressed tones, as though they feared to be overheard. These knots constantly broke up and reformed as men hurried from one to another, but there was no crossing the street. Each party kept to its own side, the Democrats on the east and the Republicans on the west, and each constantly watched the other. The women had all disappeared from Main street, gone scuttling home like fowls, rushing to cover from a hailstorm, and the whole town was in a state of strained expectancy, waiting for the battle to begin. When the three friends came walking leisurely down the street, there were nods and meaning glances on the Republican side and excited whispers of "There they are!" "They are ready for work!" "That's what they are all here together for!" "We'd better get ready for them!"

On the Democratic side of the street it was declared that this was a scheme of the cattle company to get Mead away from his ranch, so they could do as they liked at the round-up, and that the Republicans had planned the whole story of Will Whittaker's disappearance in order that they might arrest Mead, kill him if he resisted, and inaugurate a general slaughter of the Democrats if they should come to his help.

The three friends went at once to the office of Judge Harlin, who was Mead's lawyer, and Harlin and Mead had a long conference in private, while Ellhorn and Tuttle talked on the sidewalk with the changing groups of men. Beyond the surprised inquiry which each had darted into the eyes of the other when they were first told of Whittaker's disappearance, neither Tom Tuttle nor Nick Ellhorn had said a word to each other, or exchanged a meaning look, as to the possibility of Mead's guilt. They did not know whether or not he had killed the missing man, and, except as a matter of curiosity, they did not particularly care. If he had, they knew that either of them would have done the same thing in his place. Whatever he might have done, he was their

friend and in trouble, and they would have put on belts and guns and rushed to his assistance, even though they had known they would be dropped in their tracks beside him.

CHAPTER IV

Pierre Delarue, “Frenchy” Delarue, as all Las Plumas called him, had been born and brought up in the south of France, whence he had wandered to many parts of the earth. He had married and lived for years in England, and, finally, he had come to Las Plumas with his invalid wife in the hope that its healing airs might restore her to health. But she had died in a few months, and he, perhaps because the flooding sunshine and the brilliant skies of the southwestern plains reminded him of the home of his youth, stayed on and on, went into business, and became one of the prominent citizens of the town. The leisurely, let-things-drift spirit of the region, which could be so easily stirred to violent storms and ardent enthusiasms, was near akin to his own volatile nature. Nobody in the town could be more quickly and more thoroughly convinced by first appearances than he, and nobody held opinions more volubly and more aggressively, so that from the start he had assumed a leading place in the discussion of all public matters. Although he had not taken even the first step toward naturalization, he was active in the constantly sizzling political life of the town, and along all that side of Main street there was none more staunchly and violently Republican than he.

He believed, and voiced his belief loudly and aggressively, that Will Whittaker had been slain and that swift punishment should be visited upon his murderer. The Gascogne nimbleness of tongue which enabled him to express his conviction with volubility made him, all through that excited day, the constant center of an assenting crowd. As night came on, the groups of men all gathered about his store. By that time every one among them was convinced that Emerson Mead had killed young Whittaker. At first this theory had been a mere guess, a hazard of probability. But it had been asserted and repeated and insisted upon so many times during the day that every man on the west side of the street had finally adopted it as his own original opinion, and by nightfall refused to entertain any other explanation. Inside the store, Delarue was expounding the necessity of swift retribution. Men crowded in and packed the room to its last capacity. They made Delarue get up on the counter, so that all could hear what he said. Those outside struggled and pushed about the door. A man on the sidewalk cried out:

“We can’t hear! Let’s go to the hall and give everybody a chance!”

The crowd gave instant response: “To the hall, so everybody can hear! Let’s go to the hall!”

Those within took up the cry and drowned the speaker’s voice with cries of, “Let’s go to the hall! Let’s go to the hall!”

Delarue stopped in his harangue and shouted: “Yes, my friends, let us go to the hall and make this a public meeting of indignation against the cowardly murder that has been done!”

Out they rushed, and with Delarue in front, gesticulating and calling to them to come on, they hurried to the public hall. A man quickly mounted the platform and nominated Pierre Delarue for presiding officer of the meeting. The crowd responded with yells of, “Yes, yes!” “Of course!” “Go on, Frenchy!” “Hurrah for Frenchy!” There were many Mexicans among them, and as Delarue stepped to his place, there was a call for an interpreter and a young half-Mexican walked to the platform. Some one was sent to hold guard at the door, with orders to admit “no turbulent persons.” Then Delarue began an impassioned speech, pausing after each sentence for it to be translated into Spanish. With each flaming outburst the “hurrahs” of the Americans were mingled with the “vivas” of the Mexicans.

The interpreter leaned far over the edge of the platform, swaying and gesticulating as though the speech were his own, his face glowing with excitement. The crowd yelled madly, while with flushed face, streaming forehead, and heaving chest the speaker went on, each fiery sentiment increasing his conviction in the righteousness of his cause, and the cries of approval urging him to still more inflamed denunciation and outright accusal.

Those who had gathered in Judge Harlin’s office and in and about the Palmleaf saloon were closely watching developments. Two or three men who mingled with the Republicans, and were apparently in sympathy with them, came in occasionally by way of back doors, and reported all that was being said and done. Emerson Mead talked in a brief aside with one of these men, and presently he stepped out alone into the deserted street. The other man hastened to the hall, took the place of the one on guard, giving him the much-wished-for opportunity to go inside, and when, hands in pockets,

Mead strolled up, his confederate quickly admitted him, and he stood unobserved in the semi-darkness at the back of the room. A single small lamp on the speaker's table and one bracketed against the wall on each side made a half circle of dusky light about the platform, showing a mass of eager, excited faces with gleaming eyes, while it left the rear part of the bare room in shadow.

"I demand justice," cried the speaker, "upon the murderer, the assassin of poor Will Whittaker! And I say to you, friends and neighbors, that unless you now, at once, mete out justice upon that murderer's head, there is no surety that justice will be done. To-day you have seen him walking defiantly about the streets, armed to the teeth, ready to plunge his hands still deeper into the blood of innocent men. Your own lives may yet pay the penalty if you do not stop his lawless career! Such a measure as he measures to others it is right that you should measure to him!"

There was an instant of solemn, breathless hush as the speaker leaned forward, shaking an uplifted finger at the audience. Then some one on a front seat cried out, "Emerson Mead! He ought to be lynched!" The cry was a firebrand thrown into a powder box. The whole mass of men broke into a yell: "Emerson Mead! Lynch him! Lynch the murderer!" The speaker stood with uplifted hands, demanding further attention, but the crowd was beyond his control. Moved by one impulse, it had sprung to its feet, clamoring and yelling, "A rope! A rope! for Emerson Mead!"

Then, like men pierced through with sudden death, they halted in mid-gesture, with shout half uttered, and stood staring, struck dumb with amazement. For Emerson Mead, a half smile on his face, his hat pushed back from his forehead, was walking quietly across the platform. The speaker, turning to follow the staring eyes of his audience, saw him just as he put out his hand and said, "How do you do, Mr. Delarue!" The orator's jaw fell, his hands dropped nervelessly beside him, and involuntarily he jumped backward, as if to shelter himself behind the table. The interpreter leaped to the floor and crouched against the platform. All over the hall hands went to revolver butts in waistband, hip-pocket and holster. The dim light shone back from the barrels of a score of weapons already drawn. Mead faced the audience, the half smile still lingering about his mouth.

"I understand," he said quietly, "that you want to lynch me. Well, I'm here!"

A sudden, bellowing voice roared through the room: "Stop in your tracks, you cowards!"

Judge Harlin, having guessed where Mead had gone, had just plunged through the door and was shouldering his way up the aisle, his robust, broad-backed frame, big head and bull neck dominating the crowd. Behind him came Tom Tuttle and Nick Ellhorn, their guns in their hands. A young Mexican, who was with them, leaped to the back of a seat, and on light toes raced by Harlin's side from seat to seat, interpreting into Spanish as he ran.

"A nice lot you are!" shouted Judge Harlin. "A nice lot to prate about law and order, and ready to do murder yourselves! That is what you are preparing to do! Murder! As cold-blooded a murder as ever man did!"

He mounted the platform and faced Delarue, while Tuttle and Ellhorn, with revolvers drawn, stood beside Mead.

"Better put your guns away, boys," whispered Mead.

"Not much!" Ellhorn replied. "We can't draw as quick as you can!"

"Let's go for 'em!" pleaded Tuttle in a whisper. "You and Nick and me can down half of 'em before they know what's happened, and the other half before they could shoot."

"No, Tommy; it wouldn't do."

"It would be the best thing that could happen to the town," he grumbled back. "Say, Emerson, we'd better go for 'em before they make a rush."

"No, no, Tom; better not shoot. I tell you it wouldn't do!"

"Well, if you say so, as long as they don't begin it. But they shan't touch you while there's a cartridge left in my belt."

The crowd, arrested and controlled, first by the spectacle of Mead's audacity and then by the compelling roar of Judge Harlin's denunciation, listened quietly, still subdued by its amazement, while Harlin went on, standing beside Delarue and shaking at him an admonishing finger.

"Pierre Delarue, I am astonished that a good citizen like you should be here inciting to murder! You have not one jot of evidence that Emerson Mead

killed Will Whittaker! You do not even know that Whittaker is dead!”

The crowd shuffled and muttered angrily at this defiance of its conviction. It was returning to its former frame of mind, and was beginning to feel incensed at the irruption into the meeting.

“We do know it!” a man in the front row flamed out, his face working with the violent back-rush of recent passion. “And we know Mead did it!” another one yelled. Murmurs of “Lynch him! Lynch him!” quickly followed. Tuttle and Ellhorn were white with suppressed rage, and their eyes were wide and blazing. Tuttle was nervously fingering his trigger guard. “Then bring your evidence into a court of law and let unprejudiced men judge its value,” Judge Harlin roared back. “Accusers who have the right on their side are not afraid to face the law!”

Mead caught the angry eye of a brutal-faced man directly in front of him, and saw that the man’s revolver was at full cock and his hand on the trigger. In the flash that went from eye to eye he saw with surety what would happen in another moment. And he knew what the sequence of one shot would be.

“Neighbors!” he shouted. “Jim Halliday has a warrant for my arrest. I protest that it has been illegally issued, because there is no evidence upon which it can be based. But to avoid any further trouble, here and now, I will submit to having it served. I will not be disarmed, and I warn you that any attempt of that sort will make trouble. But I give you my word, for both myself and my friends, that otherwise there shall be no disturbance.”

Judge Harlin shot at Mead a surprised look, hesitated an instant, and then nodded approval. Tuttle and Ellhorn looked at him in open-mouthed, open-eyed amazement for a moment, then dropped their pistols to their holsters and stepped back. A sudden hush fell over the crowd, which waited expectantly, no one moving.

“I think Jim Halliday is here,” Mead said quietly. “He has my word. He can come and take me and there shall be no trouble, if he don’t try to take my gun.”

A stout, red-haired young man worked his way forward through the crowded aisle to the platform and took a paper from his pocket. Mead glanced at it, said “All right,” and the two walked away together. The crowd in the hall

quickly poured out after them. Tuttle, his lips white and trembling, looked after Mead's retreating figure and his huge chest began to heave and his big blue eyes to fill with tears. He turned to Ellhorn, his voice choking with sobs:

"Emerson Mead goin' off to jail with Jim Halliday! Nick, why didn't he let us shoot? He needn't have been arrested! Here was a good chance to clean up more'n half his enemies, and he wouldn't let us do it!" He looked at Ellhorn in angry, regretful grief, and the tears dropped over his tanned cheeks. "Say, Nick," he went on, lowering his voice to a hoarse whisper, "you-all don't think he was afraid, do you?"

"Sure, and I don't," Ellhorn replied promptly. "I reckon Emerson Mead never was afraid of anybody or anything."

"Well, I'm glad you don't," Tom replied, his voice still shaking with sobs. "I couldn't help thinkin' when he kept tellin' us not to shoot, that maybe he was afraid, with all those guns in front and only us four against 'em, and I said to myself, 'Good Lord, have I been runnin' alongside a coward all these years!' And I was sure sick for a minute. But I guess it was just his judgment that there'd better not be any shootin' just now."

Ellhorn looked over the empty hall with one eye shut. "Well, I reckon there would have been a heap o' dead folks in this room by now if we-all had turned loose."

"About as many as we-all had cartridges," and Tuttle glanced at their well-filled belts. He was silent a moment, while he wiped his eyes and blew his nose, and his sobs gradually ceased. "No, Emerson couldn't have been afraid. Though I sure thought for a minute I'd have to quit him. But you're right, Nick. Emerson ain't afraid of anything, livin' or dead. It was just his judgment. And Emerson's got powerful good judgment, too. I ought to have known better than to think anything else. But, Lord! I did hate to see that measly crowd sneakin' out of here alive!"

CHAPTER V

The next morning there were only faint traces of the excitement of the day before. Men began to cross Main street from one side to the other, at first with cautious, apprehensive glances that swept the hostile territory and penetrated open doors and windows, but, as the day wore quietly on, with increasing confidence and unconcern. At noon Colonel Whittaker and Pierre Delarue walked over to the Palmleaf saloon, and while they clinked the ice in their mint juleps, good-natured and smiling, they leaned on the bar and chatted with the two or three Democrats who were in the room. An hour or so later, Judge Harlin strolled across to the White Horse saloon and called for a whisky straight. Then all Las Plumas knew that the war was over and went about its usual affairs as amiably as if the day before had never been.

At the breakfast table Pierre Delarue told his daughter about the mass-meeting, its balked determination to lynch Emerson Mead, and Mead's subsequent arrest.

"But, Father, how could they be so sure that Mr. Mead killed him? Did they have any evidence?"

"Ah," he replied, shrugging his shoulders protestingly, "you women never understand such things! Because Mead is a handsome young man and looks good-natured, you think he can't possibly be a murderer. But it is well known that he had killed more than one man before he murdered poor Whittaker, and he is notorious as one of the worst cattle thieves in the southwest."

"Father! These are dreadful things! Do you know them to be true?"

She looked across the table at him with horror in her face and eyes. Delarue considered her indulgently.

"Everybody knows them to be true. There is plenty of proof."

"Then why hasn't he been arrested and tried and—punished?"

“That is what many are saying now—why has he not been punished long before this? People have been lenient with him for a long time, but he has at last reached the end of his career. They are now determined that a stop shall be put to his crimes and that he shall suffer the punishment he has so long deserved.”

Marguerite was accustomed to having the remnants of her father’s down-town speeches served up at home, and her cooler judgment had learned not to put much dependence upon them. She gave a perfunctory assent and made another effort to reach facts.

“Yes, Father, it is certainly very dreadful that such things should be allowed to go unpunished. But did any one see him stealing the Fillmore Company’s cattle, and do they really know that he killed Mr. Whittaker?”

“The proof is as clear as any unprejudiced person need want. Will Whittaker and some of his men caught Mead in the very act of driving into his own herd a steer plainly marked with their brand. They stopped him, and he foolishly tried to crawl out of his predicament by accusing them of driving the branded steer into his herd. A most absurd story! They had a quarrel, and Mead threatened to kill Whittaker. Immediately after that Will disappeared and has not been seen since. Evidently, he has been killed, and there is no one except Mead, who had threatened to kill him, who could possibly have had any motive for murdering him. The evidence may be circumstantial, but it is conclusive. Besides, if Mead had not known that the case against him was complete, he would not have given himself up last night as he did. And if he had not done so he would certainly have been lynched. The people were thoroughly aroused, and it was impossible to control their indignation.”

A little shiver ran through Marguerite’s frame and she turned away, looking much disturbed. Her father patted her head indulgently. “There, there, my dear child, these things do not concern you in the least. Don’t trouble yourself about public affairs.”

He hurried down-town and she sat alone, a little frown on her forehead and her mouth drooping, as she thought: “I can not believe he is a thief and a murderer, without more evidence than this. And still—how can it be that so many men are so sure of his guilt that—and he is in jail now—Oh, a thief and a murderer!”

She hurried from the room calling, "Paul! Paul!" The boy ran in from the veranda and she caught him in her arms and pressed him to her bosom, kissing him over and over again and calling him her darling, her treasure, and all the dear names with which womankind voices its love, and at last, sobbing, buried her face in his flaxen curls. The child put his arms about her head and patted her cheek and said, "Poor sister! Poor Daisy!" until, frightened by her emotion, he too began to cry. The necessity of soothing and comforting him gave her that distraction which has been woman's chief comfort since woman first had trouble. But her face was still sad and anxious when Wellesly appeared on the veranda in the late afternoon.

Albert Wellesly, who lived in Denver, disliked very much the occasional visits to Las Plumas which his financial interests made necessary. He was still on the under side of thirty, but his business associates declared that he possessed a shrewdness and a capacity that would have done credit to a man of twice his years. Possibly people not infatuated with commercial success might have said that his ability was nothing more than an unscrupulous determination to grab everything in sight. Whatever it was, it had made him remarkably successful. The saying was common among those who knew him that everything he touched turned to gold. They also prophesied that in twenty years he would be one of the financial giants of the country. Las Plumas bored him to desperation, but on this occasion he thought it would be the part of wisdom to stay longer than had been his first intention. As long as the town was feverish with excitement he found it endurable. But when the dullness of peace settled over the streets again he walked about listlessly, wondering how he could manage to get through the day. At last he thought of Miss Delarue.

"That's so!" he inwardly exclaimed. "I can go and find out if the English girl is in love with this handsome big fellow who has been stealing my cattle. I suppose it will be necessary for me to drink a cup of tea, but she will amuse me for an hour."

Marguerite Delarue's friends always thought of her and spoke of her as English, notwithstanding her French paternity. For her appearance and her temperament she had inherited from her English mother, who had given her also English training. Miss Delarue laughed at the forlorn dejection of Wellesly's face and figure.

“My face is a jovial mask,” he gravely told her. “You should see the melancholy gloom that shrouds my mind.”

“I hope nothing has happened,” she exclaimed, with sudden alarm.

“That’s just the trouble, Miss Delarue. It’s because nothing does happen here, and I have to endure the aching void, that I am filled with such melancholy.”

“Surely there was enough excitement yesterday and last night.”

“Ah, yesterday! That was something like! But it was yesterday, and to-day the deadly dullness is enough to turn the blood in one’s veins to mud!”

“Then everything is quiet down-town? There is no more danger of trouble?”

“There is no danger of anything, except that every blessed person in the place may lie down in his tracks and fall into a hundred years’ sleep. I assure you, Miss Delarue, the town is as peaceful as the plain out yonder, and birds in their little nests are not nearly so quiet as are the valiant warriors of Las Plumas.”

“Oh, that is good! I am very glad, on my father’s account. He is so aggressive in his opinions that whenever there is any excitement of this kind I am anxious about him until the trouble is over.” She hesitated a moment, her lips trembling on the verge of further speech, and he waited for her to go on. “Mr. Wellesly,” she said, a note of uncertainty sounding in her voice, “you are not prejudiced by the political feeling which colors people’s opinions here. I wish you would tell me what you think about this matter. Do you believe Mr. Mead has killed Will Whittaker?”

Wellesly noted her earnest expression and the intentness of her voice and pose, and he decided at once that this was not mere curiosity. He paused a moment, looking thoughtful. His keen, brilliant eyes were bent on her face.

“It’s a hard question you’ve asked me, Miss Delarue. One does not like to decide against a man in such serious accusations unless he can be sure. The evidence against Emerson Mead, in this murder case, is all circumstantial, it is true, but, at least to me, it is strongly convincing.” His eyes were almost closed, only a strip of brilliant gray light showing between their lids, but he was watching her narrowly. “We know that he has been stealing cattle from

us. We have found many bearing our brand among his herds. Our men have even caught him driving them into his own bands. In fact, there is no doubt about this matter. Emerson Mead is a cattle thief of the wildest sort.” He paused a moment, noting the horrified expression on her downcast face. But she did not speak, and he went on:

“About this murder, if murder it is, of course nobody knows anything with certainty. But in my judgment there is only one tenable theory of Will Whittaker’s disappearance, and that is, that he was murdered and his body hidden. Mead is the only enemy he was known to have, and Mead had threatened to kill him. The evidence, while, of course, not conclusive, is shockingly bad for Mead.”

She looked away, toward the Hermosa mountains looming sharp and jagged in the fierce afternoon sunlight, and he saw her lips tremble. Then, as if her will caught and held them, the movements ceased with a little inrush of breath. He lowered his voice and made it very kindly and sympathetic as he leaned toward her and went on:

“For your sake, I am very sorry for all this if Mr. Mead is a friend of yours. He is a very taking young fellow, with his handsome face and good-natured smile. But, also for your sake,” and his voice went down almost to a murmur, “I hope he is not a friend.”

There were tears in her eyes and distress, perplexity and pain in her face as she turned impulsively toward him, as if grasping at his sympathy.

“I have it!” he thought. “She is in love with Mead! Now we’ll find out how far it has gone. Papa Frenchy couldn’t have known of it.”

“I can not say he is a friend,” she said slowly. “He is scarcely an acquaintance. I have not met him, I think, more than half a dozen times, and only a few minutes each time. But he has always been so kind to my little brother that I find it hard to believe a man so gentle and thoughtful with a child could be so—criminal.”

“Ah! Love at first sight, probably not reciprocated!” was Wellesly’s mental comment. “I guess it is a case in which it would be proper to offer consolation, and watch the effect.” Gradually he led the conversation away from this painful topic and talked with her about other places in which she

had lived. Then they drifted to more personal matters, to theories upon life and duty, and he spoke with the warmest admiration of what he called the ideal principles by which she guided her life and declared that they would be impossible to a man, unless he had the good fortune to be stimulated and helped by some noble woman who realized them in her own life. It was admiration of the most delicate, impersonal sort, seemingly directed not to the girl herself, but to the girl she had wished and tried to be. It set Marguerite Delarue's heart a-flutter with pleasure. No one had ever given her such open and such delicate admiration, and she was too unsophisticated to conceal her delight. He smiled to himself at her evident pleasure in his words, and, with much the same feeling with which he might have cuddled a purring, affectionate kitten, he went a step farther and made love—a very shadowy, intangible sort of love, in a very indefinite sort of way.

Albert Wellesly usually made love to whatever woman happened to be at hand, if he had nothing else to do, or if he thought it would advance his interests. With men he was keen and forceful, studying them shrewdly, seeing quickly their weak points, turning these to his own advantage, and helping himself over their heads by every means he could grasp. In his dealings and relations with women he aimed at the same masterful result, but while with men this might be attained in many ways, with women he held there was but one way, and that was to make love to them.

Marguerite bade him good-by with the same deep pain still in her heart, but pleased in spite of herself. His words had been laden heavily with the honey of admiration of a sort that to her serious nature was most pleasing, while about them had hovered the faintest, most elusive aroma of love. In her thought, she went over their long conversation again and again, and dwelt on all that he had said with constant delight. For to women admiration is always pleasing, even though they may know it to be insincere. To young women it is a wine that makes them feel themselves rulers of the earth, and to their elders it is a cordial which makes them forget their years.

Marguerite Delarue had had little experience with either love or admiration. Her heart had been virgin ground when her face had first flushed under the look in Emerson Mead's brown eyes. And the first words of love to fall upon her ears had been the uncertain ones of Wellesly that afternoon. She conned them over to herself, saying that of course they meant only that he was a

high-minded gentleman who admired high ideals. She repeated all that he had said on the subject of Mead's guilt.

"He seemed fair and unprejudiced," she thought, "but I can not believe it without certain proof. I know more about Mr. Mead than some of those who think they know so much, for I have seen him with my little Bye-Bye, and until they can prove what they say I shall believe him just as good as he seems to be."

So she locked up in her heart her belief in Mead's innocence, saying nothing about the matter to any one, till after a little that belief came to be like a secret treasure, hidden away from all other eyes, but in her own thought held most dear.

CHAPTER VI

The jail at Las Plumas was a spreading, one-story adobe building, with a large, high-walled court at the back. This wall was also of adobe, some ten feet high and three feet thick, without an opening, and crowned with a luxuriant growth of prickly-pear cactus. At certain hours of the day the prisoners were allowed the freedom of this court, while a guard kept on them an occasional eye. Behind the court, and coming up to its very walls, was a small tract of land planted with vegetables, flowers and fruit trees and worked by an old Mexican who lived alone in a tiny hut at the farther end of the enclosure.

For two days after the night of Emerson Mead's arrest his friends tried every device known to the law to get him free of the prison walls. But each attempt was cleverly met and defeated by the opposing party, and he was still behind the bars. Then Nick Ellhorn and Thomson Tuttle held a conference, and agreed that Mead must get back to his ranch at once in order to save his affairs from further injury.

"That's what they are doin' this thing for," said Nick, "so they can get a good chance to steal all his cattle. And what they don't steal they'll scatter over the plains till it will be more than they're worth to get 'em together again. They think they can just everlastingly do him up by keepin' him in jail for a month."

Tuttle broke out with an indignant oath. "It's the meanest, low-downest, dirtiest, measliest trick they've ever tried to do, and that's sayin' a whole heap! But they'll find out they've got more to buck against than they're a-lookin' for now!"

"You bet they will! They've got to travel mighty fast if they keep up with this procession! Talk about measly tricks! Tom, that Fillmore outfit's the biggest cattle thief in the southwest. It's just plum' ridiculous to hear them talk about Emerson stealin' their cattle! Why, if he'd stayed up nights to steal from them he couldn't have got even for what they've taken from him."

They talked over the plan Ellhorn had proposed and when it was all arranged Tuttle asked, "Shall we tell the judge?"

"Tell nothin' to nobody!" Nick exclaimed. "The judge will find it out soon enough, and if we don't tell him he won't bother us with advice to give it up. We've got some horse sense, Tommy, and I reckon we-all can run this here excursion without help from any darn fool lawyer in the territory. If they'd left it to us in the first place, we'd have had Emerson at home long before this."

"I guess we-all can play our part of this game if Emerson can play his."

"Don't you worry about Emerson. He's ready to ride the devil through hell to get back to his round-up."

The next morning Nick Ellhorn hunted up the Mexican who worked the garden behind the jail and talked through the enclosure with the old man, who was crippled and half blind. Ellhorn talked with him about the garden and finally said he would like to eat some onions. The Mexican pulled a bunch of young green ones for him, and he sat down on a bench under a peach tree near the wall of the jail-court to eat them. He sent the Mexican back to his hut for some salt, and at once began whistling loudly the air of "Bonnie Dundee." Presently he broke into the words of the song and woke the echoes round about, as he and Emerson Mead had done on many a night around the camp-fire on the range:

"Come fill up my cup, come fill up my can,
Come saddle my horse and call out my men."

There he stopped and waited, and in a moment a baritone voice on the other side of the wall took up the song:

"Come ope the west port and let us go free
To follow the bonnets of Bonnie Dundee!"

Ellhorn went on singing as he threw one of his onions, then another, over the wall. One of them came sailing back and fell beside the peach tree. Then he took a slip of folded paper from his pocket, tied it to another onion and sent it over the cactus-crowned adobe. The Mexican returned with the salt and they sat down together under the tree, chatting sociably. Presently Mead's

voice came floating out from behind the wall in the stirring first lines of the old Scotch ballad:

“To the lords of convention, ’twas Claverhouse
spoke:

‘If there are heads to be crowned, there are heads to
be broke!’”

Nick chuckled, winked at the old Mexican, and hurried off to find Tuttle.

That evening, soon after the full darkness of night had mantled the earth, Nick Ellhorn and Tommy Tuttle rode toward the jail, leading an extra horse. Ellhorn gave Tuttle a lariat.

“You’d better manage this part,” he said in a low tone. “My arm’s not strong enough yet to be depended on in such ticklish matters. I tried it to-day with my gun, and it’s mighty near as steady as ever for shooting, but I won’t risk it on this.”

They rode into the Mexican’s garden and Ellhorn stood with the extra horse under the drooping branches of the peach tree. They listened and heard the sound of a soft whistling in the *patio*, as if some one were idly walking to and fro.

“That’s him!” Ellhorn whispered excitedly. “That’s what I told him to be doing at just this time! He’s listening for us!” Ellhorn whistled softly several bars of the same air, which were at once repeated from within. Tuttle rode beside the wall and threw over it the end of his lariat. He waited until the whistling ceased, and then, winding the rope around the pommel, he struck home the spurs and the horse leaped forward, straining to the work. It was a trained cow-pony, Mead’s own favorite “cutting-out” horse, and it answered with perfect will and knowledge the urging of Tuttle’s spurs. With a soft “f-s-s-t” the rope wore over the top of the wall and Mead’s tall form stood dimly outlined behind the battlement of cactus. He untied the rope from his waist, threw it to the ground, and with foot and fist thrust aside the bristling, sharp-spined masses, dropped over the outer edge, hung at full length by his hands for an instant, and landed in the soft earth at the bottom.

They heard his name called inside the *patio*. It was the guard, who had just missed him. As they quickly mounted there came over the wall the sound of

hurrying feet and the rapid conference of excited voices. Mead shot his revolver into the air and Ellhorn, lifting his voice to its loudest and fullest, sang:

“Come ope the west port and let us go free
To follow the bonnets of Bonnie Dundee!”

“Whoo-oo-oo-ee-ee!”

Spur met with flank and the three horses bounded forward, over the fence of the Mexican’s garden, and up the street at a breakneck gallop. They clattered across the *acequia* bridge and past Delarue’s place, where Mead, eagerly sweeping the house with a sidewise glance, had a brief glimpse of a brightly lighted room. Instantly his memory went back, as it had done a thousand times, to that day, more than a year before, when he had stood at the door of that room and had first seen Marguerite Delarue. As they galloped up the street the vision of the room and of the girl came vividly back—the inviting, homelike room, with its easy-chairs, its pictures and shaded lamps, its tables with their tidy litter of papers and fancy work, its pillowed lounges, and deep cushioned window-seats, and the tall, anxious-eyed girl with the sick child in her arms, held close to her breast. Unconsciously he turned his head, possessed for the moment by the vision, and looked back at the dark mass of the house and trees, lighted by the one gleaming window.

“Think they’ll follow us?” asked Tuttle, noticing the movement.

“Who? Oh! No, I guess not.”

Beyond the town, in the edge of the rising plain, they drew rein and listened for the sound of pursuing hoof-beats. Facing their horses roundabout, they bent forward, their hands hollowed behind their ears. Out of the darkness, where it was gemmed by the lights of the town, came the sound of galloping horses.

“They’re after us!” cried Nick. “Three of ’em!”

Mead took off his sombrero and as his left hand sent it twirling through the air, a vague, black shape in the darkness, his right drew his revolver from its holster and three quick, sharp explosions flashed through the night. A pressure of his heels, and he was leaning far over from his darting horse and

snatching the hat as it barely touched the gray earth. He held it up toward the sky and in the starlight three bullet holes showed dimly through the crown, inside the space a silver dollar could cover. Ellhorn waved his hat and sent his peculiar “Whoo-oo-ee-e!” back through the darkness toward the town. They listened again and heard the pursuing horsemen clattering over the *acequia* bridge and into the street through which they had come.

“I reckon we could keep ahead of ’em if we wanted to,” said Mead, “but we’ll make the pass, and then if they are still following we’ll teach them some manners.”

Ellhorn shouted out again his yell of defiance and clicked the trigger of his gun to follow it with a challenging volley of bullets, but Mead stopped him with a cautioning word that they might need all their cartridges.

They spurred their horses forward again and galloped over the rolling foothills, neck to neck and heel to heel. The cool, dry night air streamed into their faces, braced their nerves and filled their hearts with exultation. Behind them they could hear the hoof-beats of their pursuers, now gaining on them and again falling behind. On and on they went, sometimes sending back a defiant yell, but for the most part riding silently. They reached the steep grade leading to the mountain pass and eased their horses, letting them walk slowly up the incline. But the others took it at a furious pace, and presently, at the entrance to the pass, a voice shouted Mead’s name and ordered him to halt. Mead, laughing aloud, sent a pistol ball whizzing back through the darkness. Ellhorn and Tuttle followed his example, and their three pursuers discharged a volley in concert. The fugitives put spurs to their horses, and, turning in their saddles, fired rapidly back at the vague, moving shapes they could barely see in the darkness. Ellhorn heard an angry oath and guessed that somebody had been injured. The bullets whistled past their ears, and now and then they heard the dull ping of lead against the rocky walls of the narrow pass. Their horses had kept their wind through the slow walk up the hill and sprang forward with fresh, willing speed. But the others had been exhausted by the fierce gallop up the steep ascent, and could not hold the pace that Mead and his friends set for them. Slowly the officers fell back, until they were so far in the rear that they ceased shooting. Mead, Tuttle and Ellhorn put away their revolvers and galloped on in silence for some distance before they stopped to listen. Far back in the darkness they could hear the faint footfalls of the three horses.

“They blowed their horses so bad comin’ up the hill,” said Mead, “that they’ll never catch up with us again. I reckon they won’t try now. They’ll stay in Muletown to-night and go on to the Fillmore ranch to-morrow.”

“If they don’t turn round and go back,” said Ellhorn. “I don’t believe they’ll want to try this thing on at the ranch.”

“We’ll sure be ready for ’em if they show up there,” said Tuttle, the grim note of battle in his voice.

Ellhorn laughed joyously. “I guess we’re just goin’ to everlastingly get even with that Fillmore outfit!”

“Well, it will keep us busy, but we’ll do our best,” Mead cheerfully assented.

They galloped down the long eastern declivity of the mountain, stopping once at a miner’s camp, a little way off the road, to water and breathe their horses. A little later they stopped to listen again, but they could not catch the faintest sound of hoof-beats from the mountain side. They did not know whether their pursuers had turned about and gone back to Las Plumas, or were taking the road leisurely, intending to stop at Muletown until morning.

On again they galloped, neck to neck and heel to heel, with the starry sky above and the long level of the plain before them. Mead glanced to the north, where the Big Dipper, pivoted on the twinkling pole star, was swinging its mighty course through the blue spaces of the sky, and said, “It’s about midnight, boys.” The dim, faintly gleaming, dusty gray of the road contracted to a lance-like point in front of them and sped onward, seeming to cleave the wall of darkness and open the way through which they galloped. The three tall, broad-shouldered, straight-backed figures sat their horses with constant grace, galloping abreast, neck to neck and heel to heel, without pause or slackened pace. The rhythmical, resounding hoof-beats made exhilarating music for their ears, and now and again Ellhorn’s yell went calling across the empty darkness or the sound of Mead’s or Tuttle’s gun cleft the air. On and on through the night they went, their wiry ponies with ears closely laid and muscles strained in willing compliance, the starry sky above and the long level of the plain behind them.

At Muletown they stopped to water their horses at the brimming pump-trough in the plaza and, as the thirsty creatures drank, Ellhorn glanced at the

swinging starry Dipper in the northern sky again and said, "I reckon it's three o'clock, boys." Then on they went, clattering down the long adobe street, flanked by dim houses, dark and silent; and out into the rising edge of the plain, where it lifted itself into the uplands. The black silence was unbroken now save as a distant coyote filled the night with its yelping bark, or a low word from one or another of the riders told of human presence. On and on they galloped, neck to neck and heel to heel, without pause or slackened pace. At last they swerved to the right and began mounting the low, rolling foothills of the Fernandez mountains. The cold night air, dry and sharp, stung their faces and cooled the sweating flanks of their horses. The creatures' ears were bent forward, as if they recognized their surroundings, and their springing muscles were still strong and willing. Over the hills they galloped, the lance-like point of the road cleaving the black wall in front and the hoof-beats volleying into the silence and darkness behind them.

The gray walls of an adobe house took dim shape in the darkness, and beyond it a mass of trees, their leaves rustling in the night wind, told of running water. The three men halted and with lowered bridles allowed their horses to drink.

"Is this old Juan Garcia's ranch?" Tuttle asked.

"Yes," Mead replied, "old Juan still lives here. And a very good old fellow he is, too. He isn't any lazier than he has to be, considering he's a Mexican. He keeps his ranch in pretty good order, and he raises all the corn and *chili* and wheat and *frijoles* that he needs himself and has some to sell, which is a very good record for a Mexican."

"What's become of his pretty daughter?" asked Ellhorn. "Is she married yet?"

"Amada? She's still here, and she's about the prettiest Mexican girl I ever saw. She's a great belle among all the Mexicans from Muletown to the other side of the Fernandez mountains, and with some of the Americans, too. Will Whittaker used to hang around here a good deal, and Amada seemed to be pretty well stuck on him."

Again the horses sprang to the pace they had kept so gallantly, and on and on their hoofs flew over the low, rolling hills. The riders sat their horses as if they were part and parcel of the beasts, horse and rider with one will and one

motion, and all galloping on with rhythmic hoof-beats, neck to neck and heel to heel, without pause or slackened pace, while the cold, dry night wind whistled past their ears and the stars measured their courses through the violet blue of the bending vault above. On they went over the slowly rising hills, and the slender, silver sickle of the old moon shone brightly in the graying east. Soon the mountains ranged themselves against the brightening sky, and as they galloped, on and on, the stars vanished, and from out the black void below the plain emerged, gray-green and grim, spreading itself out, miles and miles into the distance, to the rimming mass of mountains in the west. Still the hoof-beats rang out as the sky blushed with the dawn and the cloud-flecks flamed crimson and the peaks of the distant mountain range glittered with the first golden rays.

Neck to neck and heel to heel they galloped on over the faint track of the road, which now they could see, winding over the hills in front of them. The men spoke cheerily to the horses and patted their wet sides, and the spirited beasts still bent willingly to their task. The three riders sat erect, straight-shouldered, graceful in their saddles and the gentle morning breeze bathed their faces as on they rode over the hills, while the sun mounted above the Fernandez range and flooded all the plain with its soft, early light.

They swept around the curving bend in the road, where it half-circled the corrals, and Ellhorn's lusty "Whoo-oo-oo-ee-ee" rang out as they drew rein at Mead's door; Las Plumas, the night and ninety miles behind them. Ellhorn's yell brought the cook to the door, coffee-pot in hand, with two *vaqueros* following close behind. One of these took the horses to the stables and the three friends stood up against the wall in the sunshine, stretching themselves. Mead took out his pocket-knife and began cutting the cactus spines from his swollen hands.

"I'm glad to have a chance to get rid of these things," he said. "They've been stinging like hornets all night."

CHAPTER VII

Emerson Mead's ranch house was a small, white, flat-roofed adobe building, with cottonwood trees growing all about it, and the water from a spring on the hillside beyond, flowing in a little rill past the kitchen door. Inside, on the whitewashed walls, hung the skins of rattlesnakes, coyotes, wild cats, the feet, head and spread wings of an eagle, and some deer heads and horns. There were also some colored posters and prints from weekly papers. A banjo stood in one corner of the dining room, while guns and revolvers of various kinds and patterns and belts heavy with cartridges hung against the walls or sprawled in corners.

The cook and housekeeper was a stockily built, round-faced Englishman, whom Mead had found stranded in Las Plumas. He had been put off the overland train at that place because the conductor had discovered that he was riding on a scalper's ticket. Mead had taken a liking to the man's jovial manner, and, being in need of a cook, had offered him the place. The Englishman, who said his name was Bill Haney, had accepted it gladly and had since earned his wage twice over by the care he took of the house and by the entertainment he afforded his employer. For he told many tales of his life in many lands, enough, had they all been true, to have filled the years of a Methuselah to overflowing. Mead did not believe any of his stories, and, indeed, strongly suspected that they were told for the purpose of throwing doubt upon any clue to his past life which he might inadvertently give. Good-natured and jovial though he was in face and talk and manner, there was a look at times in his small, keen, dark eyes which Mead did not like.

As Haney bustled about getting a fresh breakfast for the three men he said to Mead, "It's mighty lucky you've come 'ome, sir. There's been merry 'ell 'erself between our boys and the Fillmore boys, and they're likely to be killin' each other off at Alamo Springs to-day. They 'ad shots over a maverick yesterday, and the swearin' they've been doin' 'ad enough fire and brimstone in it to swamp 'ell 'erself."

Haney's conversation contained frequent reference to the abode of lost spirits, and always in the feminine gender. Mead asked him once why he

always spoke of “hell” as “her,” and he replied:

“Well, sir, accordin’ to my reckonings, ’ell is a woman, or two women, or a thousand of ’em, accordin’ as a man ’as made it, and bein’ female it ’as to be called ’er.”

As the three men mounted fresh horses after a hasty breakfast, Nick Ellhorn said to Mead:

“Emerson, you’re in big luck that that confounded thug in the kitchen hasn’t cut your throat yet.”

“Oh, he won’t do anything to me,” Mead replied, smiling. “I reckon likely he is a thug, or a crook of some sort, but he won’t do me any harm.”

“Don’t you be too sure, Emerson,” said Tuttle, looking concerned. “It’s the first time I’ve ever seen him, but I don’t think I’d like to have him around me on dark nights.”

“He is a good cook and he keeps the house as neat and clean as a woman would. He won’t try to do anything to me because I’m not big enough game. He knows I never keep money at the ranch, and that I haven’t got very much, any way. Besides, he’s seen me shoot, and I don’t think he wants to run up against my gun.”

They were hurrying to Alamo Springs, a watering place which Mead controlled farther up in the Fernandez mountains, where they arrived just in time to stop a pistol fight between the cow-boys of the opposing interests, half-a-dozen on each side, who had quarreled themselves into such anger that they were ready to end the whole matter by mutual annihilation.

Mead found that the round-up had progressed slowly during his absence. There had been constant quarreling, occasional exchange of shots, and unceasing effort on each side to retard the interests of the other. The Fillmore Company had routed the cow-boys of the small cattlemen, Mead’s included, and for the last two days had prevented them from joining in the round-up. Mead found his neighbors and their and his employees disorganized, angry, and determined on revenge. Accompanied by Tuttle and Ellhorn, he galloped over the hills all that day and the next, visiting the camps on his own range and on the ranges of his neighbors who were leagued with him in the fight

against the Fillmore Cattle Company. He smoothed down ruffled tempers, inquired into the justice of claims, gave advice, issued orders, and organized all the interests opposed to the cattle company into a compact, determined body.

After those two days there was a change in the way affairs were going, and the allied cattlemen began to win the disputes which were constantly coming up. There were not many more attempts to prevent the round-up from being carried on in concert, but there was no lessening of the bad temper and the bad words with which the work was done. Each side constantly harassed and defied the other, and each constantly accused the other of all the cattle-crimes known to the raisers of hoofed beasts. The mavericks were an unfailing source of quarrels. According to the Law of the Herds, as it is held in the southwest, each cattleman is entitled to whatever mavericks he finds on his own range, and none may say him nay. But the leagued cattle growers and the Fillmore people struggled valiantly over every unbranded calf they found scurrying over the hillsides. Each side accused the other of driving the mavericks off the ranges on which they belonged, and the *vaqueros* belonging to each force declared that they recognized as their own every calf which they found, no matter where or on whose range it chanced to be, and they branded it at once with small saddle irons if the other side did not prevent the operation.

Mead was the leader of his side, and, guarded always by his two friends, rode constantly over the ranges, helping in the bunching, cutting-out and branding of the cattle, giving orders, directing the movements of the herds and deciding quarrels. Colonel Whittaker came out from Las Plumas, and was as active in the management of the Fillmore Company's interests as was Emerson Mead for those of his faction. Ellhorn and Tuttle would not allow Mead to go out of their sight. They rode with him every day and at night slept by his side. If he protested that he was in no danger, Ellhorn would reply:

"You-all may not need us, but I reckon you're a whole heap less likely to need us if we're right with you in plain view."

And so they saw to it that they and their guns were never out of "plain view." And, possibly in consequence, for the reputation of the three as men of dare-devil audacity and unequalled skill with rifle and revolver was supreme

throughout that region, wherever the three tall Texans appeared the battle was won. The maverick was given up, the quarrel was dropped, the brand was allowed, and the accusation died on its maker's lips if Emerson Mead, Tom Tuttle and Nick Ellhorn were present or came galloping to the scene.

The look of smiling good nature seldom left Mead's face, but his lips were closely shut in a way that brought out lines of dogged resolution. He was determined that the cattle company should recognize as their right whatever claims he and his neighbors should make. Tuttle and Ellhorn talked over the situation with him many times, and they were as determined as he, partly from love of him and partly from lust of fight, that the cattle company should be vanquished and compelled to yield whatever was asked of it. But they took the situation less seriously than did Mead, looking upon the whole affair as something of a lark well spiced with the danger which they enjoyed.

Ellhorn heard one day that Jim Halliday was at the Fillmore ranch house, and they decided at once that his business was to lay hands upon Mead. It was also rumored that several people from Las Plumas had been riding over the Fernandez plain and the foothills of the Fernandez mountains trying to find Will Whittaker's body or some clue to his disappearance. The three friends learned that all these people had been able to discover was that he had left the ranch on the morning of his disappearance with a *vaquero*, a newly hired man who had just come out of the Oro Fino mountains, where he had been prospecting, in the hope of making another stake. A man had seen them driving down through the foothills, but after that all trace of them was lost. Old Juan Garcia and his wife, past whose house the road would have taken them, had been away, gathering firewood in the hills, but Amada, their daughter, had been at home all day, and she declared she had seen nothing of them, and that she did not think they could have gone past without her seeing them. It was accordingly argued that whatever had happened must have taken place not far from the junction of the main road with the road which led to Emerson Mead's ranch, and all that region was searched for traces of recent burial.

CHAPTER VIII

The round-up was almost finished, and, so far, Emerson Mead had won the day. Backed always by his two friends, he had compelled the recognition of every general claim which had been made, and in most of the daily quarrels his side had come out victor.

Toward the end of the round-up, Mead and two *vaqueros*, accompanied by Tuttle and Ellhorn, had worked all day, getting together a scattered band of cattle, and at night had them bunched at a water hole near the edge of his range. The next day they were to be driven a few miles farther and joined with the droves collected by the Fillmore Company's men and by two or three of his neighbors for the last work of the spring round-up. In the evening one of the cow-boys was sent to the ranch house with a message to the foreman, and a little later the other was seized with a sudden illness from having drunk at an alkali spring during the day. Mead, Tuttle and Ellhorn then arranged to share the night in watches of three hours each with the cattle. Mead's began at midnight. He saddled and mounted his horse and began the monotonous patrol of the herd.

There were some three hundred steers in the bunch of cattle. They lay, sleeping quietly, so closely huddled together that there was barely room for them to move. Occasionally, one lying at the outer edge got up, stretched himself, nibbled a few bunches of grass, and then lay down again. Now and then, as one changed his position, a long, blowing breath, or a satisfied grunt and groan, came out of the darkness. When Mead started his horse on the slow walk round and round the sleeping herd the sky was clear. In its violet-blue the stars were blazing big and bright, and he said to himself that the cattle would sleep quietly and he would probably have an uneventful watch. He let the horse poke round the circle at its own pace, while his thoughts wandered back to his last visit to Las Plumas and hovered about the figure of Marguerite Delarue as she stood beside her gate and took little Paul from his hands. With a sudden warming of the heart he saw again her tall figure in the pink gown, with the rose bloom in her cheeks and the golden glimmer in her brown hair and the loving mother-look in her eyes as she smiled at the happy

child. But with a sigh and a shake of the head he checked his thoughts and sent them to the mass-meeting and the days he had spent in the jail.

Presently it occurred to him that his watch must be nearly over and he looked up at the Great Dipper, swinging on its north star pivot. Then he smiled at himself, for it seemed scarcely to have changed position since he had mounted his horse. "Not an hour yet," was his mental comment. Clouds were beginning to roll up from the horizon, and he could hear low mutterings of thunder and among the mountain tops see occasional flashes of lightning. Soon the sky was heavily overcast, and the darkness was so dense that it seemed palpable, like an enveloping, smothering cover, which might almost be grasped in the hands, torn down and thrown away. Mead could not see the horse's head, so, letting the reins lie loosely on its neck, he allowed the animal to pick its own way around the circle.

The cattle began to show signs of nervousness, and from the huddled mass there came sounds of uneasy movements. Mead urged his horse into a quicker walk and with one leg over its neck as they went round and round the herd, he sang to them in a crooning monotone, like a mother's lullaby to a babe that is just dropping into dreamland. It quieted the incipient disturbance, the rumbling thunder ceased for a time, and after a little moving about the cattle settled down to sleep again.

Suddenly, without forerunner or warning, a vivid flash of lightning cleft the clouds and a roar of thunder rattled and boomed from the mountain peaks. And on the instant, as one animal, hurled by sudden fright, the whole band of cattle was on its feet and plunging forward. There was a snorting breath, a second of muffled noise as they sprang to their feet, and the whole stampeded herd was rushing pell-mell into the darkness. They chanced to head toward Mead, and he, idling along with one leg over his saddle horn, with a quick jab of the spur sent his pony in a long, quick leap to one side, barely in time to escape their maddened rush. A second's delay and he and his horse would have been thrown down by the sheer overpowering mass of the frenzied creatures and trampled under their hoofs, for the horn of a plunging steer tore the leg of his overalls as the mad animals passed. Away went the herd, silent, through the dense blackness of the night, running at the top of their speed. And Mead, spurring his horse, was after them without a moment's loss of time, galloping close beside the frightened beasts, alertly watchful lest they might suddenly change their course and trample him

down. They ran in a close mass, straight ahead, paying heed to nothing, beating under their hoofs whatever stood in their way.

They rushed crazily on through the darkness which was so intense that Mead's face seemed to cleave it as the head cleaves water when one dives. He galloped so close to the running band that by reaching out one arm he could almost touch one or another heaving side. But he could see nothing, not a tossing horn nor a lumbering back of the whole three hundred steers, except when an occasional flash of lightning gave him a second's half-blinded glimpse of the plunging mass. By hearing rather than by sight he could outline the rushing huddle at his right hand. And watching it as intently as if it had been a rattlesnake ready to strike, he galloped on by its side in a wild race through the darkness, over the plain, up and down hills, through cactus and sagebrush, over boulders and through treacherous, tunneled prairie dog towns, plunging headlong into whatever might be in front of them.

From the rushing herd beside him there came the muffled roar of their thousand hoofs, overtoned by the constant popping and scraping of their clashing horns. The noise filled his ears and could not quite be drowned even by the rattling peals of thunder. Swift drops of rain stung his face and the water of a pelting shower dripped from his hat brim and trickled from his boot heels. The beating rain, the vivid flashes of lightning and the loud peals of thunder drove the maddened creatures on at a still faster pace. Mead put frequent spurs to his horse and held on to the side of the mob of cattle, bent only on going wherever they went and being with them at the dawn, when it might be possible to get them under control.

They plunged on at a frenzied gallop through the darkness and the storm, and when at last the sky brightened and a wet, gray light made the earth dimly visible, Mead could see beside him a close huddle of lumbering, straining backs and over it a tangle of tossing and knocking horns. The crowding, crazy herd, and he beside it, were rushing pell-mell down a long, sloping hill. With one keen, sweeping glance through the dim light and the streaming rain he saw a clump of trees, which meant water, at the foot of the hill, and near it a herd of cattle, some lying down, and some standing with heads up, looking toward him; while his own senseless mass of thundering hoofs and knocking horns was headed straight toward them.

With a whooping yell he dashed at the head of the plunging herd, sent a pistol ball whizzing in front of their eyes and with a quick, sharp turn leaped his horse to one side, barely in time to escape the hoofs and horns of the nearest steer. They swerved a little, and making a detour he came yelling down upon them again, with his horse at its topmost speed, and sent a bullet crashing through the skull of the creature in the lead. It dropped to its knees, struggled a moment, fell over dead, and the herd turned a little more to the right. Spurring his horse till it leaped, straining, with outstretched legs, he charged the head of the rushing column again, and bending low fired his revolver close over their heads. Again they swerved a little to the right, and dashing past the foremost point he sent a pistol ball into the eye of the leader. It fell, struggling, and with a sudden jerk he swung the horse round on its hind legs and struck home the spurs for a quick, long leap, for he was directly in the front of the racing herd. As the horse's fore feet came down on the wet earth it slipped, and fell to its knees, scrambled an instant and was up again, and leaped to one side with a bleeding flank, torn by the horns of the leading steer. The startled animals had made a more decided turn to the right, and by scarcely more than a hand's breadth horse and rider had escaped their hoofs. The crazy, maddened creatures slackened their pace and the outermost ones and those in the rear began to drop off, one by one, grazing and tailing off behind in a straggling procession. Another rush, and Mead had the mob of cattle, half turned back on itself, struggling, twisting and turning in a bewildered mass. The stampeding impulse had been checked, but the senseless brutes were not yet subdued to their usual state.

Glancing down the hill to the clump of trees, he saw men rushing about and horses being saddled. Shouting and yelling, he rushed again at the turned flank of his herd, firing his pistol under their noses, forcing the leaders this time to turn tail completely and trot toward the rear of the band. The rest followed, and with another furious yell he swerved them again to the right and forced them into a circle, a sort of endless chain of cattle, trotting round and round. He knew they would keep up that motion until they were thoroughly subdued and restored to their senses, and would then scatter over the hillside to graze.

He had conquered the crazy herd of cattle, but four horsemen were galloping up the hill, and he knew they were part of the Fillmore Company's outfit. He reloaded his revolver, put it in its holster, and rode a little way toward them.

Then he checked his horse and waited, with his back to the “milling” herd, for them to come near enough to hail. Through the lances of the rain he could see that one of the men was Jim Halliday, the deputy sheriff from Las Plumas, who had arrested him on the night of the mass-meeting. Another he recognized as the Fillmore Company’s foreman, and the two others he knew were cow-boys. One of these he saw was a red-headed, red-whiskered Mexican known as Antone Colorow—Red Antony—who was famous in all that region for the skill with which he could throw the lariat. His eye was accurate and his wrist was quick and supple, and it was his greatest pride in life that the rope never missed landing where he meant it should.

CHAPTER IX

The thunder clap which frightened the herd of cattle also roused Tuttle and Ellhorn, and through half-awakened consciousness they heard the noise of the stampede.

“What’s that! The cattle?” exclaimed Tuttle, rising on his elbow. Ellhorn jumped to his feet.

“Tom, there goes ten thousand dollars on the hoof and a-runnin’ like hell!”

“Where are the horses? Come on, Nick! Buck! Buck! Hello, Buck! Whoa! Here’s mine, Nick! Yours is over by the chuck wagon!”

Fumbling in the darkness, they hurried to release and saddle the hobbled horses, and, calling to the sick cow-boy that when the foreman should come in the morning he must make haste after them, they jumped upon the ponies and set out on the gallop through the darkness to trail the noise of the running cattle. With every flash of lightning Nick Ellhorn looked about with keen, quick glances, and with half-blinded eyes located mountain peaks and arroyos, considered the direction in which they were headed, and the general lay of the land, and after a time he broke out with a string of oaths:

“Tommy, them cow-brutes are headed straight for Sweetwater Springs, and the Fillmore outfit’s camped there to-night! Jim Halliday is there, and so is that measly Wellesly, if he hasn’t gone back to town. He was out here two days ago. Emerson and the cattle will sure strike the Springs just about daylight, if they keep up their gait and nothing stops ’em!”

Tuttle swore angrily under his breath. “That’s just the snap they’ve been waitin’ for all this time! Their only show to get Emerson, or to kill him either, is to come down on him half a dozen to one, and they know it. Well, if they kill him he won’t be the first to drop—nor the last, either,” he added with a little break in his voice, as he gave his sombrero a nervous pull over his forehead.

“I reckon,” Ellhorn replied, “they don’t want to kill Emerson, as long as you and me are alive. They know what would happen afterward. Jim Halliday has got that same old warrant over there, and what they want to do is to shut him up in jail again.”

The first stinging drops of rain dashed in their faces and they buttoned their coats and galloped on in silence. Tuttle was the first to speak again:

“What’s that scrub Wellesly doing out here?”

“I don’t know, unless he came to bring ’em some brains. They need some bad enough. Wellesly and Colonel Whittaker have been ridin’ around over the range for the last two or three days, though I didn’t know about it till yesterday. I guess they’ve been so everlastingly beaten on every proposition that he thought he’d better come out himself and see if he couldn’t save the day for ’em on something.”

They hurried on in the trail of the roar from the stampeding herd, but suddenly Ellhorn’s horse struck his fore feet on the slope of a wet and slippery mound beside a prairie dog’s hole. Before the animal could recover, its feet slid down the bank into the mouth of the hole with a forward jerk, and it came down with a groaning cry of pain. Ellhorn rose to his feet in the stirrups, and as the horse struck the ground he stood astride its body and with a quick leap jumped to one side unhurt. By the light of a match, which Tuttle sheltered under his sombrero, standing bareheaded, meanwhile, with the rain running in streams down his neck, Ellhorn examined the fallen horse.

“He’s broke both his forelegs, Tom. There’s only one thing to do with him, now.”

Tuttle stroked the beast’s nose. “I reckon so, Nick. You-all better do it.” Then he turned away, while Ellhorn put his revolver to the horse’s head and ended its pain.

“Now, Tom, you go on after Emerson as fast as you can and I’ll hoof it back to camp and get Bob’s horse.”

“No, you-all jump on behind me, Nick, and we’ll go on together. Emerson will need us both in the morning. If that crowd gets after him maybe he can stand ’em off till we-all get there. But he’ll need us by daylight, Nick.”

“I ’low you’re right, Tommy, but ain’t you on that horse that always bucks at double?”

“Yes, but I reckon he’ll have to pack double, if you and me fork him.”

“You bet he will!” and Ellhorn leaped to the horse’s back behind Tuttle. “Whoo-oo-ee-ee!” Two pairs of spurs dug the horse’s flank and a rein as tight as a steel band held its head so high that bucking was impossible. The horse jumped and danced and stood on its hind legs and snorted defiance and with stiffened legs did its best to hump its back and dismount its unwelcome double burden. It might as well have tried to get rid of its own mane. The riders swayed and bent with its motion as if they were a part of its own bounding body. Tuttle gave the animal its head just enough to allow it to work off its disapproval harmlessly, and for the rest, it did nothing that he did not allow it to do. Finally it recognized the mastery, and, pretending to be dreadfully frightened by a sudden vivid flash of lightning, it started off on a run.



**“WITH A WHOOPING YELL, HE DASHED AT THE
HEAD OF THE PLUNGING HERD”—p. [82](#)**

“Hold on there, old man!” said Tuttle. “This won’t do with two heavy weights on top of you. You’ve got to pack double, but you’d better go slow about it.”

Calming the horse down to a quick trot, they hurried on in the wake of the stampede. They had lost all sound of the herd, and the trail which the ploughing hoofs had made at the beginning of the storm had been nearly obliterated by the beating rain. Once they thought they caught the sound again and must be off the track. They followed it and found it was the roaring of a high wave coming down an arroyo from a cloudburst farther up in the mountain. Hurrying back, they kept to the general direction the cattle had taken until the trail began to show more plainly in the soaked earth, like a strip of ploughed land across the hills. When they reached the next arroyo, they found it a torrent of roaring water. The greater part of the cloudburst had flowed down this channel, and where Mead and the cattle had to cross merely wet sand and soaked earth, they would have to swim.

“See here, Tom,” said Ellhorn, “two’s too much for this beast in the water. You take care of my belt and gun and I’ll swim across.”

“That’s a mighty swift current, Nick. Don’t you think we-all can make it together?”

“I don’t want to take any chances. Buck can get across with you all right, but if he’s got us both on him he might go down and then we’d have to follow Emerson on foot. We’re coverin’ ground almighty slow, anyway. I’m the best swimmer, and you-all can take care of my boots and gun.”

They waited a few moments for a flash of lightning to show them the banks of the arroyo. By its light they saw a water course thirty feet wide and probably ten feet deep, bank-full of a muddy, foaming flood, in which waves two feet high roared after one another, carrying clumps of bushes, stalks of cactus, bones, and other debris. As they plunged into the torrent, Ellhorn seized the tail of Tuttle’s horse, and, holding it with one hand and swimming with the other, made good progress. But in mid-stream a big clump of mesquite struck him in the side, stunning him for an instant, and he let go his hold upon the pony’s tail. A high wave roared down upon him the next moment, and carried him his length and more down stream. He fought with all his strength against the swift current, but, faint and stunned, could barely hold his own. He shouted to Tuttle, who was just landing, and Tom threw the end of his lariat far out into the middle of the stream. Ellhorn felt the rope across his body, grasped it and called to Tuttle to pull.

“Tommy,” he said, when safe on land, “I hope we’ll find the whole Fillmore outfit just a-walkin’ all over Emerson. I don’t want more’n half an excuse to get even with ’em for this trip. Sure and I wish I had ’em all here right now! I’m just in the humor to make sieves of ’em!”

CHAPTER X

Emerson Mead waited until the four horsemen were within two hundred yards of him, and then he called out a good-natured “hello.” The others checked their horses to a slow walk, and after a moment one of them hastily shouted an answering salutation. Mead instantly called in reply:

“I reckon you’d better stay where you are, boys. We can talk this way just as well as any other.” The others halted and he went on: “Suppose you say, right now, whether you want anything particular.”

They looked at one another, apparently surprised by this speech, and presently the foreman said:

“We thought you must be having trouble with your cattle. Stampede on you?”

“They’re all right now. They’re ‘milling,’ and won’t give me any more trouble. But I reckon you didn’t ride up here to ask me if my cattle had stampeded. You better talk straight just what you do want.”

They hesitated again, looking at one another as if their plans had miscarried. “They expected I’d begin poppin’ at ’em and give ’em an excuse to open out on me all at once,” Mead thought. Then he called out:

“Jim, you out here to buy some cattle? Can I sell you some of mine?”

“You know I don’t want to buy cattle,” Halliday replied, sulkily.

“No? Then maybe you’ve come to ask me if it’s goin’ to rain?” Mead smilingly replied.

“I reckon you know what I want, Emerson Mead,” Halliday said angrily, as if nettled by Mead’s assured, good-natured tone and manner. “You know you’re a fugitive from justice, and that it’s my duty to take you back to jail.”

“Oh, then you want me!” said Mead, as if greatly surprised.

“That’s what, old man!” Halliday’s voice and manner suddenly became genial. He thought Mead was going to surrender, as he had done before. He had no desire for a battle, even four to one, with the man who had the reputation of being the best and coolest shot in the southwest, for he knew that he would be the first target for that unerring aim, and he was accordingly much relieved by the absence of defiance and anger in Mead’s manner.

“You want me, do you?” said Mead, his voice suddenly becoming sarcastic. “Is that what you’ve been waitin’ around the Fillmore ranch the last three weeks for? Why didn’t you come straight over to my house and say so, like a man who wasn’t afraid? You want me, do you? Well, now, what are you goin’ to do about it?” There was a taunt in Mead’s tone that stirred the others to anger. Mead knew perfectly well what his reputation was, and he knew, too, that they were afraid of him.

“You won’t surrender?”

“Whenever you’ve got any evidence for a warrant to stand on I’ll give myself up. I let you take me in before to stop trouble, but I won’t do it again, and you, and all your outfit, had better let me alone. I’m not goin’ to be run in on any fool charge fixed up to help the Fillmore Company do me up. That’s all there is about it, and you-all had better turn tail and go back to camp.”

While he was speaking the foreman said something to Antone Colorow, and the man left the group and trotted away toward Mead’s left as if he were going back to camp. Without seeming to notice his departure, Mead watched the cow-boy’s actions from a corner of his eye while he listened to Jim Halliday:

“Now, Emerson, be reasonable about this matter and give yourself up. You know I’ve got to take you in, and I don’t want to have any gun-fight over it. The best thing you can do is to stand trial, and clear yourself, if you can. That’ll end the whole business.”

Antone Colorow turned and came galloping back, his lariat in his hand. Mead’s revolver was still untouched in his holster, and his horse, standing with drooping mane and tail, faced Halliday and the others. The cow-boy

came galloping through the rain from Mead's left, and so far behind him that he could barely see the man from the corner of his eye. He was apparently unconscious of Antone's approach as he quietly replied to Halliday, but his fingers tightened on the bridle, and the horse, answering a closer pressure of heel and knee, suddenly lifted its head and stiffened its lax muscles into alertness.

"I'd hate to make you lose your job, Jim," said Mead, smiling, "but you can't expect a fellow to let himself be arrested for nothing, just so you can keep a soft snap as deputy sheriff. You get some evidence against me, and then I'll go with you as quiet as any maverick you ever saw."

As Mead spoke he was listening intently. He heard Antone's horse stop a little way behind him, and, as the last word left his lips, the hiss of the rope through the air. With a dig of the spurs and a sharp jerk of the bridle the horse reared. The noose fell over Mead's head, but his revolver was already in his hand, and with a turn as quick as a lightning flash he swung the horse round on its hind legs in a quarter circle and before the astounded Mexican could tighten the loop there were two flashing reports and a bullet had crashed through each wrist. Antone's arms dropped on his saddle, and through the shrill din of the mingled Spanish and English curses he shrieked at Mead came the sharp cracking of three revolvers. Emerson Mead felt one bullet whistle through his sleeve and one through the rim of his sombrero, as, with the rope still on his shoulders, he whirled his horse round again with his smoking revolver leveled at Halliday.

"Whoo-oo-oo-ee-ee!" Ellhorn's long-drawn-out yell came floating down from the top of the hill and close on its heels the report of a pistol.

"That was a very pretty trick, Emerson," said the foreman, in a voice which tried hard to sound unconcerned, "even if it was my man you played it on."

"It will be played on you if you make another break," Mead replied in an even tone, with his revolver still leveled at Halliday. He turned his horse slightly so that a sidewise glance up the hill showed Tom Tuttle and Nick Ellhorn, guns in hand, both astride one horse, coming toward them on a gallop. Tuttle's deep-lunged voice bellowed down the slope:

“We’re a-comin’, Emerson! Hold ’em off! We’re a-comin’!” and another pistol ball sung through the rain and dropped beside Halliday’s horse. Mead flung the rope from his shoulders and grinned at Halliday and his party.

“Well, what are you going to do now? Do you want to fight?”

Halliday put his gun in its holster: “I don’t want any pitched battle over this business. We’ll call the game off for this morning.”

“It’s all right, boys,” Mead yelled to his friends. “Don’t shoot any more.”

“You’re a fool, Emerson,” Halliday went on, “or you’d give yourself up, go down to Plumas and clear yourself,—if you can—and have this thing over with. For we’re goin’ to get you yet, somehow.”

Antone Colorow spurred his horse close to Mead and with all the varied and virulent execration of which the cow-boy is capable shouted at him:

“Yes, and if they don’t get you, I will! I come after you till I get you, and I come a-smoking every time! You won’t need a trial after I get through with you! You’ve done me up, but I’ll get even and more too!”

Mead listened quietly, looking the man in the eye. “Look here,” he said, “what did you reckon would happen to any man who tried to rope me? Did you think I’d let you-all drag me into camp at your horse’s tail? I’m sorry I had to do that, but I didn’t want to kill you. Here, Jim, you fellows better tie up Antone’s wrists.” Mead offered his own handkerchief to help out the bandages, and, suddenly remembering the whisky flask in his breast pocket, took it out and told the wounded man to finish its contents.

While this was going on Tuttle and Ellhorn rode up. The rain had stopped, and through a rift in the eastern clouds the level, red rays of the sun were shining. Mead met their eager, anxious faces with a smile.

“It’s all right, boys. Jim says the game’s off for this morning.”

Nick and Tom turned black and scowling looks on Halliday and his party, and the deputy sheriff, manifestly nervous, rode toward them with an exaggeratedly genial greeting:

“Howdy, boys! Put up your guns! We ain’t goin’ to have any gun-fight this morning.”

“How do you know we ain’t?” growled Tom.

“Well, Emerson says so,” he replied, with an apprehensive glance at Mead.

“Well,” said Nick, “if Emerson says so it’s all right. But we’ve had a devil of a ride, and we’d like to get square somehow!”

Mead laughed. “You can tally up with Jim, who’s going to lose his job because I’m too mean to let him run me in.”

Tuttle and Ellhorn turned grimly joyous faces toward Halliday. “If you want to arrest Emerson this morning,” said Ellhorn, “just begin right now! We’re three to three! Come on now and try it!”

The officer edged his horse away: “I’ll wait till the round-up is over. Then you can’t have the excuse that the Fillmore Company’s doing it. But I’ll have him yet, and don’t you forget it!”

“Just like you got him this time!” taunted Ellhorn.

Halliday turned back a red and angry face: “I’ll have him,” he yelled, “if I have to kill the whole damned three of you to get him!”

A derisive shout of laughter was the only answer he received as he and his party galloped back to camp.

CHAPTER XI

After the round-up was finished Emerson Mead and his two friends started, with two *vaqueros*, to drive a band of cattle to Las Plumas for shipment. When they reached Juan Garcia's ranch Mead remembered that he wished to see the old Mexican, and the two cow-boys were sent on with the cattle while he and Tuttle and Ellhorn tied their horses in the shade of the cottonwoods at the foot of the hill. They found Amada Garcia leaning on her folded arms across the window-sill and making a picture in the frame of the gray adobe walls that was very good to see.

It is not often that the señorita of the southwest can lay claim to any more of beauty than glows in midnight hair and eyes. But Amada Garcia was one of the favored few. Her short, plump figure was rounded into dainty curves and her oval face, with its smooth, brown skin, its dimples, its regular features, its little, rosebud, pouting mouth, and its soft, black, heavy-lidded eyes, was alluring with sensuous beauty. A red handkerchief tied into a saucy cap was perched on her shining, black hair, and her black dress, carelessly open a little at the neck, showed a full, soft, brown throat.

She received the three men with that dignified courtesy that is never forgotten in the humblest Mexican adobe hut, but she tempered its gravity with many coquettish glances of her great black eyes. They talked in Spanish, the only language Amada knew, which the men spoke as readily as they did their own. No, her father was not at home, she said. He had gone to Muletown and would not be back until night. But was it the wish of the señores to be seated and rest themselves from their travel and refresh themselves with a drink of cool water? Mead presented Tuttle, who had never seen the girl before, and Amada said, with many flashes of languorous light from under her heavy lids, ah, she had heard of the señor, a most brave *caballero*, a man whom all women must admire, so brave and skillful. Her carriage and the poise of her body as she stood, or sat down, or walked about the room, would have befitted a queen's approach to her throne, so unconsciously regal and graceful were they. For ever since she was old enough Amada had carried every day to the house, up the hill from

the spring, in an *olla* poised on her head, all the water for their domestic necessities. And in consequence she walked with a grace and carried her head with an air that not one American woman in a hundred thousand could equal.

She brought them water from an *olla* which stood in the *portal*, where it would be free to the breeze and shaded from the sun, and as she handed it to one after another she smiled and dimpled, her white teeth gleamed, her black eyes shone alluringly in sudden flashes from under their long-fringed covers, and her sweet, soft voice prattled airy, beguiling flatteries and dear little complimentary nothings. As she talked, she tossed her head and swayed her body and made graceful, eloquent little gestures with her hands and arms. There was unconscious coquetry in every movement and a mischievous “you dare not” in every glance of her eyes and in every dimpling smile. She was like a plump, saucy, sweet-throated bobolink, perched on a swaying bough and singing a joyous and daring “catch me if you can.”

She walked across the room to put the cup on the table and Ellhorn sprang to her side and threw his arm about her. She drew back a little, tossed her head, and looked at him with eyes gleaming “if you dare, if you dare,” from under their soft lids. She faced the door as she did so and as he bent his head to take the kiss she dared, a sudden, gray horror fell over her laughing face and changed it in a second to a wide-eyed, open-mouthed, drawn thing, pitiful in its helpless, ashen fear. The sudden change stopped him with his lips close to hers, and with his hand on his gun he wheeled toward the door to see what had frightened her. The other two, looking and laughing, saw the sudden horror transform her face and they also sprang toward the open entrance, revolvers in hand. But there was nothing there. The *portal* was empty of any living thing. And all across the gray-green plain the only sign of life was the drove of cattle far down the winding road. They turned to the girl in surprise and asked her what was the matter. She had recovered her smiling, coquettish self, and declared that Señor Ellhorn had frightened her. She scolded him prettily, in the soft, sweet, Mexican tones that are a caress in themselves, and, with a demure expression, to which only the black eyes would not lend themselves, she told him it was not right for a man to take advantage of a girl when she was all alone. If he wished to kiss her when her mother was present, ah, that was different. Yes, she would forgive him

this one time if he truly were very sorry, but he must never, never frighten her so again. And her eyes flashed a smile at him that flouted every word she said.

As the three men rode away Tuttle asked:

“Emerson, did she really mean what she said about Nick’s frightening her?”

Mead looked at him with an indulgent smile: “Tom Tuttle, you’re the biggest maverick I ever saw. I reckon havin’ a man want to kiss her ain’t such an unusual thing that it’s goin’ to frighten Amada Garcia into a conniption fit.”

“What in thunder was the matter with her then?” said Ellhorn, a bit nettled over the outcome of his gallantry. “It couldn’t have been because she didn’t want me to kiss her.”

Mead broke into a loud, hearty roar, Tuttle grinned broadly, and Ellhorn regarded the two of them with an angry look. Mead leaned over and slapped his shoulder.

“Nick, you’re a devil of a fellow with the women, and I know it as well as you do. I guess Amada’s not very different from the rest of ’em, if she did stop your performance. She looked as if she saw a ghost, and maybe she thought she did. These Mexicans are a superstitious lot. Maybe she’s kissed one too many some time and happened to think of it just when it spoiled your fun.”

“She’s a stunner, anyway!” said Ellhorn enthusiastically, his good humor restored. “I say, Emerson, is she straight?”

“I guess so. Yes, I sure reckon she must be, or Juan Garcia would have made trouble. Old Juan and his wife are fine old people, and any man who wronged Amada would have to answer for it to her father. He’d have to either kill the old man or be killed himself in mighty short order. Oh, yes, Amada’s a good girl, but she’s an awful little flirt.”

As soon as the cattle were secured in the pens at the railroad station, ready to be transferred to the cars, Emerson Mead put spurs to his horse and rode off alone to the northward without a word to his friends. Nick and Tom,

perched on the high fence of a cattle-pen, watched him gallop away with amazement. His action was unusual and surprising, for when the three were together where one went the others went also, or, at least, knew all about it. The two left behind discussed what it might mean. Nick watched him until, half a dozen blocks away, he turned off toward the mountains from which they had just come. Then a light broke upon Ellhorn and he slapped his knee with his palm and broke into a laugh.

“Tom Tuttle, I reckon I’m onto his curves! He’s goin’ to strike the mountain road back of town a ways and come in alone, past Frenchy Delarue’s place, as if he’d just come to town!”

“Frenchy Delarue! Does he mean to have it out with Frenchy for the way he talked at that mass-meetin’? Say, Nick, we ought to be handy, for he’ll sure need us. Come on, let’s ride out that way.” And Tuttle began to climb down from his high perch. Ellhorn stopped him with another roar of laughter.

“Tommy, sometimes I think you sure ain’t got any more sense than a two-year-old! Emerson don’t care anything about Frenchy Delarue, or what he said at a dozen mass-meetings. He don’t hold things against a man that way.” Ellhorn ended with another laugh and sat there chuckling while Tom looked at him resentfully.

“I don’t see what you want to make a fool of a fellow for,” he said sulkily. “If you-all don’t want to tell me what it’s all about, say so, and I won’t ask any more questions.”

Ellhorn slapped him on the shoulder. “That’s all right, Tommy. It was such a good joke I couldn’t help it. Don’t you remember that stunning pretty girl we saw on the street with the kid the day Emerson came into town, that I told you was Frenchy Delarue’s daughter?”

“What? Emerson! You don’t mean—say, Nick! I don’t—Emerson?” And Tuttle stopped, from sheer inability to express his mingled feelings, and stared at his companion, his face the picture of mystified amazement.

Ellhorn nodded. “I don’t know anything about it, but two or three times I’ve seen things about Emerson that made me think he must be gettin’ into that sort of trouble somewhere, and if he is I sure think it can’t be anybody but Miss Delarue.”

Tuttle was silent a few moments, thinking the matter over. Then he shook his head doubtfully.

“If it was you or me, Nick, I could understand it. But Emerson! Nick, I can’t believe it until I know it’s so!”

“I wouldn’t have thought so either, but you never can tell,” Nick replied oracularly. “Now, I’d kiss Amada Garcia, or any other pretty girl, every time I got a chance. You wouldn’t do it unless you could sneak around behind the house where nobody could see, and you wouldn’t say a word about it afterward. But Emerson, well, maybe Emerson would too, but I don’t reckon he would even think about kissin’ her unless she asked him to, and I’m dead sure he’d never think about it afterward. But that’s just the sort of a man who gets knocked plumb out when a woman does hit him. It wouldn’t make any difference to you or me, or not very long anyway, because we’d go right along and love some other girl just as much the next time. Likely you’ve been in love as many times as I have, and I don’t know how many that is, but I don’t believe Emerson ever thought more’n twice about any woman before this. But I sure reckon he’s knocked out now, and bad enough to last him a long time. He’s just the sort that don’t want any woman if he can’t get the one he does want. But you and me, Tommy,—Lord-a-mighty! We’ll have a sweetheart every time we can get one!”

Tuttle blushed a still deeper crimson under his red tan at this frank account of his possible love affairs, and after a few moments of silence he nodded thoughtfully:

“I guess you-all have hit it off about right, Nick, But I never thought Emerson would be the first one of us three to go and get married! I thought likely none of us ever would!”

“He ain’t married yet, and I don’t know as she’d have him.”

“Why not? Of course she would!” said Tom, resentful at the idea that any girl could refuse his idolized friend. He whittled the board fence despondently a few moments, and then added with a brighter look: “But he’s on the wrong side of politics to suit her father, and I reckon Frenchy wouldn’t have it.”

The whistle of the northbound train came up the track and they climbed down from the fence and went to the depot. The telegraph operator called Tom and handed him a dispatch.

“It’s from Marshal Black,” said Tuttle to Ellhorn, “and he wants me to go up to Santa Fe as quick as I can get there. I reckon I’d better jump right onto this train. Emerson don’t need me any more now. Tell him about it, and if he wants me for anything, or you-all think I’d better come, wire, and I’ll flirt gravel in a minute. Good-bye, old man.”

Emerson Mead made a detour through the northern end of the town and came into the mountain road at the lower edge of the uplands. He galloped down the street, checking his horse to a slow trot as he neared Pierre Delarue’s house. With sidelong glances he keenly examined the veranda and the open doors and windows, but he could see no flutter of drapery, nor the flaxen curls of the child. With a protesting disappointment in his heart he held the horse back to a walk while he stooped over and examined the cinch. He had almost passed the place when little Paul came around the house, trailing a subdued looking puppy at the end of a string, saw him, and ran to the gate shrieking his name. Mead turned back, a warm flood of delight surging into his breast.

“Hello, little Bye-Bye! Do you want to ride with me? Run back to the house and ask your sister if you can go.”

The child ran back to the porch and from within the house Mead heard Marguerite give permission. “Won’t she come out?” he thought, anxiously.

“You must come and lift me up,” said Paul, and Mead determined to buy him the finest toy in the town.

“Climb on the fence and let Mr. Mead put you on.”

“She won’t come. She does not want to see me,” thought Mead.

“No, I want you to come,” persisted Paul, who was in a naughty mood.

“No, dearie, Mr. Mead can stoop over and help you on just as well as I can.”

“She is determined not to see me,” thought Mead. “She never did so before.”

Paul began to cry. “I can’t, Daisy. Truly, I can’t get on if you don’t come. And then I can’t have any ride.”

Marguerite came out with a little, white, high-crowned sunbonnet pulled over her head. She had been arranging her hair and had put on the bonnet to conceal its disarray, when she found that the child could not be persuaded to let her remain indoors. Mead thought her face more adorable than ever as it looked out from its dainty frame. Paul kicked his heels into the horse’s shoulders, but a firm hand held the bridle and the animal did not move. Marguerite turned a smiling face upon Mead and met in his eyes the same look she always saw there. She glanced down again, blushing, and felt the silence embarrassing, but all the things she would ordinarily have said suddenly seemed trivial and out of place, so she turned to the child with a gentle, “Be a good boy, Paul.” Mead looked at her in silence, smiling gravely. Many things were whirling about in his mind to say, but he hesitated before each one, doubting if that were the best. Paul kicked vigorously and shouted, “Come on! Come on! Aren’t you ready to go, Mr. Mead?” Emerson’s grave smile relaxed into a foolish grin, he lifted his hat to Marguerite, and he and the boy cantered off.

Marguerite hurried back to her room and as she stood before her mirror, trembling, she resumed her hair dressing to the accompaniment of thoughts that ran contrariwise:

“I would think the man was dumb if I didn’t know better. Why doesn’t he ever say anything? He is certainly the rudest creature I ever saw! He stares at me until I am so confused that I can not even be courteous. He isn’t nearly so nice as Mr. Wellesly—I don’t care, he isn’t! I like Mr. Wellesly, and he seems to like me, but—he does not look at me out of his eyes as Mr. Mead does. I wonder—if he—looks at any one else that way?”

After Mead had returned the child he rode at once to his room, and while he bathed and shaved and dressed himself in the garments of civilization he gave himself up to gloomy thoughts about Marguerite.

“Of course, she thinks I am a criminal of the worst sort,—a thief and a murderer,—and maybe she does not like to have me stop at her gate. She was nervous about it to-day, and she wouldn’t come out until the kid made her. It is plain enough that she doesn’t want to see me any more, and I suppose I ought not to stop there again. Still, the boy is always so pleased to ride with me that it would be a shame to take that pleasure away from him. But she doesn’t like it—how sweet she looked in that sunbonnet!—and she’s too kind-hearted to ask me not to. Well, she would rather I would not—yes, it is plain that she does not want me to do it—so—well—all right—I’ll not stop there again.”

His revolver lay on the table, hidden by some of the clothing he had just taken off. Under the stress of his thoughts it escaped both eye and mind. As he put on vest and coat he struggled to his final resolution. Then he quickly jammed his hat on his head, thinking, “I suppose I can’t see her any more at all,” and hurried into the street. Presently he heard a loud whoop from the direction of the jail. “That’s Nick’s yell, sure,” he thought, “and it sounds as if he was drunk. Now what’s to pay, I wonder!”

He hurried in the direction from which the sound had come, and was just in time to see Ellhorn, yelling and waving his hat, led by Jim Halliday into the jail, while a half-dozen excited Chinese, who had been following close behind, stood chattering at the door.

When the train which carried Thomson Tuttle northward left the station, Nick Ellhorn watched it disappear in the hot, white, quivering distance, and then wandered forlornly up town. He went first to Emerson Mead’s room, but Mead had not yet returned. He went to Judge Harlin’s office, and found that he was out of town. He next tried the Palmleaf saloon, where he solaced and cooled himself with some glasses of beer. Several men were already there, and others came in, whom he knew, and all wanted to hear about Emerson Mead’s round-up and to congratulate him on its success. He drank mint juleps with two, straight whisky with two others, a cocktail with another, and ended with more beer. He walked up the street to the hotel, and as he talked with the landlord he could feel the liquors he had so recklessly mixed beginning to bite into his blood and raise little commotions in remote corners of his brain. A pleasant-faced young Mexican came into the office, and the landlord asked him how his patient was. The young man replied in

broken English that the man was a little better but very sad, and that he wished to find some one to stay with him a few minutes while he went out on an errand.

Nick Ellhorn's heart was warmed and expansive and he promptly volunteered to sit with the invalid and entertain him for an hour, and with effusive thanks the Mexican nurse conducted the tall Texan to the sick-room. White, gaunt and weak, the invalid lay in his bed and looked with eyes of envy and admiration at the tall, firm, well-knit frame, the big muscles and the tanned face of his companion. By that time Nick began to be conscious of a high, swift tide in his veins, and through his dancing brain came the conviction that he must hold a steady hand on himself and be very serious. He sat up stiff and straight in his chair by the bedside, and his demeanor was grave and solemn. When the sick man spoke of his health and strength, Nick replied with admonishing seriousness:

"I'd be just such a lookin' thing as you are if I stayed indoors like you do. You can't expect to be worth a whoop in hell if you stay in the house and in bed all the time. I'll steal you away from here so that coyote of a Mexican can't get hold of you again, and I'll take you out to Emerson Mead's ranch and put you on a horse and make you ride after the cattle, and sure and you'll be a well man before you know it."

The invalid appeared apprehensive, and, feeling himself weakened by the fear lest something untoward might happen, he asked Ellhorn to give him a drink of brandy from a flask which stood on the mantel. Nick poured the measured dose into a glass, smelt of it, and looked frowningly at the sick man.

"Do you-all mean to say that you drink this stuff, as sick as you are? You can have it if you insist, but I tell you you'll be dead by sundown if you drink it! Sure and you ought to be ashamed of yourself, lyin' in bed and soakin' with brandy, right on the ragged edge of the tomb! That Mexican coyote ought to be shot as full of holes as a pepper box for keepin' this stuff in the room, and I'll do it when he comes back! I've taken a notion to you-all, and I'm goin' to carry you off on my horse to Emerson's ranch and make a well man of you. But you must sure let brandy and whisky alone,

I'll tell you that right now! And I'll put this out of your sight, so it won't be a temptation to you. I'll drink it myself, just to save your life!"

He poured the glass full and drank it off without a breath. Then he began to lecture the thoroughly frightened invalid on the evil results of too much indulgence in strong drink. "Look at me!" he solemnly exclaimed. "I used to drink just as bad as you do, and where did it bring me! Yes, sir! I've had feathers enough in my time to make me a good bed, but I scattered and wasted 'em all with whisky and brandy, just as you're doin' now, and here I am a-layin' on the hard ground! But I've quit! No, sirree! I don't drink another drop, unless it's to save a friend, same as I'm drinkin' this."

When the Mexican nurse returned he found his patient fainting from fright, and a very drunken man solemnly marching up and down the room, flourishing an empty flask and uttering incoherent remarks about the evils of strong drink and the certainty of death.

"I've saved him!" Nick proudly exclaimed to the Mexican. "I've saved his life! He'd 'a' been drunk as I am, and dead, too, if I hadn't drunk all the brandy myself! I didn't let him touch a drop!"

The nurse pitched him out of the room and locked the door behind him, and he, after a dazed stare, stalked off indignantly to the front entrance. A Chinaman was passing by, with placid face, folded arms and long queue flopping in the wind. Ellhorn grabbed the queue with a drunken shout. The man yelled from sudden fright, and started off on the run with Ellhorn hanging on to the braid, shouting, his spurs clicking and his revolver flapping at his side. Nick's yells and the Chinaman's frightened screams filled the street with noise and brought people running to see what was happening. Ellhorn whipped out his knife and cut off the queue at the Chinaman's neck, and the man, feeling the sudden release from the grip of the "white devil" behind him, ran with flying leaps down the street and at the end of the block banged against Jim Halliday, himself running to learn the cause of the uproar. The Chinaman knew Halliday's office, and with wild gestures and screaming chatter demanded that he should go back and arrest the man who had despoiled him of his dearest possession. Halliday, guessing that his enemy was too drunk to offer much resistance, hastened at once to the task, and in five minutes Nick Ellhorn was locked in the jail.

Emerson Mead at once went to work to get his friend out on bail. He saw the sheriff, John Daniels, go into the White Horse saloon and hurried after him. As they stood facing each other, leaning against the bar and talking earnestly, Mead saw Daniels flash a look of intelligence and nod his head slightly to some one who had entered from a back room toward which Emerson's back was turned. Instinctively he reached for his gun, and Jim Halliday grabbed his right wrist with both hands while John Daniels seized his left. With the first touch of their fingers, the remembrance flashed through his brain that he had left his revolver on the table in his room. He would have thought it as impossible to forget that as to forget his trousers, but the thing was done, and here was the result. He shrugged his shoulders and said quietly:

“You’ve caught me unarmed, boys. I’m at your service—this time.”

They looked at him in doubting surprise. To catch Emerson Mead unarmed seemed a most unlikely fairy tale. The two men held his arms and Daniels called a third to search him. Mead flushed and bit his lip.

“I’m not used to having my word doubted,” he said, “but I can’t blame you for doubting it this time. I can hardly believe it myself. Jim, you’ve struck just the one chance in a thousand years.”

Halliday laughed. “Well, I’ve been lucky twice to-day, and I reckon I haven’t worn out the run yet.”

Mead smiled indulgently down from his superior height, and said: “Work it while it runs, Jim; work it while it runs. You can have your innings now, but mine won’t be long coming.”

“Well, you won’t have any chance to get yourself hauled over the back wall this time, I’ll tell you that right now.”

They hurried their prisoner off to jail, and in a few minutes he also was locked behind thick adobe walls.

CHAPTER XII

Albert Wellesly never made a new investment, nor allowed any change to be made in property in which he was interested, without first making a thorough personal inspection. For that reason he spent a number of busy days at the ranch, near the close of the round-up, inspecting the range and debating with Colonel Whittaker whether it would be better to enlarge it or to run the risk of overstocking by increasing the number of cattle on the land which they already held. They decided that if they could get control of certain springs and surrounding ranges, especially Emerson Mead's Alamo and Cienega springs and another belonging to McAlvin, which joined the range they already held, it would be exactly what they needed.

"These water holes would be worth a lot to us," said Colonel Whittaker, "but it would be just like these contrary cusses to refuse to sell at any price, especially to us."

"Then they'll have to be persuaded," Wellesly replied.

It was necessary for Colonel Whittaker to return to Las Plumas before they had quite finished their inspection, and Wellesly decided to remain a little longer and go back to town alone. Whittaker hesitated over the arrangement, for he knew that Wellesly had neither the instinct nor the training of the plainsman, and that he was unusually deficient in that sense of direction which is the traveler's best pilot over monotonous levels and rolling hills.

"Do you think you can find your way?" he said. "One of the boys can guide you over the range, and when you start back to town, unless you are perfectly sure of yourself, you'd better have him go with you, as far as Muletown, at least."

"Oh, I'll have no trouble about getting back," Wellesly replied. "It's a perfectly plain, straight road all the way, and all I'll have to do will be to follow the main track. I'll stay here two days longer and I'll take two days

for the trip to town. You can expect me—this is Monday—some time Thursday afternoon.”

The misadventure of Nick Ellhorn, which landed both him and Emerson Mead in jail, was on Tuesday afternoon, and it was early the next morning that Albert Wellesly left the ranch house and rode down through the foothills. He decided that the horse knew more about the road than he did, and would do just as well if left to its own guidance. So he let the reins lie loosely on its neck and, forgetful of his surroundings, was soon absorbed in a consideration of the problems of the cattle ranch. Well down toward the plain the road forked, one branch turning sharply to the right and the other to the left. The horse which he rode had, until recently, belonged to Emerson Mead, from whom the Fillmore Company had bought it. Left to its own will, at the forks it chose the left hand branch and cantered contentedly on over rising foothills. Wellesly's thoughts turned from the ranch to other business ventures in which he was interested. It was a long time and the horse had covered much ground before he finally looked about him to take his bearings and consider his progress. Looking at his watch he thought he ought to be well down in the plain toward Muletown, and wondered that he was still among the foothills. He had an uneasy feeling that there was something wrong, but he said to himself that he had followed the straight road all the way and that therefore it must be all right. At any rate, it would be foolish not to go straight ahead until he should meet some one from whom he could ask directions. So he rode on and on and the sun rose higher and higher, and nowhere was there sign of human being. But at last he saw in the distance a splotch of green trees through which shone whitewashed walls. And presently he was hallooing in front of Emerson Mead's ranch house.

A thick-set, elderly man, with a round, smooth, pleasant face, out of which shrewdly looked small dark eyes, came out to see what was wanted. In his knocking around the world Billy Haney had kept fast hold of two principles. One was to find out all that he could about any stranger whom he chanced to meet, and the other, never to tell that stranger anything about himself that was true. In response to Wellesly's question, Haney told him that he was far off the road to Las Plumas, and then by means of two or three shrewd, roundabout questions and suggestions, he brought out enough information to enable him to guess who his visitor was. He knew about

Wellesly's connection with the cattle company and his recent presence at the ranch, and the man's personal appearance had been described to him by Mead and Ellhorn. So he felt very sure of his ground when he shortly surprised the traveler by addressing him by name. Then he told Wellesly that his own name was Mullford, which was the name of a man who owned a cattle range much farther to the south and who had not been engaged in the recent trouble over the round-up. He represented himself as the owner of the place and said that he had been engaged in the cattle business ten years, but that he was not pleased with it and intended to pull out within the next year. It was nearly noon and he insisted that Wellesly should stay to dinner. An idea was dawning in his brain and he wanted time to consider it.

A hammock hung in the shade of the cottonwoods, where the breeze blew cool and refreshing, and he invited Wellesly to stretch himself there until dinner should be ready. A *vaquero* took his horse to the stable and Wellesly threw himself into the hammock and looked up into the green thickets of the trees with a soul-satisfying sense of relief and comfort. His revolver in his hip pocket interfered with his ease and he took it out and laid it on a chair beside the hammock. Then he pulled his hat over his eyes and in five minutes was asleep.

There was only one *vaquero* at the ranch house, and he and Billy Haney and Wellesly were the only human beings within many miles. When the cowboy had taken care of Wellesly's horse Haney called him into the kitchen. The man was tall and sinewy, with a hatchet face, a thin-lipped mouth and a sharp chin.

"Jim," said Haney, "I've got a scheme in my 'ead about that man, and I think there'll be lots of money in it. Do you want to come in?"

"What'll it be worth to me?"

"If there's anything in it, there'll be a big pile and we'll go 'alf and 'alf, and if there isn't—well, of course there's chances to be took in everything."

"What'll it cost?"

"Some work and some nerve, and then a quick scoot."

"All right, Billy. What's your play?"

When they had finished their planning Haney walked softly toward the hammock. A gentle snore from beneath the hat told him that Wellesly was sleeping quietly. He took the revolver from the chair, removed the cartridges from the six chambers and put it back in the same position. Then he walked around to the other side of the sleeper and called him in a hearty tone. Wellesly rose yawning, and they started toward the house for luncheon.

“You’ve forgotten your revolver, sir,” said Billy.

“So I have! I’m not accustomed to carrying the thing, and if you had not reminded me I probably wouldn’t have thought of it again for a week. I don’t believe it is necessary to carry one, anyway, but my friend, Colonel Whittaker, insisted that I should do so.”

“You never know when you’ll need one down in this country,” Haney replied, with a sad shake of the head. “It’s pretty tough, I can tell you. There’s that Emerson Mead outfit. They’re the worst in the southwest. You’d need your gun if you should meet any of them.”

“Yes, our company has had very serious and very sad experience with them.”

“Ah, yes! Poor young Whittaker! I ’eard about ’is death. That was the wickedest thing they’ve ever dared to do. Most everybody in this country ’as lost cattle by them and we’d all be glad to see ’em driven out.”

“They belong to that class of cattlemen,” Wellesly replied, “who start in the business with one old steer and a branding iron, and then let nature take its course.”

Haney laughed uproariously and when he could speak added: “Yes, and in three years they ’ave bigger ’erds than any of their neighbors. You’re right, sir, and the sooner the country gets rid of such men the better. I don’t think, Mr. Wellesly, it’s safe for you to ride alone where you are likely to meet any of that outfit. You know the feeling they ’ave for your company, and what they did for young Will, poor boy, they’d do for you if they got the chance. I’ve got business out your way, over at Muletown, and if you don’t mind I’ll ride along with you that far. That will put you on the right road and if we

should meet any of the Mead outfit they wouldn't be so likely to shoot as if you were alone."

"All right, Mr. Mullford, I'll be very glad of your company. I'm no plainsman, and it is the easiest thing in the world for me to get lost out here among the mesquite and sagebrush, where the country all looks alike. I suppose I have about the least sense of direction of any man who ever tried to find his way across a plain alone."

"You needn't worry about that now. Just leave it to me and I'll get you to Muletown by the shortest route. I know all this country thoroughly, every cow-path and water 'ole in it, and you couldn't lose me if you tried. You needn't think about the road again this afternoon."

Haney buckled on a full cartridge belt and a revolver, put a pair of saddle bags with a big canteen of water in each side over his horse, slung a rifle on one side of his saddle, and they started off along a slightly beaten road straight toward the southeast. Wellesly asked Haney if he were sure they were going in the right direction, and Haney assured him that it was all right and chaffed him a little that he so easily lost the points of the compass. In the distance, a mile or so ahead of them, they saw a man on horseback leading another horse which carried a pack. When Wellesly again said that he did not understand how he could be so entirely at sea, Haney suggested that they overtake this traveler and get his assurance in the matter. They galloped up beside him and called out a friendly hail. It was Jim, the *vaquero* from Mead's ranch, but he and Haney looked at each other as if they had never met before. He assured Wellesly that they were certainly on the road which led to Las Plumas by the way of Muletown, that he knew it perfectly well, having traveled it many times, and that he himself was going past Muletown to the Hermosa mountains.

"You see," he explained, "Muletown ain't on the straight line between here and Las Plumas. It's away off to one side and you have to go quite a ways around to get there. That's what has mixed you up so, stranger. The road has to go past Muletown, because it's the only place on the plain where there's water."

"Well," said Wellesly, "since you both say so, it must be all right. The joke is on me, gentlemen." He took a flask from his breast pocket. "There isn't

much left in this bottle, but as far as it will go, I acknowledge the corn.”

The men each took a drink, Wellesly finished the liquor and threw the empty flask on a sandheap beside the road. Light clouds had risen, so that the sun and all the western sky were obscured and there were no shadows to suggest to him that they were going east instead of west. They were nearing a depression in the Fernandez mountains. Haney pointed to it, saying:

“When we get there we can show you just the lay of the land.”

They passed through the break and a barren plain lay spread out before them bounded by precipitous mountains which swerved on either hand toward the range in which they were riding.

“That,” said Haney, “is the Fernandez plain. You remember crossing that, surely?” Wellesly nodded. “And the mountains over there,” Haney went on, “are the ’Ermosas.”

“The range just this side of Las Plumas,” said Wellesly. “Yes, I am getting my bearings now.”

“I’m going prospecting in them mountains,” said Jim. “I’m satisfied there’s heaps of gold there. I’m going up into that canyon you see at the foot of that big peak. I was in there two weeks ago and I found quartz that was just lousy with gold. You fellows better break away and come along with me. I’ll bet you can’t make more money anywhere else.”

“I don’t care to go prospecting,” said Wellesly, “but if you make a good strike, and develop it enough to show what it is, I’ll engage to sell it for you.”

“Good enough! It’s a bargain!” Jim cried. “Just give me your address, stranger, so I’ll know where to dig you up when I need you.”

Wellesly handed his card and Jim carefully put it away in his pocketbook.

Haney laughed jovially. “You may count me out, pard, on any of that sort of business. I’ve blowed all the money into this damn country that I want to. You’ll never get anything out of it but ’orned toads and rattlesnakes and ‘bad men’ as long as it lasts. If I can pull out ’alf I’ve planted ’ere I’ll skip, and think I’m lucky to get out with a whole skin.”

They trotted across the dry, hot, barren levels of the desert into which they had descended, seeing nowhere the least sign of human life. The faintly beaten track of the road stretched out in front of them in an almost straight line across the gray sand between interminable clumps of cactus and frowsy, wilted sagebrush. Bunches of yellow, withered grass cropped out of the earth here and there. But even these forlorn caricatures of vegetation gave up and stayed their feet on the edges of frequent alkali flats, where the white, powdery dust covered the sand and dealt death to any herbage that ventured within its domain. Hot, parched, forbidding, the desert grew more and more desolate as they proceeded. To Wellesly there was an awe-inspiring menace in its dry, bleaching, monotonous levels. He felt more keenly than ever his own helplessness in such a situation and congratulated himself on having fallen in with his two guides. He wondered that the plain had not impressed him more deeply with its desolation and barrenness when he came out to the ranch. But he had no doubt of the ability and good faith of his two companions and he drew his horse a little nearer to them and said:

“My God! What a place this desert would be for a man to be lost in!”

Then they told him stories of men who had been lost in it, who had wandered for days without water and had been found raving maniacs or bleaching skeletons—the sort of stories that make the blood of any but a plainsman seem to dry in his veins and his tongue to cleave to the roof of his mouth. Told in all their details and surrounded by the very scenes in which their agonies had been suffered, they brought the perspiration to Wellesly’s brow and a look of horror to his eyes. Haney and Jim saw that they made him nervous, and racked their memories and their imaginations for more of the same sort.

They were approaching the mountains and the country around them was broken into barren, rocky hills. The road grew rougher and the mountains towered above them in jagged peaks of seemingly solid rock. The day was nearly ended and Wellesly remembered enough of the distances along the Las Plumas road to be sure that they ought to be approaching Muletown. But in this stern wilderness of rock and sand, human habitation did not seem possible. He looked back across the desert at the Fernandez mountains, standing out sharply against the red sunset clouds, and it

suddenly flashed across his mind that if the sun were setting there they must have been traveling in an easterly direction all the afternoon, which meant that they had been getting farther and farther away from Las Plumas. Enlightened by this idea, he sent a quick, seeing glance along the range of mountains standing out boldly and barrenly in front of them, and he knew it was not the Hermosa range. Haney turned with a jovial remark on his lips and met Wellesly's eyes, two narrow strips of pale gray shining brilliantly from between half-closed lids, and saw that his game had played itself smoothly as far as it would go.

Wellesly disregarded Haney's jest and looking him squarely in the eyes said: "I suppose, Mr. Mullford, if we keep on in this direction a matter of some twenty-five thousand miles we might reach Muletown. But don't you think we would save time if we were to turn around and travel the other way?"

Haney laughed good-naturedly and exclaimed: "You've not got that notion out of your 'ead yet, 'ave you! Say, pard," he added to Jim, "Mr. Wellesly is still turned around. 'E thinks we ought to right about face and take the back track to get to Muletown. What can we do to convince 'im' e's all right?"

Wellesly was watching the two men narrowly, his suspicions aroused and all his faculties alert. Haney's calm, solicitous tone for a moment almost made him think he must be mistaken. But another glance at the rocky, precipitous mountains reassured him that they were not the Hermosas and settled the conviction in his mind that he had fallen into the trap of a pair of very smooth rogues. A still, white rage rose in his heart and mettled his nerves to his finger-tips, as he thought of the plausible pretensions of good will with which they had led him into this wilderness. He scarcely heard Jim's reply:

"I don't know what else he wants. We're going to Muletown, and if he don't want to get lost out on this desert and have the coyotes pickin' his bones inside of a week he'd better come along with us."

"My friends," said Wellesly, in an even tone in which could barely be heard here and there the note of suppressed anger, "if you think you are going to Muletown in this direction, all right, go ahead. That's your funeral. But it isn't mine. If anybody in this crowd is turned around I'm not the man. I

have been, thanks to your very ingenious efforts, but I'm not now, and I'm not going any farther in this direction. Unless you can get a little more light on which way is west I'm afraid we'll have to part company. Good-bye, gentlemen. I'm going back."

He turned his horse squarely around and faced the long, gray levels of the darkening desert. As his eye swept over that forbidding, waterless, almost trackless waste, a sudden fear of its horrors smote through his anger and chilled his resolution. Haney spurred his horse to Wellesly's side, exclaiming:

"Stop, Mr. Wellesly! You can't go back over that desert alone in the night! Why, you couldn't follow the road two miles after dark! You know 'ow uncertain it is by day, and in the dark you simply can't see it at all. The desert is 'ell 'erself in the daytime, and it's worse at night."

Wellesly did not reply, for his resolve was wavering. Jim came beside them, swearing over the delay. "See here," he said, "we've got no time to fool away. If this here tenderfoot thinks he knows better than we do which way we're going, just let him round-up by himself. I've been over this here road dozens of times, I reckon, and I know every inch of it, but I wouldn't undertake to travel a mile after night and keep to the trail. Maybe he can. If he thinks he's so darned much smarter than we are let him try it."

"Can we make Muletown to-night?" asked Haney.

Jim swore a big oath. "Didn't you hear me say I don't do no travelin' on this road at night? No, sir. I know a canyon up in the mountain a ways where there's sweet water and I'm goin' to camp there to-night. If you folks want to come with me and eat prospector's grub, all right, you're welcome."

"Thank you, pard," said Haney. "For my part, I'll be glad to get it. You'd better come too, Mr. Wellesly. It will be sure death, of the sort we've been talking about this afternoon, for you to start back alone."

"You're right," said Wellesly. "I'll go with you."

Jim rode into a canyon which led them into the mountains and for a mile or more their horses scrambled and stumbled over boulders and sand heaps. Then they turned into another, opening at right angles into the first, and

after a time they could hear the crunching of wet sand under their horses' feet and finally the tinkle of a little waterfall met their ears.

"Here's the place," said Jim, dismounting.

"Sure this isn't h'alkali?" said Haney.

"You and the tenderfoot needn't drink it if you don't want to," growled Jim. "And you needn't stay with me if you're afraid I'm a-going to pizen your coffee."

"Don't get angry, my friend," said Wellesly. "Mr. Mullford didn't mean anything out of the way. We are both very much obliged to you for allowing us to share your camp."

"Yes," assented Haney warmly, "it's w'ite, that's what it is, to take in two 'ungry fellows and feed us out of your grub. And we'll see that you don't lose by it."

They watered their horses, which Jim hobbled and left to graze upon the vegetation of the little canyon. All three men hunted about in the dim light for wood with which to make a fire, and they soon had ready a supper of coffee, bacon, and canned baked beans, which Jim produced from his pack. Afterward, he brought out a blanket apiece and each man rolled himself up and lay down on the ground with his saddle for a pillow. Wellesly thought the matter all over as he lay on his back and stared up at the moon-lighted sky. He finally decided there was nothing to do but to wait for the next day and its developments, and in the meantime to get as much sleep as he could.

When he awakened the next morning he found that the others were already up and had prepared breakfast. The blue sky was brilliant with the morning sun, but the little canyon was still damp and cool in the black shadow of its walls and of the beetling mountains that towered beyond. Their camp was at the very head of the canyon. On two sides the walls reached high above them in almost perpendicular cliffs. At the end, the rocky barrier was more broken and was heaped with boulders, through which the clear waters of the streamlet came trickling and gurgling and finally leaped over the wall into a little pool. The floor of the canyon was barely more than two hundred feet across, and twice that distance below the pool the walls drew so near together that they formed a narrow pass. In this little oval enclosure grew

several pine trees of fairly good size, some scrub pines and cedars and other bushes, and the ground was well covered with green grass and flowers.

Haney was hearty and jovial in his greeting to Wellesly, solicitous about his physical welfare and genial and talkative all through breakfast. Jim grinned at his jokes and stories and ventured some facetious remarks of his own, and Wellesly told a story or two that sent the others into peals of laughter. He searched his pockets and found three cigars, and the three men sat down on the rocks and smoked them in silence. Each side was waiting for the other to make a move. At last Wellesly said that he would start back across the plain if the others still wished to continue in the same direction. They expostulated and argued with him and reminded him of the probability that he could not find his way alone, and of the dangers from heat and thirst which he would have to face.

Wellesly guessed that they wanted money and were trying to force him into making an offer. He held to his determination and while they talked he saddled and mounted his horse. Then they tried to beat down his resolution by picturing to him the certain death he would meet on the waterless plain. In his heart he was really very much afraid of that scorching, sandy waste, but he let no sign of his fear show in his face as he curtly replied:

“I’m very much obliged to you for all your concern about my welfare, but I’ll be still more obliged if you won’t worry about me any more. I’m going back and I’m going to start now, and if you are so sure I’ll get lost and die you can come along a week or so later, hunt up my bones and collect the reward that will be offered for news of me.”

At that suggestion Jim glanced hastily at Haney and Wellesly saw the Englishman shake his head in reply.

“We don’t want to be responsible for your death, Mr. Wellesly,” Haney began, but Wellesly cut him off short:

“You won’t be. I release you from all responsibility, after I leave you. Good morning, gentlemen.” And with a cut of the quirt his horse started. They had been standing near the lower end of the head of the canyon, and as he moved forward the two men sprang in front of him, blocking the narrow pass which gave the only outlet.

“Will you let me pass?” demanded Wellesly, his lips white and his voice trembling with anger.

“We’re not ready for you to go yet,” said Haney, all the joviality gone from his face and voice. His look was that of brutal determination and his voice was harsh and guttural. Jim added an oath and both men drew their guns.

“Then, by God, we’ll shoot it out!” cried Wellesly, whipping his revolver from his pocket. The hammer fell with a flat thud, and with an angry exclamation he clicked the trigger again. With furious haste he went the round of the cylinder. Jim and Haney stood grinning at him, their guns in their hands.

“Something the matter with your pop-gun, I reckon,” said Jim.

Wellesly opened it and looked through the empty cylinder. Then he put it carefully in his hip pocket, rested his hands on the pommel of his saddle and looked the two men slowly over, first one and then the other, from head to foot. At last he spoke:

“Well, whenever you are ready to make your proposition I will listen to it.”

“We ’aven’t any proposition to make,” Haney replied. “We’re not ready to leave ’ere yet, and we’re not willing for you to risk your life alone on the desert. That’s all there is about it.”

“Oh, very well! I can stay here as long as you can,” Wellesly replied, dismounting. He unsaddled his horse, hobbled it and turned it loose to graze. Then he sat down in the shade of a tree, while the others still held guard over the narrow pass. He had made up his mind that he would not offer them money. He would watch his chance to outwit them, he would match his intelligence against their cunning, his patience against their brute force. It would be worth a week’s captivity to turn the tables on these two rogues and get back to civilization in time to set at work the police machinery of a hundred cities, so that, whatever way they might turn, there would be no escape for them. He turned several schemes over in his mind as he watched Haney preparing their noon meal of bread, coffee, beans and bacon. Jim was taking a pebble from the shoe of one of the horses. Wellesly sauntered up and watched the operation, asked some questions about the

horses and gradually led Jim into conversation. After a time he broke abruptly into the talk with the question:

“What is the name of these mountains?”

“The Oro Fino,” Jim answered promptly. Then he remembered that he and Haney had been insisting that they were the Hermosas ever since the day before and he stammered a little and added:

“That is, that’s what the—the Mexicans call them. The Americans call them the Hermosas.”

“So you told me last night,” Wellesly answered calmly, “but I had forgotten.”

He remembered the name and recalled a topographical map of the region which he had looked at one day in Colonel Whittaker’s office. He remembered how the three ranges looked on the map—the Hermosas, the first range east of Las Plumas, with the wide Fernandez plain lying beyond, then the Fernandez range, more like high, grassy hills than mountains, with only their highest summits barren and rocky, and separated from the Oro Fino—the Fine Gold—mountains, by the desert they had crossed the day before. He recalled the descriptions he had heard of these Oro Fino mountains—high, barren, precipitous cliffs, separated by boulder-strewn canyons and cleft by deep gorges and chasms, a wild and almost impassable region. He remembered, too, that he had been told that these mountains were rich in minerals, that the whole rocky, jumbled, upreared, deep-cleft mass was streaked and striped and crisscrossed with veins of silver and gold, turquoise, marble, coal and iron, but that it was all practically safe from the hand of man because of the lack of wholesome water. Alkali and mineral springs and streams there were, but of so baneful nature that if a thirsty man were to drink his fill but once he would drink to his death. Recalling these things, Wellesly concluded that this trickling spring of sweet, cool water and the little green canyon must be rare exceptions to the general character of the mountains and that this must have been the objective point of his captors from the start.

Along with the awakened memories came also a sudden recollection of a tale once told him in Denver by a prospector, whom he was grubstaking for

the San Juan country, of a lost mine in the Oro Fino mountains of New Mexico. He was able to recall the salient points of the story and it occurred to him that it might be useful in the present emergency. While they ate dinner Wellesly spoke again of the dangers of the desert and of the risks he knew he would be taking if he should attempt to cross it alone.

“With my deficient sense of direction,” he said, “I should probably wander all over it a dozen times before I could find my way out.”

“You’d be dead long before that time,” said Jim.

“Yes, it’s very likely I would,” Wellesly calmly assented.

“Of course,” said Haney, “our friend ’ere ’asn’t got much grub and if you and me continue to live off ’im it won’t last long. ’E knows a way to get through these mountains and go down to El Paso, but of course ’e can’t be expected to pilot you down there for nothin’. Now, if you made it worth ’is w’ile, I dare say ’e’d be willin’ to stop ’is prospecting long enough to get you safe into the town. Eh, pard?”

“Yes, I can,” Jim replied, “if the tenderfoot wants to make it enough worth while. I ain’t stuck on the trip and I don’t want to fool any more time away around here. You two have got to decide what you’re a-going to do mighty quick. I want to get to prospectin’, and if I have to tote you-all down to El Paso you’ll have to pay big for the favor.”

Wellesly did not reply and Haney, who was looking critically at a big boulder on the top of the canyon wall, burst into the conversation with an exclamation:

“My stars! Do you see that ’uge boulder up there, just above the narrow place in the canyon? ’Ow easy it would be, now, wouldn’t it, for two men to get up there and pry it loose. It would crash down there and fill up that whole blamed trail, wouldn’t it, Mr. Wellesly?”

“Yes, and effectually wall up anybody who might have had the bad luck to be left in here,” Wellesly dryly replied. “But speaking of the dangers of crossing the desert,” he went on, “I remember a story told me once in Denver by a prospector who had been down in this country. It was about a lost mine, the Winters mine. Did you ever hear of it?”

“Yes,” said Jim, “I have. I’ve heard about it many a time. It’s in these mountains somewhere.”

“It was so rich,” Wellesly went on, “that Dick Winters knocked the quartz to pieces with a hammer and selected the chunks that were filled with gold. He said the rock was seamed and spotted with yellow and he brought out in his pocket a dozen bits as big as walnuts that were almost solid gold.”

The two men were listening with interested faces. Jim nodded. “Yes, that’s just what I’ve heard about it. But there are so darn many of them lost mines and so many lies told about ’em that you never can believe anything of the sort.”

“What became of this chap and ’is mine?” asked Haney.

“I reckon the mine’s there yet, just where he left it,” Jim answered, “but Dick went lunny, crossin’ the desert, and wandered around so long in the heat without water that when he was picked up he was ravin’ crazy and he didn’t get his senses back before he died. All anybody knows about his mine is what he said while he was lunny, and you can’t put much stock in that sort of thing.”

“I don’t know about that,” said Wellesly. “I had the story from the man who took care of him before he died, the prospector I spoke of just now—I think his name was Frank, Bill Frank. He said that the old man was conscious part of the time and told him a good deal about the strike—enough, I should think, to make it possible to find the place again.”

Haney and Jim were looking at him with intent faces, their interest thoroughly aroused. Wellesly decided to draw on his imagination for any necessary or interesting details that the prospector had not told him.

“What did he say,” Jim demanded, “and why didn’t he go after it himself?”

“As I remember it, he said that during his delirium Winters talked constantly of his rich find, that he seemed to be going over the whole thing again. He would exclaim, ‘There, just look at that! As big as my fist and solid gold!’ ‘Look at that seam! There’s ten thousand dollars there if there’s a cent!’ and many other such things. He would jump up in bed and yell in his excitement. If he was really repeating what he had seen and done while

he was working his strike, Bill Frank said that he must have taken out a big pile, probably up near a hundred thousand dollars. That he really had found gold was proved by the nuggets in his pockets.”

“Did Winters tell him what he’d done with the ore?” Jim demanded. He was evidently becoming very much interested.

“Frank told me that at the very last he seemed to be rational. He realized that he was about to die and tried to tell Frank how to find the gold he had taken out. He said he had hidden it in several places and had tried to conceal the lead in which he had worked. It is likely that the strike, whatever it was, had upset his head a little and made him do queer things before he got lost and heat-crazed on the desert.”

“Well, did this man tell you where he’d hid the dust?”

“Do you know where it is?”

“My informant, Bill Frank, said that Winters was very weak when he came to his senses and could only whisper a few disconnected sentences before he died, and part of those,” Wellesly went on, smiling at the recollection, “Frank said ‘the darn fool wasted on gratitude.’ But he gathered that the Winters mine was somewhere in the southern part of the Oro Fino mountains, not far from a canyon where there was good water, and that he had hidden the nuggets and dust and rich rock that he had taken out, in tin cans and kettles and bottles in another canyon not far away.”

“Why didn’t your chap go and ’unt for it ’imself?” asked Haney.

“He did spend several weeks trying to find it, and nearly died of thirst, and broke his leg falling off a precipice, and had a devil of a time getting out and getting well again. Then he wanted me to grubstake him for another hunt for it, but I think a man is more likely to find a new mine than he is a lost one and so I sent him to the San Juan instead.”

“Lots of men have gone into these mountains hunting for the Winters mine,” said Jim, “but all I’ve known anything about have always gone farther north than this.”

“Yes,” said Wellesly, as easily as if it were not an inspiration of the moment, “Bill Frank told me that when he talked about it he always made people think that Winters had said it was in the northern part of the range, but that it was really in the southern part.”

Jim got up and walked away and presently called Haney. Wellesly lay down and pulled his hat over his face. He fell into a light slumber and awoke himself with a snore. He heard the voices of the two men, and so he kept on snoring, listening intently, meanwhile, to their conversation. He could not hear all that they said, but he soon found that they were talking about the lost mine.

“If this here tenderfoot ain’t lyin’,” said Jim, “the Winters mine ain’t far from here. I know these mountains and I know this here spring is the only sweet water within ten miles, yes, twenty of ’em, unless there may be one up so high among the cliffs that nothing but a goat could find it. If Dick Winters’ mine is in the southern part of the Oro Fino mountains it’s somewhere within two miles of us.”

Then he heard them talk about “finishing up” with him and coming back to look for the mine. Haney suggested that as they had enough provisions to last two or three days longer they might spend a day examining the near-by canyons and “finish up” with Wellesly afterward.

“If we find the stuff,” he heard Haney say, “and this chap don’t conclude to be reasonable, we can leave ’im ’ere. If ’e does come to time, we’ll ’ave so much the more.”

Then they walked farther away and Wellesly heard no more. His scheme was coming out as he wished, for they would of course take him with them, and in their search for the lost mine they might become so interested that their vigilance would relax and he would find an opportunity to slip away unobserved. He thought he could find his way out of the mountains by following the downward course of the canyons. That would be sure to bring him to the desert.

After breakfast the next morning Haney said:

“Well, Mr. Wellesly, do you think you would like to go to El Paso tomorrow?”

Wellesly looked him squarely in the eye and replied: "I have no business in El Paso and do not care to go there."

An ugly look came into Haney's face, and Wellesly saw that his captors were ready to throw off all pretense and take extreme measures.

"Well," said Haney; "this is what we've decided to do. We'll give you till to-morrow morning to make up your mind whether you'll go to El Paso and give us ten thousand dollars apiece for taking you there. If you don't want to get away that bad, that big rock will roll down into this canyon and shut up that outlet and you will stay 'ere and starve. We are going to leave you 'ere alone to-day to think the matter over, and we are going to tie you fast to that big tree, so you won't 'ave anything to distract your attention. We'll be back to-night and then you can 'ave your supper and I 'ope we'll find you in a reasonable frame of mind."

Jim approached with a picket rope, and Wellesly whitened with anger. For a moment, earth and sky turned black before him, and before he realized what he was doing he had hit Jim a smashing blow in the jaw. Jim staggered backward, and then, with a howling oath, whipped out and leveled his revolver. Haney, who had grabbed one of Wellesly's wrists and was struggling to keep it in his grasp, jumped between them and shouted in a tone of command: "Don't shoot, Jim, don't shoot! You'll spoil the whole game if you kill 'im!"

Jim lowered his revolver sullenly and vented his anger in vile epithets instead of bullets.

"'Ere, stop your swearing and grab that arm," said Haney. "You can't blame the man for kicking. You or me would do the same thing in 'is place. Now push 'im up against this pine tree and 'and me the rope. I'm sorry we 'ave to treat you this way, Mr. Wellesly, but if you won't be reasonable it's the only thing we can do."

Wellesly struggled at first, but he soon realized that they were much the stronger and wasted no more strength in useless resistance, though grinding his teeth with rage. They tied his arms to his body, and then, standing him upright, bound him close against the tree. They stepped back and Jim shook his fist at the captive.

“I’ll get even with you yet,” he shouted, “for the way you took me in the jaw! If you ain’t ready to do what we want to-morrow morning you won’t get a chance to starve, you hear me shout! I’ll wait till then, but I won’t wait no longer!”

“Shut up, Jim! Don’t be a fool!” said Haney. “After ’e’s meditated about it all day ’e’ll be reasonable.”

Wellesly did not speak, but the two men read a “never surrender” in his blazing eyes. Haney laughed excitedly and said, replying to his look:

“You’ll feel differently to-night, Mr. Wellesly. That rope’s likely to ’ave a big effect on your state of mind. Jim, we don’t want to leave any knives on ’im.”

They went through his pockets and took out everything they contained, dividing the money between them, while Haney took charge of his papers. Then they made ready for their own trip, saddling their horses and preparing to lead the two others.

“We won’t leave ’im the least possibility of getting away,” said Haney to Jim, “even if ’e should ’appen to get loose.”

“He’ll never get out of that rope till we let him out.”

“If the ’orses ain’t ’ere he won’t ’ave any temptation to try. ’E’d never undertake the desert alone and afoot.”

As they started, Haney called out, as good-naturedly as if they were the best of friends: “Good morning, Mr. Wellesly! I ’ope we’ll find you more reasonable to-night.”

Jim took out his revolver and turned in his saddle toward the captive. Haney grabbed his arm.

“Don’t you worry,” said Jim. “I ain’t a-goin’ to kill him, like I ought to do. I’m just a-goin’ to put my mark on him.”

Wellesly heard the clicking of the trigger and the thought sped through his mind that this was his last moment on earth. He saw the flash and heard the report, and then it seemed many long minutes until the whizzing of the

bullet filled his ear and he heard it thump into the bark of the tree beside his head. There was a stinging in the rim of his left ear, where it had nicked out a little rounded segment.

“There!” said Jim, with an ugly laugh, as he put away his gun, “he’s my maverick now, and if anybody else claims him there’ll be war.”

CHAPTER XIII

The next morning after his arrest Nick Ellhorn was released on bail. He came out thoroughly sobered, and when he learned what had been the result of his drunken trick his vocabulary of abusive epithets ran dry in his effort to characterize his conduct.

“How did you happen to get drunk, Nick?” Judge Harlin asked. “I thought you had quit. What did you do it for?”

“Sure, and what did I do it for?” said Nick, and the strong Irish accent in his speech told how deeply he felt his misdeed. For he was always most Irish when most moved. “I reckon,” he went on, and the rolling intonation fell from his tongue like a faint breath from the green isle itself, “I reckon I did it just to show my friends what a measly, coyote, white-livered, tackey, ornery, spavined, colicky, mangy, blitherin’ sort of a beast I am. Sure, now, Judge, I just wanted everybody to know what a gee-whillikined damn fool I can be if I try. And they know, now. Oh, yes, they know. There’s nothin’ more I can tell. Hold on, Judge! Sure, and I’m thinkin’ it all came along of the way I mixed my drinks yesterday when I first struck the Palmleaf. I had beer, and whisky, and some mint juleps, yes, and maybe a cocktail, and I think there was some more beer—yes, there was more beer, and I think likely that I had some brandy up there in that sick man’s room. For I seem to remember that I took a drink of brandy because it was goin’ to kill him if he drank it, and so I took it in his place. Yes, I must have had some brandy, sure, because nothin’ but brandy will set me up that way. Now, just look at that, Judge! Ain’t that a fine lay-out for a man to swallow that knows better? If I’d never been inside a saloon before there’d be some excuse. But me a-mixin’ my drinks like that! It’s plumb ridiculous!”

“Jim Halliday isn’t sorry you did it. He’s as proud as a boy with his first pants over the haul he made yesterday. I hear he’s going to be measured for a brand-new, tailor-made cartridge belt and six-shooter as a memento of the occasion.”

“He’d better hurry up, then, before the occasion turns a back somersault on him. I reckon what he needs most is a new hat that will be about six sizes too big for him a week from now. Jim Halliday’s all right as long as he keeps to his own side of the street, but he’d better not come over here or he’ll be filled so full of bullets that he won’t know himself from a dice box. Say, Judge, what’s become of that John Chiny’s pigtail they say I cut off?”

“I suppose it’s in the hands of the district attorney and will be brought in as part of the evidence when your case is tried.”

“Harry Gillam’s got it, has he? Well, I want it myself. It’s mine, and I want it as a reminder not to mix my drinks. What had I better do about this business, Judge?”

“There’s only one thing you can do, Nick—plead guilty and throw yourself on the mercy of the court, and trust to your confounded Irish luck to get you off easy.”

Nick Ellhorn sent a telegram to Thomson Tuttle to return as quickly as possible and then attended to the shipment of Emerson Mead’s cattle. When he appeared on Main street again in the afternoon he found the town dividing itself into two hostile camps. The Palmleaf and the White Horse saloons were, respectively, the headquarters of the two factions, and men were dropping their work and leaving their shops and offices to join the excited crowds that filled the two saloons and gathered in groups on the sidewalks. On the west side of Main street the general temper was pleased, exultant, and inclined to jeer at the other side whenever a Republican met a Democrat. On the east side, anger and the determination to get even, shone in men’s eyes and sounded in their talk.

In the afternoon news came that the territorial district court had decided in favor of the Democrats a controversy over the sheriff’s office that had been going on ever since the election the previous autumn, when on the face of the returns the Republican candidate, John Daniels, had been declared elected. The Democrats had cried “fraud,” and carried the case into the courts, where it had ever since been crawling slowly along, while Daniels held the office. The election had been so hotly contested that each side had counted more votes than had been registered. But each had felt so confident

that it could cover up its own misdeeds and hide behind its execration of those of its enemy that neither had had any doubt about the outcome.

The news of the decision embittered the quarrel which had been opened by the arrest of Emerson Mead. There were threats of armed resistance if the Democrats should attempt to take the office, and both John Daniels and Joe Davis, who had been the Democratic candidate, went about heavily armed and attended by armed friends as bodyguards, lest sudden death at the mouth of a smoking gun should end the dispute.

Toward night the angry talk and the buzzing rumors again centered about Emerson Mead. It began to be said on the west side of the street that this whole controversy over the sheriff's office had been worked up by Mead and his friends in order that they might get his party into power and, under its protection, harass the cattle company and by arrests and murders ruin their business and take their stock. As the talk whizzed and buzzed along the street men grew more and more reckless and angry in their assertions. They lashed themselves into a state in which they really believed, for the time being, that Mead's continued existence would be a peril to themselves and a danger to the community. Suggestions of lynching were hazarded and quickly taken up and discussed. There were many who thought this the best thing that could be done, and a little group of these got together in the coolest corner of the White Horse saloon and formed themselves into a secret vigilance committee. News of these things came by way of the back door into Judge Harlin's office. He took the lead on the Democratic side of the street and organized a party of twelve of their bravest men and best shots to guard the jail during the night and resist any attempt to take out Emerson Mead. He was careful also to see that news of what he was doing was carried to the leaders on the other side. Late in the evening he and Ellhorn and the rest of their party posted themselves in dark corners and convenient hiding-places in the neighborhood of the jail. An hour or more passed and there was no sign that the vigilance committee had survived the fervors of the afternoon. Finally Nick Ellhorn began to suspect what had happened and he called Judge Harlin to account.

"I call it downright mean, Judge," he complained, "to bring us fellows out here in the hope of havin' a scrimmage and then send the other side word we're here, so they'll be sure not to come! You'll be runnin' on their ticket

next thing we know! Now that we are out here and all ready for business, and nothin' to do, we'd better just slam-bang ourselves against that jail over there and get Emerson out."

Judge Harlin, Ellhorn, Joe Davis and two others were standing in the recess of a deep doorway under a *portal*. On the top of the *portal*, stretched at full length, with one ear over the edge, lay a Mexican listening to their talk. He could not hear Harlin's reply to Nick's suggestion, but one of the others quickly agreed. The listener did not wait to hear more, and in five minutes the back room of the White Horse saloon was in a bustle of excitement. John Daniels and Jim Halliday called for a posse of citizens to help them defend the jail, and the party set out at once on a quick run up the street.

Judge Harlin was trying to restrain Ellhorn's enthusiasm over the idea of assaulting the jail. "No, Nick," he said, "we don't want to do anything illegal. We are all right so far, because we are here to protect human life and uphold the law. But the minute you throw yourself against the doors of the jail you forfeit the law's protection and—"

"Here they come!" Nick interrupted excitedly. His quick ear had caught the hurried tramp of the approaching party.

With Daniels, Whittaker and Halliday in the lead and the others trailing on close behind, they came down the middle of the street on a half run, plainly revealed in the bright moonlight. They expected to find the Democrats battering down the jail door, if they were not already taking the prisoner out, and all their attention was turned toward that building. Presently they saw that the entrance and all the street round about were silent and apparently deserted, and they concluded that the rescuing party was already inside the jail. Daniels turned and made a hushing gesture.

"Softly, boys," he said in a repressed voice. "Come along as quietly as you possibly can and get up to the door in a bunch. Have your guns ready."

Scarcely were the words out of his mouth when from the darkness and silence of a *portal* a block beyond them came a flash and a report, and on the instant a dozen more blazed out along that side of the street, for half a block.

The sheriff's party came to a sudden stop, stunned for a moment by the complete surprise. One of their number threw out his hands and sank down groaning into the dust.

"We're ambushed, boys! It's a trick!" shouted a man in the rear, and he started off as fast as his legs could carry him. Another and another followed his example, and three others picked up the wounded man and carried him away. Daniels and Halliday and three or four others returned the fire, guessing at the location of the enemy, but one of their party fell to the ground and another dropped his pistol as his arm suddenly went limp and helpless.

"It's nothin' but a trick to get us out here and kill us," said Daniels.

"It's no use to stand here and make targets of ourselves in the moonlight," added Halliday. "We'd better get out as quick as we can."

They picked up the wounded man, and supporting him between two others, sought the shadow of the sidewalk and hurried away, followed by a jeering "Whoo-oo-oo-ee" in Nick Ellhorn's well-known voice.

"No more shooting, boys!" shouted Judge Harlin. "We've buffaloed 'em—let 'em go!"

"You're always spoilin' the fun, Judge," Nick complained. "This job was too easy! Now, did you ever see such a pack of cowards start on a lynchin' bee? But I reckon they've learned one lesson and won't try to lynch Emerson again in a hurry."

The next day excitement ran higher than ever. The Republicans, smarting under their defeat, were in a white heat of indignation over what they believed was a deliberate plan to ambush and kill their leading men. The Democrats, while they were jubilant over their victory, were equally indignant over what they declared was an attempt, by the very men who ought to have protected him, to lynch Emerson Mead. In reality, each side had been trying to protect him and uphold the law, but each scoffed at and spurned the story of the other. Main street was in two hostile camps and all the fire-arms in the town that were not already in evidence in holsters and hip pockets, were brought to the center of hostilities and placed within handy reaching distance in shops and offices. Behind the bar in each of the

saloons was a stack of shot-guns and rifles. The sidewalk on each side of the street was constantly crowded, but nobody crossed from one side to the other.

The women began to feel the war spirit and early in the day Judge Harlin's wife and John Daniels' wife, who were ordinarily the dearest friends, passed each other on the street without speaking. The ladies of Las Plumas were accustomed to meet at frequent teas, luncheons and card parties on terms of the greatest cordiality, but long before night, if any one whose masculine affiliations were on one side met one belonging to the other, they passed with a haughty stare.

Sheriff Daniels was much disturbed over the situation, fearing that he would be unable to keep his prisoner in jail. He talked the matter over with his advisers and together they decided that the best plan would be to get Emerson Mead out of town for the present, and accordingly a telegram was sent to the sheriff of the adjoining county asking permission to lodge Mead temporarily in his jail. The Democrats heard of this plan, and Nick Ellhorn fumed indignantly. Judge Harlin was secretly pleased, and contrived to send word to Colonel Whittaker, Sheriff Daniels and Jim Halliday that he approved their plan and would do his best to control the Democratic faction while they were making the change. He did not tell Nick Ellhorn that he had done this, but he reasoned with that loyal friend at great length on the matter.

"But see here, Judge," Nick replied to all his arguments, "I got Emerson into trouble this time and I've got to get him out. If he hadn't been chasin' around alone, tryin' to get me out of the beastly drunken scrape I'd been fool enough to get into, this wouldn't have happened. You know it wouldn't, Judge. It's all my fault, and I've got to get Emerson out of it."

"That's all right, Nick. Your loyalty to Emerson does you great credit. Much more than your judgment does. But if you'll just wait a week or two the grand jury will pronounce on his case, and they're bound to let the bottom out of the whole thing. They'll never find a true bill against him, with no evidence to go on and no proof even that Will Whittaker is dead. Then Emerson will come out a vindicated man and they will have to let him alone after that. His interests will not suffer now by his being detained a few days,

and he will gain in the respect of the community by submitting quietly. Take my advice, Nick, and keep still, and let matters follow their legal course for the next week or two.”

“A week or two, Judge! And let Emerson stay in jail all that time? When he’s no more right to be there than you or me! Sure, now, Judge! and what do you-all take me for, anyway?”

“For a sensible man, Nick, who will see the reason in what I have been saying and will take my advice in the matter.”

Nick leaned his face on his hand and gloomed across the desk at the big judge, who sat calm and judicial on the other side. Judge Harlin pleased himself much by believing that he could handle Nick Ellhorn better than any other man in the county, except Emerson Mead, and he liked to have the opportunity to try his hand, just as he liked to drive a nervous, mettlesome, erratic horse. He could drive the horse, but he could not manage Nick Ellhorn. The tall Texan had learned not to batter words against the judge’s determination, which was as big and bulky as his figure. He simply gave tacit acquiescence, and then went away and did as he pleased. If his scheme succeeded he adroitly flattered the judge by giving him the credit; if it failed he professed penitence and said how much better it would have been to follow the judge’s advice. He saw that Judge Harlin had decided to allow Emerson Mead to stay in jail until the grand jury should meet, so he presently said:

“Oh, I reckon you-all are right about it, Judge, but it’s damn hard on Emerson. But if it’s the only way to keep this blamed town from fallin’ to and gettin’ rid of itself I reckon we’ll have to let him stand it.” He got up and walked up and down the room for a few minutes and then, with his black eyes dancing and a broad smile curling his mustache around the dimple in each cheek, he went to the telegraph office and sent to Thomson Tuttle a telegram which read:

“Get off the train to-morrow at Escondida and ride to Bosque Grande, where you will find Missouri Bill with horses and instructions.” Escondida was the first station on the railroad north of Las Plumas and the Bosque Grande was a river flat, covered with a dense growth of cottonwoods and willow bushes through which the railroad ran, about midway between the

two towns. Missouri Bill was one of Mead's cow-boys who had come in with the herd of cattle.

When it became known that Emerson Mead was to be taken to the Silverado county jail to await the session of the grand jury and that the Democrats would not object to the scheme, the war feeling at once began to abate. The town still rested on its arms and glared across Main street, each party from its own side. There was no more talk of extreme measures and there were no more threats of blood letting. So things went on for a few hours, until the matter of Mead's transfer to the Silverado jail was finally settled. Then all the town looked on while Judge Harlin strolled leisurely across the street, nodded to Colonel Whittaker and Sheriff Daniels, and the three men went into the White Horse saloon and clinked glasses together over the bar. A little later Jim Halliday went to the Palmleaf and he and Joe Davis joined in a friendly "here's luck." After which all the town put away its guns and went quietly about its usual affairs.

The Republicans frankly gave out that Emerson Mead would be taken away on the north bound overland train, which passed through Las Plumas in the middle of the day. Nick Ellhorn decided that this was told too openly to be true. He guessed that the journey would be made on a "local" train which passed through the town in the early morning and that Sheriff Daniels hoped, by thus secretly carrying off his prisoner, to forestall any possible attempt at a rescue. Accordingly, he sent another telegram to Tuttle to be in the Bosque Grande for this train and started off Missouri Bill with two extra horses before daybreak on the second morning after the fight.

With Sheriff Daniels beside him and Jim Halliday walking close behind, Emerson Mead stepped into the rear coach of the "local" train with none to witness his departure other than the handful of regular travelers, and a half dozen well armed Republicans who were at the station to help prevent any attempt at escape. Mead greeted these with smiling good nature, as if there were no thought of quarrel between them, and cast his eyes about for sight of his own friends. Not one could he see. He did not know what plan for his assistance Ellhorn and Tuttle might have schemed, he did not even know that Tuttle had gone away, but he felt sure they would not allow him to be taken away from Las Plumas any more than they would allow him to remain in jail longer than the earliest possible moment at which they could

get him out. So he went along quietly and good-naturedly with his keepers, his eyes watchful and his mind alert, alike for any relaxation of their vigilance which would give him a chance of escape, and for the first sign from his friends.

Nick Ellhorn did not appear on the station platform at all. He rushed up from the opposite side just as the train was starting and jumped on the steps of the smoking car. Inside he saw a man whom he knew, and, sitting down beside him, they smoked and chatted and laughed together until the train reached the edge of the Bosque Grande, when Nick walked leisurely into the baggage compartment which formed the front half of the smoking car. He nodded a friendly good morning to the baggage man, handed him a cigar, lighted a fresh one himself, and with one eye out at the open door stood and bandied a joke or two with the train man. Presently he caught sight of a bunch of horses behind a willow thicket a little way ahead and saw a big, burly figure near the track.

Then he leaped to the top of the tender, and in another moment was sitting with his long legs dangling from the front end of the coal box. “Whoo-oo-oo-ee!” sounded in the ears of the engineer and fireman, above the rattle of the train and the roar of the engine. They looked around, astonished and startled by the sudden yell, and saw themselves covered by two cocked revolvers.

“Stop your old engine before she gets to that trestle yonder or I’ll blow both of you through your headlight!” yelled Nick.

The engineer knew Ellhorn and he yelled back, “What for, Nick?”

“Never mind what for! Stop her quick or—one, two—”

The engineer waited no longer, but let his lever forward with a sudden jerk. The wheels ground and scraped and the train trembled and stood still with the rear coach only a few feet in front of Tuttle’s post.

Inside the car, Halliday, who sat in the seat behind Mead and the sheriff, had walked to the front end of the car and was drinking at the ice-water tank when the train came to a sudden stop. He went to the front platform and looked up the track to see what was the matter. Seeing nothing there he turned to face the rear. By that time Tom Tuttle was on the back platform

and nothing was to be seen in that direction. So he turned to the other side of the platform and looked diligently up and down the road. Sheriff Daniels and his prisoner were sitting on the opposite side of the train from that on which Tuttle was entering. The sheriff stepped into the next seat and put his head out of the window. Mead's faculties were on the alert, and when he heard a quick, heavy step leaping up the back steps of the car he knew, without turning his head, that it was either Tuttle or Ellhorn. He leaned over the back of the seat in front of him and jerked the sheriff's pistol from its holster just as Tuttle stood beside him. Daniels jumped back, as he felt his gun drawn out, and found himself, unarmed, confronted by cocked revolvers in the hands of two of the best shots in the territory. He yelled for Halliday, and Mead and Tuttle backed quickly toward the rear door. The train was moving again as Halliday came rushing in, and Tuttle, disappearing through the back door, transferred his aim from the sheriff to the deputy. Halliday knew well that if he fired he would shoot to his own death, and he paused midway of the car, with his gun half raised, as the two men leaped from the moving train.

"Much obliged!" yelled Nick Ellhorn, jumping to the ground from his perch on the coal box. Daniels and Halliday stood on the rear platform as the three men leaped on the horses which Missouri Bill had ready beside the track. Daniels shook his fist at them in rage, and Halliday emptied the chambers of his six-shooter, but the bullets did no more damage than to cut some hairs from the tail of Mead's horse. Ellhorn waved his sombrero and shouted his loudest and longest "Whoo-oo-oo-ee!" Tuttle yelled "Buffaloed!" and Mead kissed his hand to the two angry men on the rear platform of the departing train. Then they put spurs to their horses and rode away over the plains and the mountains. They stopped over night at Muletown, and reached Mead's ranch about noon the next day.

CHAPTER XIV

Wellesly waited in silence and apparent resignation until his captors disappeared down the canyon and the last sound of the horses' feet stumbling over the boulders melted into the distance. Then he began wriggling his body and twisting his arms to see if there were any possibility of loosening the rope. It would give just enough everywhere to allow a very slight movement of limbs and body, but it was impossible to work this small slack from any two of the loops into one. Wellesly pulled and worked and wriggled for a long time without making any change in his bonds. Then he put all his attention upon his right arm, which he could move up and down a very little. He had a narrow hand, with thumb and wrist joints as supple as a conjurer's, so that he could almost fold the palm upon itself and the hand upon the arm. One turn of the rope which bound his arms to his body was just above the wrist, and by working his hand up and down, until he rubbed the skin off against the bark of the tree, he managed to get this band a little looser, so that, by doubling his hand back, he could catch it with his thumb. Then it was only a matter of a few minutes until he had the right arm free to the elbow. On the ground at his feet lay a match, which had dropped there when his captors rifled his pockets. If he could only get it he might possibly burn through some of the bands of rope. He thought that if he could get rid of the rope across his chest he might be able to reach the match. He worked at this with his one free hand for some time, but could neither loosen nor move it. He picked at it until his finger-ends were bleeding, but he could make no impression on its iron-like strands.

A breeze blew the lapel of his light coat out a little way and there his eye caught the glint of a pin-head. He remembered that Marguerite Delarue had pinned a rose in his buttonhole the day before he left Las Plumas. He had been saying pretty, half-loverlike nothings to her about her hair and her eyes, and to conceal her embarrassed pleasure she had turned away and plucked a rosebud from the vine that clambered over the veranda. He had begged for the flower, and she, smiling and blushing so winsomely that he had been tempted to forget his discretion, had pinned it in his buttonhole. It had fallen out unnoticed and he had forgotten all about it until the welcome

sight of the pin brought the incident back to his memory. With a little exclamation of delight he thrust his free hand upward for the pin, but he could not reach it. Neither could he pull his coat down through the bands of rope. He worked at it for a long time, and finally stopped his efforts, baffled, despairing, his heart filled with angry hopelessness. Again the breeze fluttered the lapel, and with a sudden impulse of revengeful savagery he thrust down his head and snapped at the coat. Unexpectedly, he caught it in his teeth. Filled with a new inspiration, he kept fast hold of the cloth and by working it along between his lips, he finally got the head of the pin between his teeth. Then he easily drew it out, and, leaning his head over, transferred it to his fingers.

He drew a deep breath of exultation. "Now," he thought, "this settles the matter, and I'll soon be free—if I don't drop the pin. My blessed Marguerite! I could almost marry you for this!"

Carefully he began picking the rope with the pin, fiber by fiber, and slowly, strand by strand, the hard, twisted, weather-beaten cords gave way and stood out on each side in stubby, frazzled ends. The pin bent and turned in his fingers, and the blood oozed from their raw ends. But he held a tight grip upon his one hope of freedom, and finally the rope was so nearly separated that a sudden wrench of his body broke the last strands. He put the bent, twisted, bloody pin carefully away in his pocket and, stooping over, found that he could barely reach the match on the ground. He was able to grasp also two or three dry twigs and sticks that lay near it. On the bark of the pine tree to which he was tied were many little balls and drops of pitch. He felt over the surface of the tree as far as he could reach and pulled off all that he could get of this. Then he found that the only part of the rope that he could at once reach and see was that directly in front of his body. He turned and twisted, but there was no other way. If he attempted to burn it anywhere else he would have to guess at the best way to hold the match, and he might waste the precious heat in which lay his only hope.

He stuck the pitch in a ring around the rope where it circled his body just below the stomach. Then he set his teeth together, and with his face gone all white and sick-looking, lighted the match and held it under the pitch. Eagerly he watched the little flames dart upward over the rope. He flattened his body against the tree as the scorching heat reached his skin. The match

burned low, and by its dying flame he lighted one of the dry twigs. It was full of pitch and burned up brightly. The flame leaped up and caught his shirt. Holding the burning stick in his mouth he slapped the fire with the palm of his one free hand and soon smothered it, before it had done more than scorch the skin of his chest. The cloth of his trousers charred under the fire and held a constant heat against his body, and the pain from the blistering wound almost made him forget his desperation. Twice he started impulsively to fling away the tiny brand, but quick remembrance of his desperate situation stopped the instinctive movement, and, with grinding teeth, he held it again under the rope. The smell of the burning flesh rose to his nostrils and sickened him. He felt himself turning faint. "I can not stand it!" he groaned and flung away the burning twig. In an instant he realized what he had done, and stooping over he tried to reach it where it blazed upon the ground. But it was too far away. In an agony of hopelessness he seized the rope with his one free hand and jerked it with all his strength. It broke at the burned place and left him free as far as the hips, although the left arm was still bound to his body.

An empty tin can caught his eye in the grass a little way off. It was out of his reach, but he saw a stick on the ground part way around the tree. By twisting and stretching his body to the utmost he could reach the stick, and by its aid he soon had the can in his hand. The top had been almost cut out, and holding the can in his hand and the flying leaf of tin in his teeth he worked and twisted and pulled until he tore it out. Its edge was sharp and jagged, and sawing and cutting with it he soon freed himself from the remaining bonds of rope. As the last one dropped away and he stood up and stretched himself in the shade of the pine tree he found that he was trembling like a leaf and that a cold sweat covered him from head to foot. Shivering, he stepped out into the hot sunshine.

But he had no time to waste on a nervous collapse. He found some tea in the pack, and hastily stirring up the embers of the breakfast fire, he made the coffee pot full of a brew as strong as he could drink. There was also part of a small sack of flour, and he quickly mixed a paste of flour and water and spread it over the deep, blistered burn on his abdomen. Then, with a can of baked beans in one hand and the coffee pot of tea in the other, he started down the canyon.

The tiny stream from the spring grew smaller and smaller and finally lost itself in the thirsty earth. For a little way farther the straggling vegetation and the moist sand showed its course, but long before he reached the mouth of the canyon all sign of water disappeared and nothing remained but hot sand and barren rocks. When he reached the larger canyon through which they had come up from the plain two days before, he hid behind some huge boulders and watched and listened for sign of his captors. He thought he heard the faint sound of a horse's hoofs far in the distance. He started from his hiding-place and ran down the canyon, hoping to get out of sight, if it should be his two enemies returning, before they could reach the place. He was still trembling with the exhaustion of the forenoon's long nervous strain, and when his foot slipped upon a stone he could not save himself from a fall. He went down full length upon the sand, and half his precious store of tea was spilled. He dared not take the time to go back and make more. There was still left nearly a quart of the strong liquid, and he thought that if he would be very careful and remember to swallow only a little each time it might take him safely across the desert. He hurried on, running where the way was smooth and hard enough, and again clambering over boulders or ploughing heavily through the sand.

When he came to the mouth of the canyon and looked out over the low, rocky hills and the sandy, white waste beyond, the sun was already in its downward course. He was red and panting with the heat, which had been well nigh intolerable between the high, narrow walls of the canyon, and his whole body smarted and glowed as if it had been encased in some stinging hot metal. He carefully studied the sky line of the Fernandez mountains, which rimmed the desert on the west, and marked the pass through which he and his companions had come, impressing it upon his mind that he must keep that constantly before his eyes. It seemed easy enough, and he said to himself that if he just kept his face toward that pass he would have no trouble and that he would certainly reach it before noon the next day. He listened intently for sounds from the canyon, but could hear nothing, and with much relief he decided that he must have been mistaken and that he would be safe from immediate pursuit.

"I'm lucky so far," he said to himself as he started on the faintly marked trail across the barren foothills, "even if I did spill my tea. If they should follow me, it would be my last day on earth. That damned Jim would shoot

me down as soon as he could get near enough.” Then he remembered that this was Thursday, and that Colonel Whittaker would expect him in Las Plumas that afternoon. “He’ll send to the ranch to inquire about me when I don’t show up to-morrow,” Wellesly thought, “and then everybody will turn out to search for me. But, Good Lord! I needn’t pin any hopes to that! I’d be dead and my bones picked and bleached long before anybody would think of looking in this hell hole for me. There would be absolutely no way of tracing me. My only hope is to—now, where is that pass! Yes, there it is. I’m headed all right.”

He walked rapidly over the low, rocky hills, still fearing possible pursuit and frequently looking back, until he reached the sandy levels of the desert. There the trail was so faint that he could scarcely follow it with his eye. He stopped, perplexed and doubtful, for he could not remember that it seemed so blind when he traveled it before. “But there is the pass,” he thought. “I’m headed all right, and this must be the road. It is just another indication of my general stupidity about everything out of doors. I never look at a road, or think about directions, or notice the lay of the land, as long as there is anybody with me upon whom I can depend. I might as well pay no more attention to this trail and strike straight across the desert. If I keep my face toward the pass I’m all right.”

As long as the road kept a straight course across the sand and alkali wastes he followed it. But when it bent away in a detour he chose the air line which he constantly drew from his objective point, and congratulated himself that he would thus save a little space. He tramped along, in and out among the cactus and greasewood, and finally, near sunset, he came upon a great, field-like growth of prickly-pear cactus. The big, bespined joints spread themselves in a thick carpet over the sand and climbed over one another in great hummocks and stuck out their millions upon millions of needles in every direction. The growth looked as if it might cover hundreds of acres.

“So that’s the reason the trail bent like a bow,” thought Wellesly as he looked at the field of cactus in dismay. “I ought to have known there was some good reason for it. If I’m lucky enough to find it again I’ll know enough to stick to it. Well, I must skirt along this field of devil’s fingers till I find the road again. I wonder if I’ll know it when I see it.”

The sun went down, a dazzling ball of yellow fire, behind the rounded, rolling outlines of the Fernandez mountains, and from out the towering crags of the Oro Fino range the moon rose, white and cool, looking like a great, round wheel of snow. Wellesly had planned to keep on with his journey through the greater part of the night, in order to take advantage of the cooler atmosphere. But the trail was so faint he feared he might not recognize it in the less certain light of the moon, and so he decided to stop where he was for the night. With his heel and a sharp-edged stone he stamped in the head of the can of baked beans and with his fingers helped himself to a goodly share of its contents. He forced himself to drink sparingly of what remained of his tea. Not more than a pint was left and he dared take no more than a few sips. To keep from pouring the whole of it down his throat in great gulps strained his will power to the utmost. His whole body clamored for drink. He would seize the coffee pot with a savage grip and carry it half way to his lips, stop it there with gritting teeth, and with conjured visions of men dying with thirst force himself to put it down again. He said to himself that of all the times in his life which had required self-control none had ever made such sweeping demands upon his will power as did this. After he had finished his supper and was ready to lie down on the sand to sleep, he carried the coffee pot some rods away, to the edge of the growth of cactus, and hid it there under the protection of the branching, needle-covered joints of the prickly-pear, where he could not get it without having his hands pierced and stung by the spines. For he feared that his thirst might rouse him in the night and that, with his faculties benumbed with sleep, he might drink the whole of the precious store.

By midnight the air of the desert had cooled enough for him to sleep with comfort, save for the thirst that now and again wakened him with parched mouth and clinging tongue. In the morning, he resolutely ate his breakfast of cold baked beans, helping himself with his fingers, forcing himself to swallow the very last morsel he could choke down, before he took the coffee pot from its hiding-place. His eyelids fell, and with a gasping breath he put it to his lips. Then he summoned all his will power and took two small swallows.

As he plodded through the sand he wondered what would be the outcome of his journey, even if he should succeed in getting safely across the desert and beyond the mountain pass. He remembered that there was no sign of water

and no human habitation between the desert and the ranch where his misfortunes had begun. He had seen no one there but the Englishman, and he wondered whether he would find the place deserted or whether he would run into the arms of other members of the same gang that had lured him away. No matter. He would find water there, and he was ready to face any danger or run any risk for the chance of once more having all the water he could drink.

The sun was well up in the sky and the desert glowed like an oven. Hot winds began to blow across it—light, variable winds, rushing now this way and now that. They made little whirlwinds that picked up the sand, carried it some distance, and then dropped it and died away. Wellesly saw one of these sand clouds dancing across the plain not far away, and instantly the hopeful thought flashed upon him that it was the dust raised by some horsemen. He ran toward it, shouting and waving his hat. It turned and whirled along the sandy levels in another direction, and he turned too and ran toward a point at which he thought he could intercept it. Presently it vanished into the heated air and he stopped, bewildered, and for a moment dazed, that no horsemen came galloping out of the cloud. He looked helplessly about him and saw another, a high, round column that reached to mid-sky, swirling across the plain. Then he knew that he had been chasing a “dust-devil.” He swore angrily at himself and started on, and when next he swept the mountain range with his eye for the pass that was his objective point he could not find it. Suddenly he stopped and shut his eyes, and a shuddering fear held his heart. Slowly he turned squarely around and looked up, afraid and trembling. There were the Fernandez mountains and there was the pass he wished to reach. He had no idea how long he had been traveling in the backward direction. A sudden panic seized him and he ran wildly about, now in one direction and now in another. Panting with the exertion he savagely grasped the coffee pot and drained it of its last drop.

“Now I have signed my death warrant,” he thought, as he threw away the empty vessel. He sank down on the hot sands and buried his face in his arms. For the first time his courage was all gone. Presently he felt the effects of the tea and he stood up, ready to go on.

“It is no use trying to find the road again,” he mused. “It would be just so much lost time and effort. I’ll just keep my eye on the pass and go directly

toward it, as nearly as I can.”

He tried to eat more of the beans, but they stuck in his parched throat. The tin was so hot that it burned his fingers, and, believing they would be of no more use to him, he threw them away. The draught of tea had much refreshed him and he started across the trackless waste of sand and alkali with renewed determination.

He tramped on and on, the sun blazed down from a cloudless sky and beat upon the level plain, and the sand, filled with heat, threw back the rays into the scorching air. The heat seemed to fill the plain as if it were a deep, transparent lake of some hot, shimmering liquid. At a little distance every object loomed through the heat-haze distorted, elongated and wavering. The hot sand burned Wellesly's feet through his boots. The notion seized him that if he touched his body anywhere it would blister his fingers. Even the blood in his veins felt fiery hot and as if it were ready to burst through its channels. The sun seemed to follow him and blaze down upon him with the malicious persecution of a personal enemy. He shook his fist and swore at the ball of fire.

For a long time he kept his eyes resolutely upon the Fernandez pass and would look neither to left nor right. But after a while his brain grew dizzy and his determination faltered. He stopped and looked about him. Off to one side he thought he saw a lake, lying blue and limpid in a circlet of gray sand, and he ran panting toward it, reaching out his hands, and ready to plunge into its cool depths. He ran and ran, until he stumbled and fell with exhaustion. It happened that he lay in the shadow of a big clump of greasewood, and after a little he revived and sat up. Then he rose and looked all about—and knew that the longed-for lake was only the lying cheat of the desert sands. He fastened his eyes again upon the mountain pass and trudged on over the burning waste and through the burning heat, mumbling oaths of threat and anger. His tongue seemed to fill his whole mouth, and tongue and mouth and throat burned like red-hot metal.

The stories he had heard from Jim and Haney constantly haunted him. He could not drive them away. In imagination he saw himself lying on the white, hot sands with open mouth, protruding tongue, black face and sightless eyes. The picture sent a thrill of horror through him and moved his

dizzy, flagging brain to fresh resolution. He stumbled on through the blazing, parching, cruel heat, sometimes falling and lying motionless for a time, then pulling himself up and going on with will newly braced by the fear that he might not rise again. Once he sank, groaning, his courage quite broken, and mumbled to himself that he could go no farther. As he fell the loud whirr of a rattlesnake sounded from the bush of greasewood beside him. Instinctive fear instantly nettled his nerves and he sprang up and leaped away from the hidden enemy. The fear of this danger, of which he had not thought before, steadied his brain once more and helped him bend his will unyieldingly to the task of going on and on and on, forever and forever, through the burning, blasting heat.

Often he turned from his course and wandered aimlessly about in wrong directions, forgetting for a time his objective point and remembering only that he must keep going. Once he came upon human bones, with shreds of clothing lying about, and stood staring at them, his eyes held by the fascination of horror. Finally he forced himself to move on, and after he had tramped through the scorching sand for a long time, he found himself staring again at the bleaching skeleton. Through his heat-dazed brain the thought made way that the fascination of this white, nameless thing had cast a spell upon him and had drawn him back to die here, where his bones might lie beside these that had whitened this desert spot for so many months. Perhaps this poor creature's soul hovered over his death place and in its loneliness and desolation had fastened ghoulish talons into his and would pin him down to die in the same spot. The idea took instant possession of his bewildered mind and filled him with such quaking fear and horror that he turned and ran with new strength and speed, as if the clawing, clamoring ghost were really at his heels.

By mere blind luck he ran in the right direction, and when next he had conscious knowledge of his surroundings he was lying on the ground at the mouth of the Fernandez pass, well up in the mountains, with the white moonlight all about him. Dazedly he thought it would be better for him to lie still and rest, but from somewhere back in his mind came the conviction that there was something upon which he must keep his eyes fastened, some place toward which he must go, and that he must keep on going and going, until he should reach it. Determination rose spontaneously, and he got up and stumbled on, frequently falling, but always soon rising again and

keeping on with his journey. After a long time he saw something that glittered in the moonlight. His first thought was “water!” and with a cry that died in his parched, swollen throat he sprang forward and seized it. But it was only a bottle, a flat, empty whisky flask. He turned it over and over in his hands with a haunting notion that in some way it was connected with his past.

Slowly the recollection shaped itself in his heat-bewildered faculties that he and the two men who were luring him away had drunk from this flask here and that then he had thrown it beside the road. Presently the idea grew out of this recollection that he was on the right road and that soon he would come to the house where there was water. The thought made him spring forward again, and he rushed on aimlessly, thinking of nothing but that somewhere ahead of him there was water. He ran on and on, now this way and now that, falling and lying unconscious, then, revived by the cool night air of the mountains, rising and staggering on again. The sun rose and looked hotly down upon him as he dragged himself along, hatless, haggard, his skin burned to a blister, his eyes red and his swollen, blackened tongue hanging from his mouth.

After a time he caught sight of a clump of green trees with something shining behind them, which he thought was the water he was looking for—water, for which every boiling drop of blood in his body was fiercely calling; water, which his blistering throat and tongue must have; water, for which the very marrow of his bones cried out—water—water—and he ran with all the speed his frenzied longing could force into his legs. Presently he could hear the rustle of green leaves, and he thought it was the purring of wavelets on the bank, the white, shining bank that beckoned him on. He put out his hands to plunge into the cool, bright waves. They struck a blank, white hall, and he fell unconscious beside the doorway of Emerson Mead’s ranch house.

CHAPTER XV

Three horsemen galloped around the curve in the road that half circled the house and the corral and the stables at Emerson Mead's ranch. One of them swung his hat and shouted a loud "Whoo-oo-oo-ee!" But there was no response from the house. Doors and windows were closed and not a soul appeared in sight.

"That's queer," said Tuttle. "What's become of Billy Haney?"

"Boys, there's a man lyin' beside the door!" exclaimed Mead. "Somebody is either drunk or dead!"

They swung off their horses and rushed to the prostrate figure, which lay almost on its face.

"Great God, boys, it's Wellesly, and he's dying of thirst!" cried Mead. "Nick, bring water, lots of it, cold from the pump! Here, Tom, help me put him in the hammock."

They laid him in the hammock, in the cool shade of the cottonwoods, where he had slept, to his own undoing, three days before. They moistened his black, protruding tongue and let a few drops of the cool liquid trickle down his parched throat. They poured water carefully over his head and neck and on his wrists, and then drenched him from head to foot with pailful after pailful of the fresh, cold water.

The patient moaned and moved his head. "He's alive, boys. We'll save him yet," said Mead.

Through dim, half-awakened consciousness Wellesly heard the swish of the water as it poured over his body, and felt the cool streams trickling down his face. He gasped and his dry, cracked lips drew back wolfishly from his teeth as he threw up his hands and seized the cup from which Mead was carefully pouring the water over his head. Mead's fingers closed tightly over the handle and his arm stiffened to iron.

“Softly, there, softly,” he said in a gentle voice. “I can’t let you drink any now, because it would kill you. You shall have some soon.”

With a choking yell Wellesly half raised himself and clung to the cup with both hands, trying to force it to his mouth. Nick Ellhorn sprang to his side and took hold of his shoulders.

“Sure, now, Mr. Wellesly,” he began, and the Irish accent was rich and strong in his coaxing, wheedling tones, “sure, now, you don’t want to be killin’ yourself, after you’ve held out this far. Just you-all do as we say and we’ll bring you through all right. Sure, and you shall be after havin’ all the water you want, but you must take it on the outside first. Ah, now, but isn’t this shower bath nice!”

While he talked he gently forced the patient back and as Wellesly lay down again Mead poured a little water into his mouth.

“If he goes lunny now that’s the end of him,” said Emerson in a repressed, tense voice. “We must not let him get excited. Nick, you’d better stand there and keep him quiet, if you can, and pour water over his face and head and put a little in his mouth sometimes.”

Tuttle carried the water for their use, two pailsful at a time, and Mead kept his body well drenched. Ellhorn stooped over the hammock and continued his coaxing talk, drawling one sentence after another with slurred r’s and soft southern accents. With one hand he patted the patient’s head and shoulders and with the other he dashed water over his face or trickled it, drop by drop, into his mouth. After a while they gave the half-conscious man some weak tea, took off his wet clothes and put him to bed. There they looked after him carefully, giving him frequent but small instalments of food in liquid form and an occasional swallow of water. After some hours they decided he was out of danger and would recover without an illness. Then Nick Ellhorn mounted a horse and rode away. When he returned he carried a burden tied in a gunny sack, which he suspended from the limb of a tree and carefully drenched with water many times before he retired. The next day he anxiously watched the bag, keeping it constantly wet and shaded and free to the breezes. And in the afternoon, with a smile curling his mustache almost up to his eyes, he spread before Wellesly a big, red watermelon, cold and luscious. With delight in his face and chuckling in his

voice he watched the sick man eat as much as Emerson would allow him to have, and then begged that he be given more. To get the melon Ellhorn had ridden fifteen miles and back, to the nearest ranch beyond Mead's.

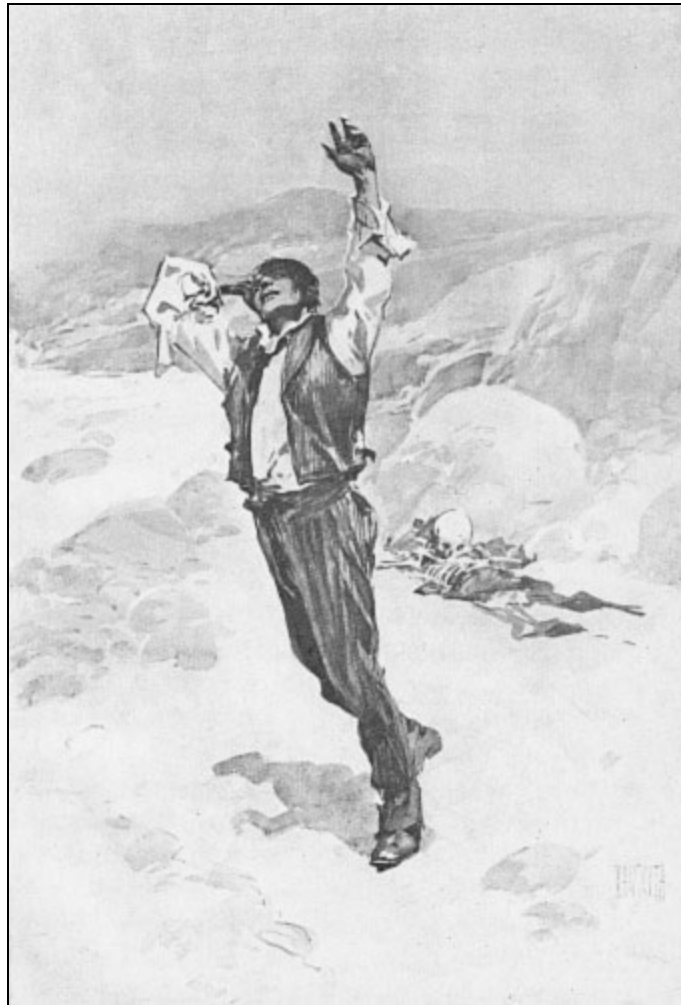
"I never saw a man look happier that you-all do right now," he said as he watched Wellesly.

"And you never saw anybody who felt happier than I do with this melon slipping down my throat," Wellesly responded. "I feel now as if I should never want to do anything but swallow wet things all the rest of my life. By the way, did one of you fellows stand beside me a long time yesterday, coaxing me to lie still?"

"Yes," said Nick, "it was me. We had to make you keep quiet, or you'd have gone lunny because we wouldn't give you all the water you wanted to drink. It would have killed you to drink the water, and if you had yelled and fought yourself crazy for it I reckon you'd have died anyway."

"Well, I guess you saved my life, then. For if you hadn't kept me quiet I'd have fought all creation for water. The notion took hold of me that I was a helpless baby and that my mother was beside me, turning a crank and making it rain into my mouth, and that all I had to do was to lie still and listen to her voice and hold my mouth open so that the drops could trickle down my throat. Lord! How good they did feel! That was how I happened to lie still so contentedly."

"Nick could quiet a whole insane asylum when he gets on that Blarneystone brogue of his," said Emerson.



**“ONCE HE CAME UPON HUMAN
BONES, WITH SHREDS OF
CLOTHING.”—p. [179](#)**

All that day they did not allow Wellesly to do much talking, but kept him lying most of the time in the hammock, in the shade of the cottonwoods, where he slept or luxuriously spent the time slowly swallowing the cool drinks the others brought to him.

In the early evening of the next day, when he had sufficiently recovered his strength, they heard his story. He lay in the hammock, with the mountain breeze blowing across his face and a pitcher of cold tea beside him, and told them all that had happened to him from the time he started for Las Plumas until consciousness failed him, with his hands against the solid wall of

Mead's house. The three tall Texans listened gravely, Mead and Tuttle sitting one on each side of the hammock and Ellhorn leaning against the tree at its foot. They said nothing, but their eyes were fastened on his with the keenest interest, and now and then they exchanged a nod or a look of appreciation. When he finished silence fell on the group for a moment. Then Mead stretched out a sun-browned hand and shook Wellesly's.

"I've never been a friend of yours, Mr. Wellesly," he said, "or considered you one of mine. But I want to say, right now, that you've got more grit than anybody I know in the southwest, and I'm proud to have had the chance to save as brave a man as you are."

Tuttle seized Wellesly's other hand and exclaimed, "That's so! That's straight talk! I'm with you there, Emerson!"

Ellhorn walked up to Wellesly's side and put his hand in a brotherly way on the invalid's arm.

"I tell you what, Mr. Wellesly, we've fought you and the cattle company straight from the shoulder, and I reckon we're likely to keep on fightin' you as long as you fight us, but if you're goin' to give us the sort of war you showed that desert—well, I reckon Emerson will need all the help Tom and me can give him!"

Wellesly laughed in an embarrassed way and Ellhorn went on: "Now, just see how things turn out. There's been another war over in Las Plumas and we-all have been fightin' you and your interests and the cattle company and the Republicans for all we were worth. They arrested Emerson again on that same old murder fake, to say nothin' of me for bein' drunk and disorderly, which I sure was, and there was hell to pay for two days. They tried to take Emerson out of town, and Tom and me held up the train they had him on. I buffaloed the engineer while they took care of Daniels and Halliday, and then we pulled our freight. And here we ride up to the ranch, fugitives from justice, just barely in time to save you-all."

Wellesly laughed. "I am very glad you did it. My only regret is that you didn't break jail several days earlier."

"I don't know whether or not you-all understand the position I take about that Whittaker case," said Mead. "I reckon likely you think I break jail

every time you get me in just out of pure cussedness. But I don't. I do it because I think you-all haven't any reason but pure cussedness for puttin' me in. I consider that you haven't any right to arrest me on mere suspicion, and I shall keep on resistin' arrest and breakin' jail just as long as you fellows keep on tryin' to run me in without any proof against me. Why, you don't even know that Will Whittaker's dead! Now, Mr. Wellesly, I'll make a bargain with you." Mead's eyes were fastened on Wellesly's with an intent look which gripped the invalid's attention. Wellesly's eyelids suddenly half closed and between them flashed out the strips of pale, brilliant gray.

"All right, go on. I must hear it before I assent."

"It is this: I won't ask you to have any evidence that I had a hand in the killing of Will Whittaker, if he is dead. But whenever you can prove that he is dead and show that he died by violence, I give you my word, and my friends here, Tom Tuttle and Nick Ellhorn, will add theirs to mine, I give you my word that I'll submit quietly to arrest and will stand trial for his murder. But unless you can do that I shall keep on fightin' you till kingdom come!"

Tuttle and Ellhorn nodded. "He's right!" they exclaimed. "We'll stick to what he says."

Wellesly considered Mead's challenge in silence for a moment. He was wondering whether this was the courage of innocence or whether it was mere bluffing audacity. It was very like the former, but he decided that it must be the latter, because he was quite convinced that Mead had killed Whittaker.

"Of course," he said, "after what you have done for me here—you have saved my life and showed me the greatest kindness and generosity—I can not allow any further proceedings to be taken against you, if I can prevent them, which is not—"

"Oh, hang all that!" Mead interrupted with a gesture of irritation. "I don't expect and don't want anything we have done just now to make any difference with your feelings toward me, or change the policy of the Fillmore Cattle Company. And I don't want it to influence the actions of the Republicans in Las Plumas, either. We didn't do it for that purpose, and I'm

not buying protection for myself that way. What we did was the barest humanity.”

“No, Mr. Wellesly,” Nick Ellhorn broke in, “you needn’t have it on your conscience that you must be grateful to us, because if we hadn’t saved you the Republicans over in Plumas would have said that we killed you. We sure had to save you to save our own skins.”

There was a general laugh at this, and Mead added quietly: “As it was my men who were to blame for your condition, I suppose I would have been, in a way, responsible.”

Tuttle rose and began walking about uneasily. “When are we goin’ to start after ’em, Nick?” he said.

“I’m ready whenever you are.”

“All right. To-morrow morning, then.”

Wellesly looked up in surprise. It was the first word he had heard from either of the three concerning his captors, and he was startled by the calm assurance with which Tom had taken it for granted that he and Nick would “go after ’em.” “You two won’t go alone!” he exclaimed.

“We’re enough,” Tuttle replied, a grim, expectant look on his big, round face.

“You bet we are!” added Nick. “If they see Tom and me comin’ they’ll know they’ve got to give up. They’ve seen us shoot, and that scrub, Haney, has got some sense, though I reckon Jim would be just fool enough to get behind a rock and pop at us till we blowed his brains out.”

“Oh, I say, now! This is a foolhardy scheme! Let them go, and if they come out of there alive we’ll get hold of them somehow. It would be dangerous to the last degree for you two alone to attempt to bring them out across that desert.”

“Don’t you worry,” said Nick. “We ain’t ’lowing to bring ’em out.”

The next morning Tuttle and Ellhorn, with two loaded pack horses, set out on their journey to the Oro Fino mountains, where they felt sure the two

kidnappers would still be engaged in their hunt for the lost Winters mine. Mead had already sent word to the Fillmore ranch that Wellesly was at his house and that some one might meet them at Muletown that afternoon and carry him on to Las Plumas.

When the two men parted they looked each other in the eyes and shook hands. Wellesly began to acknowledge his debt of gratitude. Mead cut him short.

“That’s all right, Mr. Wellesly,” he said, “but I don’t want you to think for a minute that I expect this little affair to make any difference in our relations. In the cattle business I still consider you my enemy, and I propose to fight you as long as you try to prevent what I hold to be just and fair dealing between the Fillmore Company and the rest of us cattle raisers. We still stand exactly where we did before.”

Wellesly smiled admiringly. “Personally, I like your pluck, Mr. Mead, but, if you will pardon my saying so, I think it is very ill-advised. I’ll frankly admit that you’ve beaten us this year at every turn. But you can’t keep up this sort of thing year after year, against the resources and organization of a big company. The most distinctive commercial feature of this period is the constant growth of big interests at the expense of smaller ones. It is something that the individual members of a big concern can’t help, because it is bigger than they are. Our stock-holders will undoubtedly wish to enlarge their holdings and increase their profits, and I, being only one of a number, can have no right to put my personal feelings above their interests. You ought to see that the result is going to be inevitable in your case, just as it is everywhere else. The little fellows can’t hold their own against the big ones. I am telling you all this in the most friendly spirit, and I assure you it will be to your interest to take my advice and compromise the whole matter. I’ll guarantee that the Fillmore people will meet you half way, and I am sure it will cost you less in the long run.”

As he listened to Wellesly the good-natured smile left Mead’s face, his lips shut in a hard line, and the defiant yellow flame, the light of battle, which his friends knew to be the sign that he would fight to the death, leaped into his eyes. He stared into Wellesly’s face a moment before he spoke.

“Compromise! I’ve got nothing to compromise! I reckon that means that you want my two water holes and grazing land that join yours! Well, you can’t have them! But if you want any more fight over this cattle business you can have all you want, and whenever you want it!” And he turned on his heel and walked away. “I reckon they would like me to compromise,” he said to himself. “It would be lots of money in their pockets, and holes in mine. It’s a pity that a man with Wellesly’s grit should be such a hog!”

Wellesly shrugged his shoulders and climbed into the carriage that was to take him to Las Plumas. “I can’t help it,” he thought, “if he chooses to look at it that way. I told him the truth, and I put it in the kindest way. The little fellows are sure to go down before the big ones. That is the law that governs all commerce nowadays. He is bound to be eaten up, and he ought to have sense enough to see it. He’d save himself trouble and money if he would take my advice, compromise, and get out now with what he can. He can’t stop things from taking their natural course, and the more he fights the sooner he’ll go under. Of course, I don’t like to do anything against him, after he has saved my life, but my private sentiments can’t interfere with the company’s interests, and measures will have to be taken before next fall’s round-up to put a stop to this whole thing. I offered the olive branch, and he refused it, and now he can have all the war he wants. He is the head and backbone of all the opposition to us, and if we were rid of him the Fillmore Company could double its profits. I don’t doubt for a minute that he killed Will Whittaker, and if we could prove it that would solve the whole matter. He said he would submit to arrest and trial if we could prove that Will died a violent death. That means, of course, that nobody saw him commit the murder and that he has hid the body where he thinks it can’t be found.

“Then it must be very much out of the way, where he is sure nobody would think of looking for it. Probably it isn’t any where near the traveled road, the cattle ranges, nor the ranches in the foothills. It must be in some out of the way corner of the Fernandez plain. Whittaker says the searching parties have been all over this part of the country, so it must be farther up toward the north. The White Sands are up that way, I remember, and if a body were buried there, deep enough, it might as well be at the bottom of the sea. Yes, I think that’s a pretty good idea. Whittaker must send a searching party up to the White Sands as soon as he can get one together. If we can find that

body—there's *adios* to Emerson Mead and the fight against us. He'll have to hang or go to the penitentiary for life."

When Wellesly reached Las Plumas he found the town basking in peace and friendliness. Colonel Whittaker and Judge Harlin were enjoying a midday mint julep together over the bar of the Palmleaf saloon; John Daniels and Joe Davis were swapping yarns over a watermelon in the back room of Pierre Delarue's store, while Delarue himself was laughing gleefully at their stories, and Mrs. Harlin was assisting Mrs. Daniels in preparations for the swellest card party of the summer, which the sheriff's wife was to give that afternoon.

In the late afternoon Wellesly sat beside Marguerite Delarue on her veranda and told her the story of his abduction and of his fight, which he had come so near to losing, with the fiends of heat and thirst. He showed her the bent and bloody pin which had helped to liberate him from his captivity in the canyon and in soft and lover-like tones told her that he owed his life to her and that a lifetime of devotion would not be sufficient to express his gratitude. But he stopped just short of asking her to accept the lifetime of devotion. She was much moved and her tender blue eyes were misty with tears as she listened to the story of his sufferings. He thought he had never seen her look so sweet and attractive and so entirely in accord with his ideal of womanly sympathy. When he told her how Emerson Mead and his two friends had worked over him and by what a narrow margin they had saved him from severe illness and probably from death, her face brightened and she seemed much pleased. She asked some questions about Mead, and was evidently so interested in this part of the story that Wellesly, much to his surprise, felt a sudden impulse of personal dislike and enmity toward the big Texan. That night, as he sat at his window smoking and looking thoughtfully at the lop-sided moon rising over the Hermosa mountains, he was thinking about Marguerite Delarue and the advisability of asking her to marry him.

"Undoubtedly," he owned to himself, "I think more of her than I usually do of women, because I never before cared a hang what their feelings were toward other men. I must have been mistaken in thinking there was anything between her and Mead. Her heart is as fresh as her face, and I can go in and take it, and feel there have been no predecessors, if I want to. Do I

want to? I don't know. She's handsome and she's got a stunning figure. Her feet aren't pretty, but they would look better if she didn't wear such clumsy shoes. Well, I'd see that she didn't. She seems to be sweet and gentle and sympathetic, and the sort of woman that would be absorbed in her husband and his interests. She's overfond of flattery, moral, mental and physical. Gets that from Frenchy, I suppose, for you can start him strutting like a rooster any time with a dozen words. But that isn't much of a fault in a wife, after all, for if a fellow can only remember about it it's the easiest way in the world to keep a woman happy. Well, I'll think about it. There are no rivals in the field, and it will be time enough to decide when I make my next visit to Las Plumas."

The next day he went to tell Marguerite good-bye and sat talking with her a long time upon her veranda. Las Plumas had noticed the frequency of his calls at the Delarue house on his last trip to the town, and when it saw him there again two days in succession it felt sure that a love story was going on under the roses and honeysuckles. The smoke of the engine which carried him away had scarcely melted on the horizon before people were saying to one another that it would be a splendid match and what a fine thing it was for Marguerite Delarue that so rich a man as Wellesly had fallen in love with her.

Judge Harlin at once drove out to Emerson Mead's ranch in order that he might learn, from Mead's own lips, exactly what had happened to Wellesly and what sort of a compact Mead had made with him concerning the finding of Will Whittaker's body. They sat under the trees discussing Wellesly's character, after Mead had told the whole story down to their parting at Muletown.

"By the way," said Harlin, "they are saying, over in town, that Wellesly is stuck on Frenchy Delarue's daughter, and that they are to be married next fall. She is a stunning pretty girl, and as good as she is pretty, but it seems to me rather odd for Wellesly to come down here to get a wife. He's the sort of man you would expect to look for money and position in a wife, rather than real worth."

CHAPTER XVI

When Thomson Tuttle and Nick Ellhorn reached the little canyon in the Oro Fino mountains they saw that the two would-be kidnappers must have been there since Wellesly's departure for three of the four horses were quietly grazing, with hobbled feet, beside the rivulet. They speculated upon what the absence of the fourth horse might mean while they staked their own beasts and started on the trail of the two men. Up the larger canyon a little way they saw buzzards flying low and heavily.

"That looks as if one of 'em was dead," said Nick.

"It would be just like the scrubs," Tom grumbled, "for both of 'em to go and die before we get a pop at 'em. I want to see the color of their hair just once. Confound their measly skins, they might have got Emerson into a worse scrape than this Whittaker business."

They were both silent for some moments, watching the buzzards as they swooped low over some dark object on the floor of the canyon. As they came nearer they saw that the dead thing on which the birds were feeding was the missing horse.

"They killed it for meat," said Nick, pointing to a clean cut which had severed one hind leg from the body.

"Yes, and not so very long ago, either," Tom assented, "or the buzzards wouldn't have left this much flesh on it, and it would be dried up more."

"Say, Tom, they brought this beast up here to kill it, and they sure wouldn't have brought it so far away if they had wanted the meat down there in that canyon. They must have changed camp."

"Then there's water higher up. They're in here yet, Nick, and we'll find 'em. We must keep our eyes and ears peeled, so they can't get the first pop."

They picked their way carefully up the canyon, watching the gorge that lengthened beyond them and the walls that towered above their heads, listening constantly for the faintest sounds of human voice or foot, speaking rarely and always in a whisper. The floor of the canyon was strewn with boulders large and small, and its sides rose above them in rugged, barren, precipitous cliffs. Nowhere did they see the slightest sign of vegetation to relieve the wilderness of sand and rock and barren walls. Not even a single grass blade thrust a brave green head between forbidding stones. Above them was a sky of pure, brilliant blue, and around them was the gray of the everlasting granite. Except for the sound of their own footsteps, the canyon was absolutely silent. There was no call of animals one to another, or twitter of birds, or whirr of feathered wings, or piping of insects. Now and then a slender, graceful lizard darted silently out of the sunshine to hide beneath a stone, and far behind them in the canyon the buzzards wheeled in low, awkward flights above the carcass of the dead horse. But aside from these no living creature was to be seen.

The sun shone squarely down upon the canyon and the baking heat between its narrow walls would have dazed the brains and shaken the knees of men less hardy and less accustomed to the fierce, pounding sunshine of the southwest. Tuttle stole several inquiring glances at Nick's face. Then he stopped and cast a searching look all about them, carefully scanning the canyon before and behind them and its walls above their heads. He looked at Nick again and then threw another careful glance all about. He coughed a little, came close to Nick's side, wiped the sweat from his face, and finally spoke, hesitatingly, in a half whisper:

"Say, Nick, what do you-all think about Will Whittaker? Do you reckon Emerson killed him?"

Ellhorn shut one eye at the jagged peak which seemed to bore into the blue above them, considered a moment, and replied: "Well, I reckon if he did Will needed killin' almighty bad."

"You bet he did," was Tom's emphatic response.

They trudged on to the head of the canyon and explored most of the smaller ones opening into it. But no trace of human presence, either recent or remote, did they find anywhere. When night came on they returned to their

camp somewhat disappointed that they had seen no sign of the two men. Early the next morning they started out again, and searched carefully through the remaining canyons that were tributary to the large one, climbed again to its head, and clambered over the ridge at its source. There they looked down the other side of the mountain, over a barren wilderness of jagged cliffs and yawning chasms, with here and there a little clump of scrub pines or cedars clinging and crawling along the mountain side. They examined the summit of the peak and walked a little way down the eastern slope, looking into the gorges and searching the scrub-dotted slopes until the sinking sun drove them back to their camp. But they found neither water, save some strongly alkaline springs, nor any trace of human beings. As they discussed the day's adventures over their supper, Tom said:

"There must have been some reason why they killed that horse just where they did."

"Yes," said Nick, "if they had moved their camp to some other canyon higher up, or on the other side of the mountain, they might just as well have driven the beast farther up before they killed it."

"If they had wanted the meat down here," added Tom, "they wouldn't have driven it so far away. They must have wanted it right there."

They looked at each other with a sudden flash of intelligence in their puzzled eyes and Nick thwacked his knee resoundingly. Then he spoke the thought that had burst into each mind:

"There must be a trail up the canyon wall!"



“YOU’VE NOTHING TO FEAR FROM ME. I’LL BE DEAD IN TEN MINUTES.”—p. [206](#)

Early the next morning they were examining more closely than they had done before the walls of the canyon near the carcass. On the right hand side, the same side on which was the canyon where they had their camp, they found a narrow ledge beginning several feet above the boulders which strewn the floor of the canyon at the base of the wall. They found that with care they could walk along it, although in some places it was so narrow that there was scarcely room for Tuttle’s big bulk. Nick was in constant fear lest his friend might topple over, and finally insisted that Tom should go back and wait until he reached the top of the wall or the end of the ledge. Tuttle blankly refused to do anything of the sort.

They were then in the narrowest place they had found, and it was only by flattening their bodies against the rock and clinging with all the strength in their fingers to the little knobs and crevices which roughened the wall that they could keep their footing. Nick, standing flat against the precipice with a hand stretched out on each side, looked over his shoulder at Tom, who was a few feet in the rear. He also was facing the wall, clinging with both hands and shuffling his feet along sidewise, a few inches at each step.

Beyond, the ledge rose in a gradual incline to the top of the cliff, perhaps six hundred feet farther on. Below, the wall dropped abruptly a hundred feet to the boulder covered floor of the canyon.

“Tommy,” said Nick, “you-all better go back. It ain’t safe for a man of your size.”

“Go back! Not much!”

“Well, I shan’t go any farther until you do!”

“Then you’ll have to hang on by your eyelids till I get past you!”

“Tom, don’t be a fool!”

“Don’t you, neither.”

“Tom, you’re the darnedest obstinate cuss I ever saw in my life. You’ll tip over backwards first thing you know.”

“Nick, if Emerson was here it would sure be his judgment that we-all can get to the top of this cliff. So you shut up and go on.”

“I tell you I won’t do it till you go back! Darn your skin, I wouldn’t be as pig-headed as you are for a hundred dollars a minute!”

“Well, I wouldn’t be as big a fool as you are for a thousand!”

“Tommy, if you-all don’t go back, I’ll be no friend of yours after this day!”

“Well, if you don’t go on and shut up that fool talk I don’t want to be friends any longer with any such hen-headed, white-livered—”

“Tom!”

“Well, then, shut up and go on, or I’ll call you worse names than that!”

“You obstinate son of a sea-cook, I tell you I won’t go on unless you go back!”

“Nick, it will take me just about half a minute to get near enough to push you off. And I’m goin’ to do it, too, if you don’t hold your jackass jaw and go on.”

There was silence for the space of full twenty seconds while Ellhorn watched Tuttle edging his way carefully along the narrow shelf. Then he spoke:

“Well, anyway, Tom, don’t you try to take a deep breath or that belly of yours will tip the mountain over and make it mash somebody on the other side!” Then he turned his head and shuffled along toward the top of the cliff.

The shelf widened again presently and they found the rest of it comparatively easy traveling. At one place there were some drops of dried blood on the ledge and in another a bloody stain on the wall at about the height of a man’s shoulders. This confirmed their belief that Haney and Jim had found and climbed this narrow ledge with the meat and camp supplies on their backs. When they reached the top Nick held out his hand and said:

“Say, old man, I reckon we-all didn’t mean anything we said back there.”

Tom took the proffered hand and held it a moment:

“No, I guess not. I sure reckon Emerson would say we didn’t. Nick, what made you get that fool notion in your head that I didn’t have sand to get through?”

“I didn’t think you didn’t have sand, Tommy. I thought—the trail was so narrow, I thought you’d tumble off.” A broad grin sent the curling ends of his mustache up toward his eyes and he went on: “Tom, you sure looked plumb ridiculous!”

Shaking hands again, they turned to their work. They stood on the steep, sloping side of the mountain, which was cracked and seamed with a network of chasms and gulches. A ridge ran slantingly down the mountain and the intricate, irregular network of narrow, steep-sided cracks and gulches which filled the slope finally gave, on the right hand, into the deep, gaping canyon which had been their thoroughfare, and on their left into another, apparently similar, some distance to the south. Farther up, toward the backbone of the ridge, there seemed to be a narrow stretch, unbroken by the gulches, which extended to the next canyon. They made their way thither and walked slowly along, stopping now and then to scan the mountain side or to sweep with their eyes the visible portions of the

canyons below and behind them. They had covered more than half the distance between the two canyons when Tom, who had been studying one particular spot far down the mountain, exclaimed:

“Nick, there’s water down there! See where the top of that pine tree comes up above the rocks, away down there, nearly to the divide?”

“You’re sure right,” said Nick, looking carefully over the ground which Tom indicated. A moment later he went on: “That’s the head of the spring in the canyon where our camp is! You can follow the course of the gulch right along. I reckon that’s where we’ll find what we’re looking for!”

They turned to retrace their steps, their faces eager and alert and their feet quickening beneath them, when through the silence came the dull, far-away thud of a pistol shot. It was behind them and seemed to come from the canyon toward which they had been walking. With one glance at each other they drew their pistols and ran toward its head. They clambered over the boulders and, with reckless leaps and swings, let themselves down to its floor. Pausing only a moment to reconnoiter, they hurried down the gulch, casting quick glances all about them for the first sign of a living being. After a little they stopped and listened intently, each holding a cocked revolver, but not the faintest sound broke the midday stillness.

“Do you reckon it was in this canyon?” said Tom in a hoarse whisper.

“Got to be,” Nick replied, poking out his lower jaw. “We’ve been sniffing the trail long enough. We’ll give them a bait now.”

He raised his revolver to shoot into the air, but even before his finger touched the trigger, a pistol shot resounded from down the canyon and its echoes rolled and rumbled between the walls. An instant later they saw the smoke curling upward and dissolving in the still, clear air, perhaps half way toward the canyon’s mouth. But they could see no sign of man, nor of any moving thing in its vicinity. They hurried on, cautiously watching the walls and the canyon in front of them, and now and then turning for a quick backward glance, to guard against attack in the rear. As they neared the point from which the smoke had risen, they saw that one of the narrow, deep chasms in the mountain side opened there, with a wide, gaping mouth, into the canyon. A mound of debris was heaped in front. Stepping softly,

they peered around the pile of rocks and saw, lying in the mouth of the chasm, a man with a revolver gripped in his right hand. Blood stained his clothing and ran out over the rocks and sand. He was a tall man with a short, bushy, iron-gray beard covering his face. Tuttle and Ellhorn covered him with their revolvers and walked to his side. He put up a feeble, protesting hand.

“It’s all right, strangers. You’ve nothing to fear from me. I’ll be dead in ten minutes.”

“Who killed you?”

“Was it the two ornery scrubs we’re after?”

“I’ve put the last shot in myself. If you’d been half an hour earlier I might have had a chance.”

“What’s the matter? What’s happened? Tom, give him a drink out of the flask.”

“No, give me water,” said the man. “I emptied my canteen this morning.”

Nick lifted his head and Tom held their canteen to his lips. He drank deeply, and as he lay down again he looked at Tom curiously.

“Two days ago I had a fight with two men, and I’ve been lying here ever since. They did me up, so that I knew I’d got to die if no help came. And I knew that was just about as likely as a snowstorm, but I couldn’t help bankin’ on the possibility. So I laid here two days and threw rocks at the coyote that came and sat on that heap of stones and waited for me to die. This morning I drank the last of the water and I said to myself that if nobody came by the time the sun was straight above that peak yonder I’d put a bullet into my heart. I had two left, and I used one on the coyote that had been a-settin’ on that rock watchin’ me the whole morning. I was bound he shouldn’t pick my bones, he’d been so sassy and so sure about it. You’ll find his carcass down the canyon a ways. That tired my arm and I waited and rested a spell before I tried it on myself. But I was weaker than I thought and I couldn’t hold the gun steady, and the bullet didn’t go where I meant it to. But I’m bleedin’ to death.”

“The two men—what became of them? I reckon they’re the ones we’re lookin’ for!” exclaimed Nick.

“Are you? Well, I guess you’ll find ’em scattered down the canyon, or else up there,” and he pointed to the mountain side above. “They couldn’t get very far.”

“Did you kill ’em?” asked Tom anxiously. “You’ve spoiled a job we’ve come here for if you did.”

The man scanned Tom’s face again and a light of recognition broke into his eyes. “I reckon I did,” he replied complacently. “Anyway, I hope so.”

“What was the matter? Did they do you up?”

“Well, I’ll tell you about the whole business. My name’s Bill Frank, and I’ve been here in the mountains since—well, a long time, huntin’ for the lost Dick Winter’s mine. I found it, too. It was right in here behind me, but he’d worked it clean out. I reckon it was nothin’ but a pocket, but a mighty big, rich one, and then the vein had pinched. So then I went to work and hunted for the gold he’d taken out. I found it all, or all he told me about. You see, I knew Dick. I was with him when he died, and he told me what he’d got. There was a Dutch oven and a pail and a coffee pot, all full of lumps, and two tomato cans full of little ones, and a whisky flask full of dust, and a gunny sack full of ore that was just lousy with gold. Much good it will do me now, or them other fellows, either, damn their souls! Well, I’d hid the coffee pot and the pail and the Dutch oven and the whisky flask and one tomato can down by the spring, where I had my camp. I knew pretty well where the rest of it was, after I’d found that much, and I came up here two days ago, in the morning, and looked around till I found the gunny sack. I brought it here and threw it inside this place, which poor Dick Winters had blasted out, never dreamin’ of such a thing as that anybody would show up. Then I went away again to find the other tomato can, and when I came back two men were here packin’ out my sack of ore.”

“What did they look like?” Nick exclaimed.

“One was tall and thin and youngish like, with a bad look, and the other was short and stout and a good deal older, and he had a red, round face.”

“The damned, ornery scrubs! They’re the ones we’re after,” Tom exclaimed, jumping up. “You didn’t kill ’em, stranger?” he added pleadingly.

“I guess I did. I sure reckon you’ll find ’em scattered promiscuous down the canyon. I drew my gun and told ’em to drop it, that it was mine. They began to shoot, and so did I, and I backed ’em out, and made ’em drop the sack, and started ’em on the run. They couldn’t shoot as well as I could, and I know I hit one of ’em in the head and the other one mighty near the heart. I poked my head out for a last blaze at ’em, to make sure of my work, and the short one, he let drive at me and took me in the lung, and that’s the one that did me up. But they’d broken one leg before.”

“Can’t you-all pull through if we tote you out of here?” asked Nick.

Bill Frank shook his head. His breath was beginning to fail and his voice sank to a whisper with each sentence.

“No; I’m done for. You can’t do nothin’ for me.” Then he turned to Tom. “Pardner, I did you a bad trick when I saw you before, though I had to do it. And when I told you good-bye I said I hoped that if I ever saw you again I could treat you whiter than I did that time. Well, I’ve got the chance now. That tomato can and that gunny sack are over there behind your pardner, and you and him can have ’em. The other tomato can and the whisky flask and the coffee pot and the pail and the Dutch oven are under some big rocks behind a boulder south from the spring, if them two thieves didn’t carry ’em away, and you and your pardner can have it all. The trail takes you to the spring.”

Tom was staring at him in wide-eyed amazement, trying to recall his face. Nick exclaimed hurriedly:

“Hold on, pard! Ain’t you-all got some folks somewhere who ought to have this? Tell us where they are and we’ll see that they get it.”

The man shook his head. His breath was labored, and he spoke with difficulty as he whispered: “There ain’t anybody who’d care whether I’m dead or alive, except to get that gold, and I’d rather you’d have it. You’re white, anyway, and you’ve treated me white, both of you, and I’ve always been sorry I had to play Thomson Tuttle here that mean trick, because he was a gentleman about it, and sand clean through.”

Tom was still staring at him. "Stranger," he said, "you've got the advantage of me. I can't remember that I've ever set eyes on you before."

The death glaze was coming in the man's eyes and his failing whisper struggled to get past his stiffening lips.

"I held you up, and held a gun on you-all one night, last spring, up near the White Sands."

"Oh, that time!" Tom exclaimed. "That was all right. I reckoned you-all had good reason for it."

Bill Frank nodded. "Yes," he whispered, "we had to—in the wagon—" Some of his words were unintelligible, but a sudden flash of inspiration leaped through Nick's mind.

"Did you have Will Whittaker's body? Who killed him? Tom, the whisky, quick! We must keep him alive till he can tell!"

The man's lips were moving and Nick put his ear close to them and thought he caught the word "not," but he was not sure. Bill Frank's head moved from side to side, but whether he meant to shake it, or whether it was the death agony, they could not tell. Tom put the flask to his lips, but he could not swallow, and in another moment the death rattle sounded in his throat.

They waited beside the dead man's body until every sign of life was extinct. They closed his eyes, straightened his limbs, and folded his hands upon his breast. Then said Tom:

"Nick, he was too white a man to leave for the coyotes. We must do something with him."

"You're sure right, Tommy. But what can we do? This sand ain't deep enough to keep 'em from diggin' him up, even if we bury him."

Tom looked about him and considered the situation a moment. "We'll have to rock him up in here, Nick, in Dick Winters' mine."

At one side of the wide, blasted out mouth of the deep crack in the mountain from which Dick Winters had taken his gold, and level with the bottom of the crevice, there was a long, oval hollow, half as wide as a man's

body. The solid rock had cracked out of it after some giant-powder blast. They laid the body of Bill Frank in this shallow crypt and began to pile rocks around it. Suddenly Tom stopped, looked at Nick inquiringly, hesitated and cleared his throat.

“Say, Nick,” he blurted out, “it ain’t a square deal to put a fellow away like this. Somebody ought to say something over him.”

“No, you bet it ain’t a square deal,” said Nick. “We wouldn’t like it if it was one of us. But what can we do? There ain’t no preacher here.”

“I was thinkin’, Nick,” Tom hesitated and blushed a deep crimson, “I was sure thinkin’ that maybe—well, I thought—that you-all could say something. You know you always can say something. You-all better say it, Nick.” And without waiting for denial or protest Tom took off his hat and bent his head. Nick flashed a surprised look at his companion, waiting in reverent attitude, hesitated an instant, and then doffed his hat, bent his head and began. And the good Lord who heard his prayer did not need to ask his pedigree, for the Irish intonation with which he rolled the words off his tongue in honey-like waves told his ancestry:

“Good Lord, sure and Ye’ll rest this poor man’s soul, for he was white clean through. Sure, and he was no coward, and no scrub, neither. But the other two—Ye’d better let them fry in their own fat till they’re cracklin’s. You bet, that is what they deserve, and we can prove it. Amen.”

They built a close wall of rock around Bill Frank’s resting place high enough to reach the over-hanging rock, and so heavy and secure that no prowling coyote could reach the body, or even dislodge a single stone. After it was all finished they decided that there ought to be something about the grave to show whose bones rested within it. Nick Ellhorn tore some blank paper from the bottom of a partly filled sheet which he found in his pocket and wrote the inscription:

“Here lies the body of Bill Frank, who was white clean through. He was done up by two of the damndest scrubs that ever died lying down. He killed them both before Tom Tuttle and Nick Ellhorn got sight of the color of their hair, which is the only thing we can’t forgive him.

“P. S. and N. B.—This is the lost Dick Winters’ mine, and there is nothing in it, except Bill Frank’s body.”

They emptied the nuggets of gold from the tomato can and put them in their pockets. Then they folded the paper and put it in the can, with a small stone to hold it in place. Tom found an unused envelope in his pocket, and Nick printed on it, in big capitals, “Bill Frank,” and they pasted it, by means of the flap, on the front of the can. Then they made a place for the can midway of the stone wall, and fastened it in so that it would be held firmly in place by the surrounding stones.

There was an easy trail down one side of the canyon, which Dick Winters had made long before by removing the largest stones. A dribble of blood, dried on the sands, marked it all the way. Perhaps a mile down the gulch it came to a sudden stop in a great heap of debris, and a zigzag path started up the side of the canyon. The two men stopped, following the course of the shelving trail with their eyes, and as they looked there was a rattle of loose stone and sand, and some dark body rolled over the side of the gulch from the top of the path. Their hands flashed to their revolver butts, and stopped there, as they watched its downward course in wonder. They saw the arms and feet of a human form flung out aimlessly as the thing rolled from ledge to ledge, and they tried to catch a glimpse of the face as now and again the head hung over a rock and disclosed for a second the ghastly features. Down it came, with the cascade of loose pebbles before it, and lay still in the hot sand at their feet. It was Jim’s lifeless and mangled body. Nick glanced to the rim of the canyon wall and saw the head of a coyote peering over.

“There’s the beast that tumbled him down,” he whispered, and raised his revolver, but before he could shoot, the thing disappeared.

At this point the canyon walls began to grow less steep, and Dick Winters had taken advantage of the sloping, shelving side to make a zigzag trail to the summit, in some places blasting the solid rock, and in others building out the pathway with great stones. Nick and Tom followed the path to the mountain side above, where little pools of dried blood made a trail which showed the way a wounded man had taken. A little farther they found the

body of Bill Haney, flat on its face, with arms spread out on either side. A coyote slunk away as they appeared, dragging its hinder parts uselessly.

“I reckon that’s the one Bill Frank thought he killed,” said Nick, as he put a bullet through its head.

They turned the body of Bill Haney over on its back and regarded it silently for some moments.

“Tommy,” said Nick, “we ought to put these poor devils where the coyotes can’t get ’em.”

Tom looked away with disfavor in his face. “They might have got Emerson into a hell of a scrape. Suppose anybody but us had found Wellesly the other day! Everybody would have believed that Emerson had ordered these two measly scamps to do what they did!”

“That’s so,” Nick replied, “but that’s all straight now, and they are past doin’ any more harm, and it ain’t a square deal to let a fellow be eat up by coyotes.”

Tom looked down into the dead, staring eyes and soberly replied: “I guess you’re right, Nick, and I sure reckon Emerson would say we ought to do it.”

They carried both bodies to the bottom of the canyon and up the bloody trail until they came to a steep-sided, narrow chasm which yawned into the wider gulch. There they put their burdens down, side by side, and decently straightened the limbs, folded the hands, and closed the eyes of the two dead men.

“Now,” said Nick, “we’ll pile rocks across the mouth of the gulch, and then they’ll be safe enough, for no coyote is going to jump down from the top of these walls.”

Tom made no answer. He was standing with his hands in his pockets looking at the two bloody, mangled corpses.

“Nick, don’t you-all think we’d better say something over these fellows, too? It ain’t the square deal to put ’em away without a word, even if they were the worst scrubs in creation. You-all better say something, Nick, like you did before.”

Tom took off his hat, without even a glance at his companion, and bent his head. Ellhorn also doffed his sombrero and bent forward in reverent attitude, ready to begin.

“Good Lord,” he said, and then he stopped and hesitated so long that Tuttle looked up to see what was the matter. “Go on, Nick,” he urged in a low tone.

“Good Lord, Ye’d better do as Ye think best about lettin’ ’em fry in their own fat—so long. They were scrubs, that’s straight, but they’re dead now, and can’t do any more harm. Good Lord, we hope—Ye’ll see Your way to have mercy on their souls. Amen.”

They began piling rocks across the mouth of the narrow chasm, and worked for some moments in silence. Nick glanced inquiringly at Tom several times, and finally he spoke:

“Say, Tommy, that was all right, I guess, wasn’t it?”

“Nick, I sure reckon Emerson would say it was.” And Ellhorn knew that his companion could give no stronger assent.

They built a wall high enough to keep the coyotes away from the two bodies, and then followed the trail upon the canyon wall and across the mountain side to the spring. There they found Bill Frank’s camping outfit and the few things that Jim and Haney had transferred from the canyon below. They found, also, the pan and the hand mortar, rusty and battered by the storms of many years, with which Dick Winters had slowly and with infinite toil beaten and washed out the gold he was never to enjoy. After an hour’s search they found the store of nuggets where Bill Frank had hidden them. Haney and Jim had never guessed how near they had come to the wealth for which they were searching.

The two men looked over the contents of pail, coffee pot, oven and cans and talked of the long, wearisome, lonely labor Dick Winters must have had, carrying the sacks of ore on his back, from his mine down the canyon, up the trail, and across the mountain side, to this little spring, where he had then to pound it up in his mortar and wash out the gold in his pan.

“It’s no wonder the desert did him up,” said Nick. “He had no strength left to fight it with. It’s likely he was lunny before he started.”

“Nick, you don’t reckon there’s a cuss on this gold, do you? Just see how many people it has killed. Dick Winters and Bill Frank and Jim and Haney, besides all the prospectors that have died huntin’ for it. You-all don’t reckon anything will happen to us, or to Emerson, if we take it?”

The two big Texans, who had never quailed before man or gun, looked at each other, their faces full of sudden seriousness, and there was just a shadow of fear in both blue eyes and black. The silence and the vastness of an empty earth and sky can bring up undreamed of things from the bottom of men’s minds. Ellhorn’s more skeptical nature was the first to gird itself against the suggestion.

“No, Tommy, I don’t reckon anything of the sort. Bill Frank gave it to us, and Dick Winters gave it to him, or, anyway, wanted him to find it and have it, and I reckon Dick Winters worked hard enough to get it to have a better right to it than God himself. It’s sure ours, Tom, and I reckon there won’t be any cuss on it as long as we can shoot straighter than anybody who wants to hold us up for it.”

CHAPTER XVII

Emerson Mead heard the story which Ellhorn and Tuttle told and looked at the heap of yellow nuggets without enthusiasm. His face was gloomy and there was a sadness in his eyes that neither of his friends had ever seen there before. He demurred over their proposal that he should share with them, saying that he would rather they should have it all and that he had no use for so much money. When they insisted and Tom said, with a little catch in his voice, "Emerson, we can't enjoy any of it if you-all don't have your share," he replied, "Well, all right, boys. I reckon no man ever had better friends than you are."

Judge Harlin was still at the ranch, and while he and Nick and Tom were excitedly weighing the nuggets, Mead slipped out to the corral, saddled a horse and galloped across the foothills. Tuttle watched him riding away with concern in his big, round face.

"Judge," he said, "what's the matter with Emerson? Is he sick?"

"I guess not. He didn't say anything about it."

"Did you bring him any bad news?"

"Not that I know of."

"Have them fellows over in Plumas been hatchin' out any more deviltry?"

"N-no, I think not. Oh, yes, I did hear that Colonel Whittaker and Daniels and Halliday were going over to the White Sands to hunt for Will Whittaker's body. I told Emerson so. That's the only thing I know of that would be likely to disturb him."

A quick glance of intelligence flashed between Tuttle's eyes and Ellhorn's. Each was recalling Mead's promise to surrender if Will Whittaker's body could be produced. Tuttle stood silent, with his hands in his pockets, looking across the foothills to where Mead's figure was disappearing

against the horizon. Then without a word he walked to the corral, saddled a horse, and went off on the gallop in the same direction.

He came upon his friend at Alamo Springs, ten miles away. This was the best water hole on Mead's ranch, and, indeed, the best in all that part of the Fernandez mountains, and was the one which the Fillmore Company particularly coveted. Its copious yield of water never diminished, and around the reservoir which Mead had constructed, half a mile below the spring, a goodly grove of young cottonwoods, which he had planted, made for the cattle a cool retreat from midday suns.

Tuttle found Mead standing beside the reservoir, flicking the water with his quirt, while the horse, with dropped bridle, waited meekly beside him. Tom dismounted and stood by Mead's side, making some remark about the cattle that were grazing within sight.

"Tommy," Emerson said abruptly, "I've about decided that I'll give up this fight, let the Fillmore folks have the damned place for what they will give, and pull my freight."

Tom looked surprised at this unheralded proposition, but paid no further attention to it. Instead, he plunged at once into the subject that concerned him.

"Emerson, what's the matter with you?"

"Nothing," Mead replied, looking at the horizon.

"Emerson, you're lying, and you know it."

"Well, then, nothing that can be helped."

"How do you know it can't?"

Mead shrugged his shoulders and rested his hand upon his horse's neck. It straightway cuddled its head against his body and began nosing his pockets. Mead brought out a lump of sugar and made the beast nod its age for the reward. Tom watched him helplessly, noting the hopeless, gloomy look on his face, and wondered what he ought to do or say. He wished Nick had come along. Nick never was at a loss for words. But his great love came to his rescue and he blurted out:

“Have you tried to do anything?”

“It’s no use. There’s nothing to be done. It’s something that can’t be helped, and I’d better just get out.”

“Can’t I—can’t Nick and me do anything?”

“No.”

Tom Tuttle was discouraged by this answer, for he knew that it meant that the trouble, whatever it was, must be beyond the help of rifles and revolvers. Still, he thought that it must have some connection with the Whittaker murder, and he guessed that Mead was in fear of something—discovery, apprehension, the result of a trial—that he meant to get rid of the whole thing by quietly leaving the country. Tom’s brain required several minutes in which to reach this conclusion, but only a second longer to decide that if this was what Emerson wanted to do, it was the right thing and should have his help.

“Well,” he said, “if you want to pull out on the quiet, Nick and me will stand off the Republicans over at Plumas till you get out of their reach.”

“Oh, I don’t mean to run away.” Mead picked up the bridle and with one hand on the pommel turned suddenly around. There was a half smile about his mouth, which his sad eyes belied. Tom’s idea of the case had just occurred to him. “Don’t you worry about it, Tom. It has nothing to do with the Whittaker case, nor with the political fights in Las Plumas.”

They remounted and cantered silently toward home. Tom was revolving in his mind everything he knew about his friend, trying to find the key to the present situation. After a long time he recalled the conversation he and Ellhorn had had, as they sat on the top of the cattle-pen fence at Las Plumas, concerning the possibility of Mead’s being in love.

“Golly! I can’t ask him about that!” Tuttle thought, spurring his horse to faster pace. “But I reckon I’ll have to. I’ve got to find out what’s the matter with him, and then Nick and me have got to help him out, if we can.”

He rode close beside Mead and began: “Say, Emerson—” Then he coughed and blushed until his mustache looked a faded yellow against the deep

crimson of his face. He glanced helplessly around, vaguely wishing some enemy might suddenly rise out of the hills whom it would be necessary to fight. But no living thing, save Emerson's own cattle, was in sight. So, having begun, he rushed boldly on:

"Say, Emerson, I don't want to be too curious about your affairs, but—this—this trouble you're in—has it—is it—anything about a—a girl?"

Mead's spurs instinctively touched his horse into a gallop as he answered, "Yes."

"Miss Delarue?"

"Yes."

"Wouldn't her father let her have you?"

Mead pulled his sombrero over his eyes with a sudden jerk, as the thought drove into his brain that he had not asked for her. The idea of asking Marguerite Delarue to marry him loomed before him as a gigantic impossibility, a thing not even to be dreamed of. He set his teeth together as he put into words for the first time the thing that was making him heart-sick, and plunged his spurs into the horse's flank with a thrust that sent it flying forward in a headlong run:

"She's going to marry Wellesly."

Tuttle lagged behind and thought about the situation. Sympathize though he did with Mead's trouble, he could not help a little feeling of gratification that after all there was to be no wife to come between them and take Emerson away from him and Nick. Emerson would forget all about it in a little while and their lifelong friendship would go on and be just as it had always been. On the whole, he felt pleased, and at the same time ashamed that he was pleased, that Miss Delarue was going to marry Wellesly.

"I don't think much of her judgment, though," he commented to himself, contemptuously. "Any girl that would take that scrub Wellesly when she might have Emerson Mead—well, she can't amount to much! Bah! Emerson's better off without her!"

That evening, as the four men sat smoking under the cottonwoods, Mead said quietly:

“Judge, I’m goin’ to pull my freight.”

“What do you mean, Emerson?”

“I mean that this country will be better off without me and I’ll be better off without it. I’m goin’ to light out.”

“Soon?”

“As soon as I can give away this ranch to the Fillmore outfit, or anybody that will have it. Nick, you and Tom better take it. I’ll give it to you for love and affection and one dollar, if you want to take the fight along with it.”

“Nothing would please me better,” Nick replied, “than to clean up all your old scores against the Fillmore outfit, but I reckon if we take it we’ll just run it for you until you-all come back.”

“All right. I’ll turn it over to you to-morrow. You can have all you can make out of it and if I’m not back inside of five years you can divide it between you.”

“Everybody will say you are running away from the Whittaker case and that you are afraid to face a trial,” said Judge Harlin.

“They may say what they damn please,” replied Mead.

Something like a smothered sob sounded from Tuttle’s chair, and he exclaimed fiercely, “They’d better not say that to me!”

“There’s no likelihood,” said Judge Harlin, “that the grand jury will indict you, as things stand now, or that the case would amount to much if they should. If you want to stay and face the music, Emerson, I don’t think you need to feel apprehensive about the result.”

“Oh, I’m not afraid of the trial, if there should be one. But I don’t think there’ll be any. I’m not going to submit to arrest, trial, or anything else, until they can prove that Will Whittaker’s dead, and they can’t do that. I told Wellesly that I would let them arrest me whenever they can prove that

Will Whittaker died with his boots on, and I'll stick to my word. I'll come back from anywhere this side of hell for my trial whenever they can prove it, and you can tell 'em so, Judge. But I'm tired of this country and done with it, and I mean to pull my freight to-morrow."

"If you want to start from Plumas you'd better ride over with me," said Harlin, "and you'd better go prepared for trouble, for the Republicans won't let you leave the country if they can help it."

"All right. They can have all the trouble they want."

"You bet they can! All they want, and a whole heap more than they'll want when it comes!" exclaimed Nick.

"That's what's the matter! We'll see that they get it!" added Tom.

The next morning they stowed the gold nuggets under the seat of Judge Harlin's buggy, in which rode Mead and Harlin, with rifles and revolvers. Tuttle and Ellhorn rode on horseback, each with a revolver in his holster and a rifle slung beside him.

Tom Tuttle was much disturbed because he alone knew the secret reason for Emerson Mead's abrupt departure. He thought Nick ought to know it, too, but he could not persuade himself that it would be the square thing for him to tell it to Ellhorn. "Nick ought to know it," he said to himself, "or he'll sure go doin' some fool thing, thinkin' Emerson's goin' away on account of the Whittaker business, but I reckon Emerson don't want me to leak anything he told me yesterday. No, I sure reckon Emerson would say he didn't want me to go gabblin' that to anybody. But Nick, he's got to know it."

After a time he chanced to recall the gossip about Miss Delarue and Wellesly, which Judge Harlin had told him, and decided that he was relieved from secrecy on that point. Still, he felt self-conscious and as if he were rubbing very near to Emerson's secret when he rode beside Ellhorn and exclaimed:

"Say, Nick, did Judge Harlin tell you that Wellesly and Frenchy Delarue's daughter are going to be married next fall?"

“The hell they are! Say, he’s in luck, a whole heap better than he deserves!” Then a light broke over Nick’s face, as he shot a glance at the carriage behind them. He slapped his thigh and exclaimed: “Jerusalem! Tom, that’s why Emerson is pullin’ his freight!”

At the moment, Tom felt guilty, as if he had betrayed a confidence, and he merely said, “Maybe it is.”

“I might have known Nick would see through it in a minute,” he said to himself afterward. “Well, I reckon it’s all right. He knows now, and he’d sure have heard that they are going to be married, anyway.”

CHAPTER XVIII

The four men stayed at Muletown that night and drove across the hot, dry levels of the Fernandez plain in the early morning. In the foothills of the Hermosa mountains there was a little place called Agua Fria—Cold Water. It was a short distance off the main road, but travelers across the plain frequently went thither to refresh themselves and their beasts with the cool waters which it furnished. It was only a small Mexican ranch, irrigated by a bountiful flow of water from a never failing spring. Cottonwood trees surrounded the house, and around the spring grew a little peach orchard. The ruins of a mining camp, long since deserted, could be seen on the hill above.

Emerson Mead and his companions turned aside into the road leading to the Agua Fria ranch and drew rein in the shade of the peach trees. A woman was washing clothes beside the spring and a man came from a near-by field where he was at work. They chatted with the couple while the horses were allowed to rest in the shade. Presently Tuttle and Ellhorn remounted and started slowly back, leaving Mead and Harlin in the buggy, ready to go, but exchanging some last words with the Mexican. The road curved below the house, through the trees, and as Tuttle and Ellhorn came out on the other side they saw a party of horsemen approaching from the main road. At once they recognized John Daniels and Jim Halliday, who were riding in the front. Behind them came half a dozen others, and in the rear of the company they saw Colonel Whittaker with some pack horses. Tom and Nick drew back into the cover of the trees and conferred a moment over the probable intentions of the party.

“They are all armed,” said Tom. “Six-shooters and Winchesters on every one.”

“I’ll bet they’re after Emerson, Tommy,” Nick exclaimed. “They want trouble, and I reckon we’d better begin to give it to ’em right now.”

They drew their rifles from beside their saddles, for the men were still too far away for the use of revolvers. Then Tom looked at Nick doubtfully.

“Nick, what do you-all think would be Emerson’s judgment? You know he always wants the other side to begin the fight.”

“My judgment is that the sooner this fight is begun the better. Them fellows are out here lookin’ for trouble, and I say, if a man wants trouble, Lord! let him have it!”

He raised his rifle to his shoulder and sent a bullet singing down the road, saying to Tom as he fired: “This is just to let ’em know we’re here.”

The bullet creased the neck of Halliday’s horse, which reared and plunged with sudden fright. The whole party checked their horses in surprise and looked intently toward the clump of cottonwoods from which the shot had come. Tom raised his gun to his shoulder, saying, “You’ve started the fun, Nick, so here goes,” and he sent a rifle ball whizzing past Daniels’ ear. Harlin and Mead dashed around the house in the buggy, jumped out, and tied their horses in the rear of the trees. Tuttle and Ellhorn dismounted and dropped their bridles.

The approaching party paused for a moment in a close group and held an excited conference. Then they separated and, drawing their guns from the saddle scabbards, sent a volley into the grove. Four rifle bullets made quick answer and set their horses to rearing. It was some time before the beasts could be made quiet enough for the shots to be returned, and in the meantime bullets were pattering all about them. Colonel Whittaker stopped far in the rear with the pack horses, beyond the reach of the rifle balls, and the others made a sudden dash forward. Checking their horses, they fired a concerted volley into the trees. One of the bullets scorched the band of Tom’s hat.

“Nick,” said Tom, “that was Daniels fired that shot. He’s gettin’ too impudent. You take care of him while I clean my gun. Don’t you let him get any closer, but don’t hurt him, for he’s my meat.”

He went down on the ground cross-legged and swabbed his gun-barrel while the bullets pattered on the ground about him and thudded into the trees and ploughed up the dirt at his feet. Nick bent his rifle on the sheriff and sent a bullet through his hat brim and another through his horse’s ear, and bit his bridle with one and tore his trouser leg with another. One

dropped and stung on the beast's fetlock as Tom sprang to his feet exclaiming, "Now I'll get him!"

Daniels first checked his horse, and then lost control of it as the bridle broke, and when the bullet struck its fetlock it wheeled and went flying to the rear. The sheriff felt a tingle in his left arm, and, maddened, he seized the severed parts of his bridle and forced the horse to face about. Then he bent forward, apparently taking careful aim at one of the figures beneath the trees, but before he could fire, his horse reared and plunged and went down in a heap beneath him.

In the meantime, Nick, Emerson, and Judge Harlin were exchanging rapid shots with the rest of the sheriff's party. Those of the latter went rather wild, because their frightened horses made it impossible for them to take careful aim. And also by reason of the constant dancing about of the beasts, the accurate marksmanship of the men under the trees was not of much avail. Nick found that his magazine was empty and called out:

"Tom, give me some of your hulls! I used up all mine keepin' your darned sheriff back. Gimme some hulls quick!"

He dropped a handful of cartridges into the magazine and raised his rifle with the remark, "Now see 'em scatter!"

The sharp, crashing din of the Winchesters kept steadily on. One of the Daniels party fell over on his horse's neck, and two of their animals became unmanageable. Daniels had knelt behind his fallen horse and across its body he was taking careful aim. Tom felt a bullet graze his cheek, and saw whence it had come. "I'll put a stop to that," he exclaimed, and in another moment the sheriff tumbled over with a bullet in his shoulder. Mead felt a sharp pain in one side, and knew that hot lead had kissed his flesh. It was the first wound he had ever received. With a scream of pain a horse fell, struggling, beneath its rider. From one man's hands the rifle dropped and his right arm hung helpless by his side. Another horseman swayed in his saddle and fell to the ground, and his horse galloped to the rear, dragging the man part of the way with his foot in the stirrup.

Still the remnant of horsemen held their own against the steady rain of bullets from the trees. Presently a flesh wound made Halliday's horse

unmanageable and it bolted straight for the grove. The four men paused with fingers on triggers, looking at him in wonder.

“Who would have thought he had the sand to do that!” Mead exclaimed.

Suddenly his horse turned and flew toward the rear. “Whoo-oo-oo-ee!” came a derisive shout from the grove, followed by a volley of bullets. The other horsemen took advantage of the diverted firing, and made a dash forward, dropping their rifles across their saddles and using their revolvers. It was evident that they hoped, by this sudden charge, to dislodge the enemy and force a retreat.

“Out and at ’em, boys,” yelled Nick. “Whoo-oo-oo-ee!” And the four men rushed from under cover of the trees, rifles in hand, straight toward the approaching horsemen.

Dropping on one knee and firing, then rising and running forward a few steps, and dropping and firing again, they dashed toward the enemy. Surprised and confused by this sudden move, the horsemen halted, irresolute, then turned and fled down the road.

“Buffaloed!” yelled Mead.

“After ’em, boys!” shouted Judge Harlin. And the four started on the run after the retreating enemy.

“Chase ’em to Plumas!” yelled Nick.

“And learn ’em to let us alone after this!” bellowed Tom, in a voice that reached the ears of the flying party, above the muffled roar of their horses’ hoofs.

Halliday had got his horse under control again by the time he reached the place where Colonel Whittaker stood guard, beside the pack horses, and after a few hasty words with Whittaker he started back. When he saw the rout of his party he pulled a handkerchief from his pocket and waving it aloft he came galloping on.

“Look at that, will you!” yelled Nick. “They want to surrender!”

“I reckon they want to have a conference,” said Judge Harlin.

The four men halted and stood with their guns in their hands, waiting Halliday's approach.

"Emerson," he called, "do you stick to what you told Mr. Wellesly?"

"What do you mean?"

"That you'd submit to arrest when we could prove that Will Whittaker died by violence."

"Certainly, I do."

"Then hand over your guns, for we've got his body!"

"Let me see it first. If I can recognize it I'll keep my word."

"It's back there where his father is."

"Well, bring it here."

"Will you keep the truce?"

"Yes, if you do."

Halliday galloped down the road again, and presently returned with Colonel Whittaker. Between them was one of the pack horses with something lashed to its back. They walked their horses to the spot where the four men stood, untied the pack, spread a blanket on the ground, and laid on it the ghastly, mangled remains of what had once been a man's body.

"We found it in the White Sands," Halliday explained. "It had been buried nearly at the top of the ridge and the coyotes had dug it out and this is all they had left. But his father here, and every one of us, have identified it."

Mead and his friends looked the body over carefully. The face had been gnawed by coyotes and picked by buzzards until not a recognizable feature was left. The shining white teeth glared from a lipless mouth. Closely cropped black hair still covered the head. On one hand was a plain gold ring set with a large turquoise.

"You must remember that ring," said the father. Mead nodded. Colonel Whittaker slipped it from the finger, dried and burned by the sun, and

showed the four men the initials, "W. W.," on the inside. The clothing was badly tattered and much of it had been torn away. Part of a pongee silk shirt still hung on the body. On the inside of the collar were the young man's initials worked in red silk. "His mother did that," said Colonel Whittaker. Around the neck was a dark-colored scarf, and in it was an odd, noticeable pin, a gold nugget of curious shape. The four men had all seen Will Whittaker wear it many times. A ragged remnant of a coat hung on the mangled body. In the breast pocket Colonel Whittaker showed them some letters and a small memorandum book. From the book had been torn some leaves and all the remaining pages were blank. But on the inside of the leather cover the name, "Will Whittaker," had been printed in heavy black letters. Rain and sun had almost obliterated the addresses on the two envelopes in the pocket, but enough of the letters could still be made out to show what the words had probably been.

Halliday turned the body over and showed them three bullet holes in the back, in the left shoulder blade. They were so close together that their ragged edges touched one another, and a silver dollar would have covered all of them. Apparently, the man had been shot at close range and the bullets had gone through to the heart.

Mead finished his inspection of the body and turned to Halliday. All the rest of the party had come up and dismounted and were standing beside their horses around the grisly, mangled thing and the four men who were examining it. Several of the men were wounded and blood was dripping over their clothing. A red mark across Tuttle's cheek showed how narrow had been his escape, and a bloody stain on Mead's shirt told the story of a flesh wound.

"Jim," Mead began, and then paused, looking Halliday squarely in the eyes, while his own friends and the sheriff's party edged closer, all listening breathlessly. None of them had any idea what he was going to say, whether it would be surrender, or defiance and a declaration of continued war. Nick and Tom exchanged glances and cocked their revolvers, which they held down beside their legs. "Jim," Mead went on, "I acknowledge nothing about this body except that, as far as I can see, it seems to be the body of Will Whittaker and he seems to have died from these pistol shots. But I

reckon it calls, merely on the face of it, mind, for me to make good the word I gave to Wellesly. Here are my guns.”

He handed his rifle to Halliday, unfastened his cartridge belt and passed that and his revolver to the deputy sheriff. Among the Whittaker party there were some glances of surprise, but more nods of congratulation. Nick and Tom looked at each other in indignant dismay. Tom’s eyes were full of tears and his lips were twitching. “What did he want to do that for?” he whispered to Nick. “We had ’em sure buffaloed and on the run, and now he’s plum’ spoiled the whole thing!”

“I reckon it was the best thing you could do, Emerson,” said Judge Harlin, “but I’m sorry you had to do it.”

Mead saw Daniels in the crowd around the body. “Hello, John,” he called, “I thought we tipped you over just now. Hurt much?”

“No, not much. Only a scratch on the shoulder.”

The entire party went around to the spring and bathed one another’s wounds, and the Mexican woman tore her sheets into strips and made bandages for them. No one had been killed, but there were a number of flesh wounds and some broken bones. They hired horses of the Mexican to take the place of those that had been killed and then started for Las Plumas, Mead riding between Daniels and Halliday. Judge Harlin, with Nick and Tom, followed some distance in the rear.

Tom looked after them, as they rode away, with angry eyes. His huge chest was heaving with sobs he could scarcely control. “Damn their souls,” he exclaimed fiercely to Nick, “if Emerson wasn’t among them I’d open on ’em right now.”

“How we could buffalo ’em,” assented Nick.

“It was a damned shame,” Tuttle went on indignantly, “for Emerson to give up that way. We could have cleaned ’em all out and got rid of ’em for good, if he hadn’t given up. We’ll never get such a chance again, and the Lord knows what will happen to Emerson now!” And Tom bent his huge frame over his gun and bowed his head on his hands, while a great sob convulsed his big bulk from head to foot. He and Judge Harlin argued the question all

the way to Las Plumas, and the judge well-nigh exhausted his knowledge of law and his ingenuity in argument in the effort to convince his companion that Emerson Mead had done the best thing possible for him to do. But the last thing Tom said as they drew up in front of Judge Harlin's office was:

“Well, it was a grand chance to clean out Emerson's enemies, for good and all, and make an end of 'em, so that he could live here in peace. It was plumb ridiculous not to do it.”

CHAPTER XIX

The grand jury sat upon the Whittaker case and returned a true bill against Emerson Mead, indicting him for the murder of Will Whittaker. Mead was confined in the jail at Las Plumas to await his trial, which would not take place until the following autumn. The finding of Will Whittaker's body convinced many who had formerly believed in his innocence that Mead was guilty. Everybody knew that his usual practice in shooting was to fire three quick shots, so rapidly that the three explosions were almost a continuous sound, pause an instant, and then, if necessary, fire three more in the same way. The three bullets were pretty sure to go where he meant they should, and if he wished he could put them so close together that the ragged edges of the holes touched one another, as did those in the back of Whittaker's corpse. It was the number and character of those bullet holes that made many of Mead's friends believe that he was guilty of the murder. "Nobody but Emerson could have put those bullets in like that," they said to themselves, although publicly the Democrats all loudly and persistently insisted that he was innocent.

In the constant debate over the matter which followed the finding of the body the Democrats contended that the two men who had held Thomson Tuttle captive all night near the White Sands must have been the murderers. And it was on them and their mysterious conduct that Judge Harlin rested his only hope for his client. The lawyer did not believe they had Whittaker's body in their wagon, although he intended to try to make the jury think so. Privately he believed that Mead was guilty, but he admitted this to no one, and in his talks with Mead he constantly assumed that his client was innocent. He had never asked Mead to tell him whether or not he had committed the murder.

Nick Ellhorn and Tom Tuttle lingered about Las Plumas for a short time, sending their gold to the mint, and trying to contrive some scheme by which Emerson Mead could be forced into liberty. Each of them felt it a keen personal injury that their friend was in jail, and they were ready to forego everything else if they could induce him to break his promise and with them

make a wild dash for freedom. But he would listen to none of their plans and told them, over and over, that he had given his word and proposed to keep it.

“Of course,” he said, “when I made that promise to Wellesly I didn’t suppose they would find Will’s body. But they did, and I mean to keep my promise. I gave my word for you-all too, and I don’t want you to make any fool breaks that will cause people to think I’m trying to skip.”

Finally they gave up their plans and Tom returned to his duties with Marshal Black at Santa Fe and Nick went out to Mead’s ranch to keep things in order there.

Ellhorn returned to Las Plumas for his own trial, the result of which was that he was found guilty of assault and battery upon the Chinese and fined five hundred dollars. The moment sentence was pronounced upon him he strode to the judge’s desk and laid down his check for the amount of his fine. Then he straightened up, thrust his hands in his pockets, and exclaimed:

“Now, I want that pig tail!”

“You are fined five dollars for contempt of court,” said the judge, frowning at the tall Texan, who looked very much in earnest.

“All right, Judge! Here you are!” said Nick cheerfully, as he put a gold piece down beside the check. “Now, I want that Chiny pig tail! It’s mine! I’ve paid big for it! It’s cost me five hundred and five dollars, and no end of trouble, and it belongs to me.”

“You are fined ten dollars for contempt of court,” the judge said severely, biting his lips behind his whiskers.

“Here you are, Judge!” and Nick spun a ten-dollar gold piece on the desk. “I want that scalp as a memento of this affair, and to remind me not to mix my drinks again. I’ve paid for it, a whole heap more’n it’s worth, and I demand my property!” And Nick brought his fist down on the judge’s desk with a bang that made the gold coins rattle.

“Mr. Sheriff, remove this man!” ordered the Judge, and John Daniels stepped forward to seize his arm. Ellhorn leaped to one side, exclaiming, “I’ll not go till I get my property!” He thrust his hand into the accustomed place for his revolver, and with a look of surprise and chagrin on his face stood meekly before the sheriff.

“A man can’t get his rights unless he has a gun, even in a court,” he growled, as he submitted to be led out. At the door he looked back and called to the judge:

“That scalp’s mine, and I mean to have what I’ve paid for, if I have to sue your blamed old court till the day o’ judgment!” And he went at once and filed a suit against the district attorney for the recovery of the queue.

Marguerite Delarue kept on with her quiet life through the summer, caring for little Paul and attending to her father’s house. She did not see Emerson Mead again after the day when, with her little white sunbonnet pulled over her disordered hair, she helped her baby brother to mount his horse. Long before the summer was over she decided that he cared nothing for her and that she must no longer feel more interest in him than she did in any other casual acquaintance. But sometimes she wakened suddenly, or started at her work, seeming to feel the intent gaze of a pair of brown eyes. Then she would blush, cry a little, and scold herself severely.

It was late in the summer when Albert Wellesly made his next visit to Las Plumas. He had decided to buy a partly abandoned gold mine in the Hermosa mountains, and he explained to Marguerite Delarue, as he sat on her veranda the afternoon of his arrival, that he was making a hurried visit to Las Plumas in order to give it a thorough examination. And then he added in a lower tone and with a meaning look in his eyes, that that was not the only reason for the trip. She blushed with pleasure at this, and he felt well enough satisfied not to go any farther just then.

He came to see her again after he returned from the mine. It was Sunday afternoon, and they sat together on the veranda, behind the rose and honeysuckle vines, with Marguerite’s tea table between them. He told her about his trip to the mine and what he thought of its condition and deferentially asked her advice in some small matters that had an ethical as well as a commercial bearing. She listened with much pleasure and her blue

eyes shone with the gratification that filled her heart, for never before had a man, fighting his battles with the world, turned aside to ask her whether or not he was doing right. Then he told her how much he valued her judgment upon such matters and how much he admired and revered the pure, high standard of her life. His tones grew more lover-like as he said it would mean far more to him than he could express if he might hope that her sweet influence would some day come intimately into his own life. Then he paused and looked at her lowered eyelids, bent head and burning cheeks. But she said nothing, sitting as still as one dead, save for her heaving breast. After a moment he went on, saying that he cared more for her than for any other woman he had ever known, and that if she did not love him then, he would be willing to wait many years to win her love, and make her his wife. Still she did not speak, and he laid one hand on hers, where it rested on the table, and whispered softly, "Marguerite, do you love me?" With that she lifted her head, and the troubled, appealing look in her eyes smote his heart into a brighter flame. He pressed her hand in a closer grasp and exclaimed, "Marguerite, dearest, say that you love me!"

The innocent, fluttering, maiden heart of her, glad and proud to feel that she had been chosen above all others, but doubtful of itself, and ignorant of everything else, leaped toward him then and a wistful little smile brightened her face. She opened her lips to speak, but suddenly she seemed to see, beside the gate, a tall and comely figure bending toward her with eyes that burned her cheeks and cast her own to the ground. She snatched her hand from Wellesly's grasp and buried her face in her palms.

"I do not know," she panted. "I must think about it."

"Yes, certainly, dear—you will let me call you dear, won't you—take time to think it over. I will wait for your answer until your heart is quite sure. I hope it will be what I want, and don't make me wait very long, dear. Good-bye, sweetheart."

He lifted her hand to his lips and went away. She sat quite still beside the table, her burning face in her hands, her breast a turmoil of blind doubts, and longings, and keen disappointments with, she knew not what, and over all an imperious, sudden-born wish to be loved.

Wellesly walked down the street smiling to himself in serene assurance of an easy victory. He was accustomed to having women show him much favor, and more than one had let him know that he might marry her if he wished. Moreover, he thought himself a very desirable match, and he did not doubt for an instant that any woman, who liked him as well as he was sure Marguerite did, would accept his offer.

“It was evidently her first proposal,” he thought, “and she did not know exactly what to do with it. She is as shy and as sweet as a little wood-violet. Some girls, after my undemonstrative manner this afternoon, would write me a sarcastic note with a ‘no’ in it as big as a house. But nothing else would have done with Marguerite. She isn’t one of the sort that wants every man she knows to begin kissing her at the first opportunity. And that is one of the reasons I mean to marry her. The other sort are all very well, but a man doesn’t want to marry one of them. I want my wife to have such dignity and modesty that I can feel sure no other man ever has, or ever will, kiss her but me. And I can feel sure of that with Marguerite—just as sure as I can that I’ll have a favorable answer from her by the time I make my next visit to Las Plumas.”

Marguerite sat behind her screen of honeysuckle vines, her face in her hands and a mob of blind, wild, incoherent desires and doubts making tumult in her heart, until she heard her father’s footsteps in the house. Pierre Delarue had been taking his Sunday afternoon siesta, and he came out upon the veranda in a very comfortable frame of mind. He patted Marguerite’s shoulder affectionately and asked her to make him a cup of tea. He was very fond of his fair young daughter, who had grown into the living likeness of the wife he had married in the days of his exuberant youth. But he rarely withdrew his thoughts from outside affairs long enough to be conscious of his affection, except on Sunday afternoons, when interest and excitement on Main street were at too low an ebb to attract his presence. On other days, she endeared herself to him by the sympathetic attention she gave to his accounts of what was going on down-town and to his rehearsals of the speeches he had made. On Sundays, when he had the leisure to feel a quickened sense of responsibility, he both pleased himself and felt that he was discharging a duty to her by discoursing upon his observations and experiences of the world and by propounding his theories of life and

conduct. For Pierre prided himself on his philosophy quite as much as he did on his oratory.

Marguerite, on her part, was very fond of her father, but it was a fondness which considered his love of speech-making and his flighty enthusiasms with smiling tolerance. Her cooler and more critical way of looking at things had caused her, young as she was, to distrust his judgment in practical affairs, and about most matters she had long since ceased asking his advice.

She sat beside him and talked with him while he drank his cup of tea. A recently married young couple passed the house, and Marguerite made some disapproving comment on the man's character, adding that she did not understand how so nice a girl could have married him.

"Oh, he has a smooth and ready tongue," answered her father, "and I dare say it was easy for him to make love. When you are older you will know that it is the man who can talk love easily who can make the most women think they love him." Pierre Delarue stopped to drink the last of his tea, and Marguerite blushed consciously, remembering the scene through which she had just passed. She rose to put his cup on the table, and was glad that her face was turned away from him when next he spoke:

"When a man tells a woman that he loves her," Delarue went on, "and it rolls easily off his tongue, she should never believe a word that he says. If a man really loves a woman, those three little words, 'I love you,' are the hardest ones in the whole world for him to say. Most women do not know that when they hear their first proposals, but they ought to know it, especially in this country, where they make so much of love. But, after all, I do not know that it makes so much difference, because all women want to hear no end of love talked to them, and it is only the man who does not feel it very deeply who can talk enough about it to satisfy them. A woman is bound to be disappointed, whichever way she marries, for she is sure to find out after a while that the flow of words is empty, and the love without the words never satisfies. After all, it is better for a woman to think of other things than love when she marries. They manage these things better in France. Don't you think so, my daughter?"

There was a deep thrill of passionate protest in her voice as she answered, "No, father, I certainly do not."

He laughed indulgently and patted her hand as he said: "Ah, you are a little American!" Then he added, more seriously: "I suppose you, too, will soon be thinking of love and marriage."

She threw her arms around his neck and there was a sob in her voice as she exclaimed: "Father, I shall never marry!"

He smoothed her brown hair and laid his hand on her shoulder saying, "Ah, that means you will surely be married within a year!"

She shook her head. "No, I mean it, father! I shall never marry!"

"My dear, I should be sorry if you did not," he answered with dignity, and with a strong note of disapproval in his voice. "For what is a woman who does not marry and bear children? Nothing! She is a rose bush that never flowers, a grape vine that never fruits. She is useless, a weed that cumbers the earth. No, my daughter, you must marry, or displease your father very much."

Marguerite lay awake long that night, trying to decide what she ought to do. Her father's words gave sight to a blind, vague misgiving she had already felt, but at the same time she could not believe that Wellesly meant less than his words when he told her that he loved her and wished to make her his wife.

"Why should he propose to me if he does not wish to marry me?" she argued with herself, "and why should he want to marry me if he does not love me? No, he surely loves me. Perhaps father is right about the Frenchmen. He knows them, but he does not understand the Americans. They always feel so sure about things, and they do everything as if there was no possibility of failure. But I wish I knew if I love him! I suppose I do, for I felt so pleased that he should wish to marry me. But I don't have to decide at once. I'll wait till he comes to Las Plumas again before I give him an answer."

She debated whether or not she ought to tell her father and ask his advice, but she feared that in his mind other considerations would outweigh the one

she felt to be the chief, and she decided to say nothing to him until she knew her own mind in the matter. "If I refuse him," she said to herself, "there will be no reason for me to say anything about it, and it wouldn't be fair to Mr. Wellesly for me to tell father or any one else that he had proposed to me. Besides, father might possibly speak of it outside, and I couldn't bear to think that people were gossiping about it. No, I will not say anything, unless I should decide that I want to marry him. Then I will ask father if he thinks I'd better."

The next morning she woke with a sudden start, all her consciousness filled with an overwhelming desire to love and be loved, to be all of life to some one who would be more than life to her. She sat up, panting, pressing her hand to her heart. At once her thoughts leaped to Wellesly.

"He loves me, he has told me so, and surely this is love I feel now, and for him. I suppose—I do—love him."

She lifted her nightgown above her bare feet and stood beside little Paul's crib. With her disheveled hair falling in waving masses around her face she bent over him and lightly kissed his forehead.

"My little Bye-Bye, I would not leave you to be any man's wife. But he will not wish me to leave you, because he thinks—that it is beautiful and noble that I—that I have cared for you—though how could I have done anything else—and that is partly why he loves me. Surely, I love him, and I suppose—it is best—for me to marry him. But I'll wait till he comes again—there!"

With burning cheeks she stood erect and stamped one bare foot on the floor. Again the memory of the brown eyes smote suddenly into her consciousness. Her chin took a sharper angle and her red lips shut tightly as she threw back her head and twisted her fingers together.

"I will not think of him again," she said slowly, in a low voice. "He is in jail, to be tried for murder, and he will probably be hung—" She hesitated, her face turned white and there was a spasmodic throbbing in her throat, but she went resolutely on: "And he does not care the least thing about me. He was merely fond of my little Bye-Bye, and I am grateful to him for that. But he is nothing to me. I'll marry Mr. Wellesly—I think—but I'll wait—" And then the throbbing in her throat choked her voice and she threw herself

upon the bed and buried her face in the pillow and cried. Just as thousands of young girls have cried over their fluttering, doubtful, ignorant maiden hearts, ever since man gave up seizing the girl of his choice and carrying her away, willy-nilly, and began proposing to her instead.

CHAPTER XX

The first days of October were at hand, and the court session at which Emerson Mead was to be tried for the murder of Will Whittaker would soon open. The supreme court of the territory was sitting at Santa Fe, and its decision upon the shrievalty would be announced in a few days. The flames of partisan feeling were already breaking out in Las Plumas. The dividing line of Main street had begun to be drawn, although fitfully as yet, and conveniently forgotten if business called to the other an occupant of either side. But in the matter of mint juleps, cocktails, and the swapping of yarns Main street stretched its dusty length between Republicans and Democrats as grim and impassable as a mountain barrier. On both sides there were meaning glances and significant nods and half-spoken threats of assault and resistance. The Democrats professed to believe that the Republicans were determined to hold the office of sheriff through the trial of Emerson Mead, whatever should be the decision, in order that they might find some means to end his life should the court discharge him. The Republicans insisted that the Democrats were planning to seize the office by hook or by crook before the trial should begin in order that they might allow him to escape. And each side declared, with angry eyes and set teeth, that the other should not be allowed to thwart justice, if the streets of Las Plumas had to be paved with dead men.

Judge Harlin sent word to Mead's ranch, asking Nick Ellhorn to come into town as soon as possible, and telegraphed to Tom Tuttle at Santa Fe to return to Las Plumas at once. But it happened that Tom was chasing an escaped criminal in the Gran Quivera country, far from railroads and telegraphs, and that Nick was out on the range and did not receive the message until nearly a week later.

Nick had settled the matter of the Chinaman's queue on his last visit to Las Plumas, two weeks before, but not to his entire satisfaction. Judge Harlin had refused to conduct his suit for the recovery of the queue against Harry Gillam, the district attorney, and Nick had declared that he would be his own lawyer and get that "scalp," if it "took till he was gray headed."

Secretly, he was glad that Judge Harlin would not take the case, because he had an active animosity against Harry Gillam, mainly because Gillam wore a silk hat, and he thought that, as his own lawyer, he could contrive to cast enough ridicule on the district attorney to set the whole town laughing and make Gillam so angry that he would lose his temper and want to fight. So he set about preparing his case, with advice and suggestion from Judge Harlin, who, while he did not wish to be openly connected with the matter, was very willing to see Gillam, who was a Republican and the judge's chief professional rival, made a laughing stock and brought to grief. And he knew that the case, with Nick Ellhorn at the helm, would be the funniest thing that had happened in Las Plumas for many a day. Ellhorn's plans began to be whispered about. Presently the whole town was chuckling and smiling in anticipation of the fun there would be at the trial. Gillam fidgeted in nervous apprehension for several days; then he put the pig tail in his pocket, hunted up Ellhorn and invited him to have a drink. As they drained their glasses he exclaimed:

"Oh, by the way, Nick, are you really in earnest about that fool suit you've filed against me?"

"You mean about my Chiny pigtail?" asked Ellhorn.

"About the Chinaman's queue, yes."

"You bet I am. That blamed thing's cost me a whole heap more'n it's worth to anybody except me and the Chinaman. I reckon he's sold it to me for that five hundred dollars. It's mine, and I mean to have it. I sure reckon I naturalized one heathen when I took that scalp. There's one bias-eyed fan-tanner that won't pull his freight for Chiny as soon as he gets his pockets full of good American money. I reckon I was a public benefactor when I sheared that washee-washee, and I deserve the pig tail as a decoration for my services. No, sir, the scalp's mine, by every count you can mention, and you'll have to give it up."

"Is the queue all you want?"

"If that's all you've got that belongs to me."

"Well, then, take it, and stop your jackassing about the fool thing," said Gillam, holding out the queue.

“The hell you say!” Nick exclaimed, quite taken aback and much disappointed.

“Yes, here it is. And I call these gentlemen to witness that I offer it to you freely and without any conditions.”

So Nick reluctantly took the braid and gave up his case against Gillam. “It was just like the blamed whelp,” he complained to Judge Harlin, “to back down and spoil all the fun, but it’s no more than you might expect from a man that wears a stove-pipe.” Harry Gillam was the only man in Las Plumas who wished, or dared to wear a silk hat, and his taste in the matter of headgear gave constant edge to Ellhorn’s feeling of contempt and aversion. “I’m blamed sorry for it,” Nick went on, “for I sure reckon half the kids in town would have been shyin’ rocks at that plug before the trial was over.”

“I guess he was buffaloed,” he said later, as he finished giving an account of the affair to Emerson Mead. “It was the meanest sort of a backdown you ever saw, but it just showed the fellow’s gait. A man with no more grit than that had better go back east, where he can wear a stove-pipe hat without lookin’ like a fool, which he sure is.”

“What made you so determined to have the thing, Nick?” Mead asked, examining the braid.

Nick gave a twist to the ends of his mustache and looked contemplatively at the ceiling. “Well,” he said slowly, and there were signs of the Irish roll in his voice, “it was my scalp. I took it, first, and then I was after payin’ for it. Sure and I wanted it, Emerson, to remind me not to mix my drinks again. It’s my pledge to take whisky straight and beer the next day. And I sure reckon whenever I look at it I’ll say to myself, ‘Nick, you’ve been a blooming, blasted, balky, blithering, bildaverous idiot once too often. Don’t you do it again.’”

Notwithstanding his feeling about it, Ellhorn went away and forgot the earnest of his future good behavior. Emerson smiled that evening as he saw it trailing its snaky length over the back of a chair and stuffed it in the side pocket of his coat, thinking he would give it to Ellhorn the next time his friend should come to the jail.

Judge Harlin thought Emerson Mead unaccountably despondent about the probable outcome of his trial, and at times even indifferent to his fate. He wondered much why this man, formerly of such buoyant and determined nature, should suddenly collapse, in this weak-kneed fashion, lose all confidence in himself, and seem to care so little what happened to him. The lawyer finally decided that it was all on account of his client's honesty and uprightness of character, which would not allow him, being guilty, to make an effort to prove that he was not, and he lived in daily expectation of an order from Mead to change his plea to guilty. The time was drawing near for the opening of the case when Judge Harlin one day hurried excitedly to the jail for a conference with Mead.

"Emerson," he said, "some member of the last grand jury has been leaking, and it has come to my ears that testimony was given there by some one who declared he saw you kill Whittaker. And I've just found out that the other side has got a witness, presumably the same one, who will swear to the same thing."

Mead's face set into a grim defiance that rejoiced Harlin more than anything that had happened since his client's imprisonment, as he answered:

"I've been expecting this. Who is it and what's his testimony?"

"I haven't been able to learn any details about it—merely that he will swear he saw you kill Whittaker. I'm not positive who the man is, but I feel reasonably sure I've spotted him. I think he is a Mexican, a red-headed Mexican, called Antone Colorow."

Mead nodded. "I think likely," he said, and then he told Judge Harlin how Antone had tried to lasso him and of the angry man's threats of revenge for his broken wrists. "I've expected all along," he added, "that they'd come out with some such lay as that. I don't see how we can buck against it," he went on, despondently, "for I can't prove an alibi. Unless you can break down his testimony we might as well give up."

"I guess there won't be any difficulty about that," said Harlin assuringly. "What you've just told me will be a very important matter, and if I can keep Mexicans off the jury it won't take much to convince Americans that he is lying, just because he is a Mexican."

After Judge Harlin went away Mead sat on the edge of his bed, his elbows on his knees, his chin in his hands, and his broad shoulders rounded into an attitude of deep dejection.

“What is the use?” his thoughts ran. “They are bound to get me sooner or later, and it might just as well be now as any time. It won’t make any difference whether they clear me or convict me. She will believe me guilty anyway, because her father and all her friends will say so.” He rose and began pacing the room and his thoughts turned persistently to Marguerite Delarue. Since he had heard the rumor of her approaching marriage to Wellesly he had tried not to let his thoughts rest upon her, but sometimes the rush of his scanty memories would not be forbidden.

Again he recalled the day when he first saw her, as she stood with her sick baby brother in her arms. She was so young, so blooming, so fair, that her anxious face and troubled eyes seemed all the more appealing. He remembered that he had looked at her a moment before he could speak, and in that moment love smote his heart. He had wished to see her father and she had laid the sick child on a couch while she left the room. The little one had fretted and he had sat down beside it and shown it his watch and his revolver, and it had put out its hands to him, and when Marguerite came back she had found the big, tall, broad-shouldered man cradling the sick child in his arms. He halted in his moody pacing of the cell and a sudden, shivering thrill shot through his whole big body as he saw again the look of pleasure and of trustful admiration which had lighted her face and shone in her dark blue eyes. The child had clung to him and, pleased, he had asked if he might not take it in his arms for a short ride on his horse. And after that, whenever he had passed the Delarue house alone, he had tried to see the little boy, and had tried still more, in roundabout ways, to bring the child’s sister outside the house, where he might see her and hear her voice. Four times he had done that, and once he had seen her in her father’s store and had held a few minutes’ conversation with her. He remembered every word she had said. He repeated them all to himself, and went over again every least incident of the times he had stopped his horse at her gate and had taken the laughing child from her arms and they had looked at each other and he had tried to say something—anything, and then had ridden away.

When the meager little memories were all done he sat down on his bed again and felt that nothing mattered, since she was to marry Albert Wellesly and would surely believe him guilty of all that was charged against him. He felt no jealousy of her chosen husband, and no anger toward Wellesly because he had won her. He was conscious only of a vague wonder that any man had dared ask Marguerite Delarue to be his wife.

On Saturday of the first week in October Judge Harlin received a private dispatch from Santa Fe saying that the supreme court had decided the shrievalty contest in favor of Joe Davis, the Democratic candidate. At once the threatened storm began to break. By noon Main street was again divided into two opposing camps. Every rifle, revolver and shot-gun in the town that was not carried on some man's person was put within easy reach of ready hands. Shops and offices, stores and gardens were deserted, and men hurried to the center of the town, where they drifted along the sidewalk or stood in doorways in excited groups, each side anxiously and angrily on the alert for some open act of hostility from the other. The Republicans said they had not received official notice of the decision of the court, and that they would not surrender the office until it should reach them. The Democrats demanded that it be given up at once and accused the other side of secreting the court order with the intention of holding the office through Emerson Mead's trial. The district court was to convene at Las Plumas on the following Monday. Mead's case was the first on the docket.

Men who were next door neighbors, or friends of long standing, passed each other with scowls or averted faces, if they were members of the opposing parties. Mrs. John Daniels was planning to give a swell breakfast to a dozen chosen friends early the next week, the first appearance of that form of entertainment in Las Plumas society, and she was delightedly pluming herself over the talk the function would be sure to create and the envious admiration her friends would feel because she had introduced something new. She had talked the matter over with her dearest friend, Mrs. Judge Harlin, whom she had sworn to secrecy, and she was on her way to the post-office to mail her invitations when she saw that the threatened storm was breaking. Her glance swept up Main street on one side and down on the other, and she turned about and hurried home to substitute in her list of guests for those whose sympathies were Democratic, others whose masculine affiliations were Republican.

Hurried messages were sent out to mines and cattle ranches, and in the afternoon fighting men of both parties began to come in from the country. A procession of horsemen poured into the town, bronzed and grim-faced men, each with a roll of blankets behind him, a revolver at his side, a rifle swung to his saddle, or a shot-gun across its pommel. They loped about the town, sometimes surrounding the court-house, angrily discussing whether or not the clerk of the court was probably hiding the official order, and sometimes lining the two sides of Main street, as if they were two opposing companies of cavalry ready to join battle. Among the Republican forces Judge Harlin saw a red-whiskered Mexican who, he learned, was Antone Colorow. The man's broken wrists had healed, but they had lost all their suppleness, and he could never throw the lariat again. He could shoot as well as ever though, and not a day had passed since that morning at the round-up when he had not sworn to himself that Emerson Mead should die by his hand. He hated Mead with all the vengefulness and fierceness of his race. His mind held but one idea, to work upon the man who had ruined his occupation the crudest possible revenge, in whatever way he could compass it. He had allied himself with the Republican forces only because they were opposed to his enemy, and he hoped that in the impending clash he would find opportunity to carry out his purpose.

CHAPTER XXI

On that same Saturday Marguerite Delarue received a letter from Albert Wellesly saying he would be in Las Plumas the following Tuesday, when he hoped he would hear from her own lips the answer for which he had been waiting. She was no nearer a decision than she had been weeks before, and in her perplexity she at last decided that she must ask her father's advice. But he was so absorbed in the factional feud that she could scarcely catch sight of him. In the late afternoon of Sunday she took little Paul and walked to the mesa east of the town, toward the Hermosa mountains. For the hundredth time she debated the matter, for the hundredth time she told herself that he loved her and that she loved him, that it would please her father, and that there was no reason why she should not marry him. And for the hundredth time her misgivings held her back and would not let her say conclusively that she would be Wellesly's wife. Then she would think that her hesitancy was because she really preferred not to marry any one, and that she would always feel the same doubts.

She was so absorbed in her own thoughts that she did not notice the unusual abstraction of the child. With one chubby fist grasping her forefinger and the other trailing, head downward, a big yellow chrysanthemum, he trudged silently by her side, his red fez making a spot of bright color against her white dress. He was wondering why he had no mamma. Many times he had talked the matter over with Marguerite, but she had never been able to explain it to his entire satisfaction. He accepted her statements when she made them, but as they did not seem to him to justify the fact, she had to make them all over again the next time he thought of the subject. That day he had visited a little playmate who had both a big sister and a mamma, and as he walked across the mesa with Marguerite his small brain was busy with the problem and his childish heart was full of longing. He lifted his serious, puzzled face, with its big, blue, childishly earnest eyes to his sister, who was as absorbed in her problem as was he in his.

"Say, Daisy, why haven't I got a mamma, just like Janey?"

“Darling, our mamma, yours and mine, has gone to Heaven.”

“What did she go there for?”

“Because God wanted her to go there and live with Him.”

“Did God take her to Heaven?”

“Yes, dear.”

“Well, it was awful mean for Him to do that.”

“Oh, my darling! My little Bye-Bye mustn’t say such things! Everything God does is right. Poor mamma was so ill she could not stay with us any longer, and God took her to Heaven to make her well.”

“Is she ill in Heaven?”

“No, dearie. She is well and happy in Heaven, and so is every one who goes there.”

“When I go to Heaven shall I see my mamma?”

“Yes, dear.”

The child was silent for a few moments and Marguerite turned again to her own thoughts. She scarcely heard him when he spoke again:

“Heaven is up in the sky, ain’t it, Daisy?”

His eyes were caught by the sunset glow on the Hermosa mountains and he did not press her for confirmation of his idea. The swelling flanks and the towers and pinnacles and castellated crags of the rugged Hermosa range were glowing and flaming with the tenderest, deepest pink, as though the living granite had been dyed in the blood of crimson roses. The eastern sky, vivid with seashell tints, hovered so low that the topmost crags seemed to support its glowing colors. It was no wonder that the child’s mind, already awed and made receptive by his thoughts of Heaven, was at once filled with the idea that its gates had been opened before him. He dropped his sister’s finger and went forward a few steps, his eager eyes fixed on the glory that flamed in the east, and his heart beating wildly with the thought that if he ran on a little way he could go in and see his mother. Of course, she would

see him coming and she would run out to meet him and take him in her arms, just as Marguerite did when he came home from Janey's. Filled with the sudden, imperious impulse, he ran down the hill on which they were standing, across the dry, sandy bed of a watercourse, and up the hill on the other side. The miracle of beauty which dazzled him was of almost daily occurrence, but, baby that he was, he had never noticed it before.

Marguerite took Wellesly's letter from her pocket when Paul dropped her hand, and, turning to get the sunset light on the page, read it over and over. She knew Paul had run on ahead, but thought he was playing in the arroyo. She folded the letter slowly and put it in her pocket again and watched for a few moments the glowing banks of color that filled the western sky. Then she looked down the little hill and along the arroyo, calling, "Come, Paul! We must go home." But the sturdy little figure was nowhere in sight. At that moment he was crossing the second hill beyond. She ran up and down the arroyo calling, "Paul! Paul!" at the top of her voice. Gathering her white skirts in one hand, she rushed to the top of the hill and called again and again. But there was no reply. As she listened, straining forward, all the earth seemed strangely still. The silence struck back upon her heart suffocatingly. Over the crest of the next hill Paul heard her voice and hid behind a big, close clump of feathery mesquite, fearful lest she should find him and take him home again. Across the arroyo she ran, and up to the hill-top, where she stood and called and looked eagerly about. But he, intent on carrying out his plan of reaching the rosy, glowing gates of Heaven over there such a little way, crouched close behind the spreading bush and made no answer.

"He would not have gone so far," she thought, anxiously. "He must be back there in one of those arroyos."

She ran back and hurried farther up and down, first one and then the other gulch, calling the little one's name and straining her eyes through the dusk that had begun to gather for a glimpse of his flaxen curls and red cap. Paul, meanwhile, was scurrying across the hills as fast as his two fat, determined legs could carry him, straight toward the deepening, darkening glory upon the mountains.

At last Marguerite decided that he must have turned about, after he had run a few steps away from her, and gone home. Comforting herself with this hope, she hurried back, looking about her as she ran, to be sure that she did not pass him. Flushed and panting, she rushed through the house and asked the servant if little Bye-Bye had come home. The maid had not seen him, and the two women looked through the house and searched the yard and garden, stopping every moment to call the child. Then they ran out again upon the mesa, where Marguerite had walked with him, calling and circling about through the gathering dusk.

When it became quite dark Marguerite, thoroughly frightened, ran back to the town and hurried down Main street looking for her father. She met a clerk from his store on the way to tell her that he had just started to his alfalfa ranch, ten miles down the river, to bring in the men who were there at work, and would not return until early the next morning. The clerk quickly got together a half dozen young men and they set out for the mesa. The mother of one and the sister of another stayed with Marguerite, and by dint of constant persuasion kept her at home.

At daybreak the party returned, worn out by their long tramp. The moon had risen about ten o'clock, and by its brilliant light they had searched carefully the hills and arroyos within two or three miles of the town, but had not found a trace of the lost child. Main street had slept on its arms that night. Men of both parties, wrapped in their blankets, with revolvers and shot-guns and rifles under their hands, had dotted the court-house yard, had lain on the sidewalks near the jail, and had slept on the floors of shops and offices along both sides of Main street. Feeling had risen so high that a hasty word, or the unguarded movement of a hand toward a pistol butt, was likely to cause the beginning of the battle. The Democrats had telegraphed to Santa Fe and learned that the order of the court making Joe Davis sheriff, having left there by mail on Saturday, should have reached Las Plumas on Sunday. So they announced that they would wait until the arrival of the mail from the north on Monday at noon, and that if the Republicans did not then vacate the office they would march upon the court-house, seize the clerk of the court, take forcible possession of the jail, and install Joe Davis in the office of sheriff. They swore they would do all this before sunset Monday night if they had to soak the sand of the streets a foot deep in blood. The Republicans grimly said that they would not give up the office without the

official order of the court if they had to kill every Democrat in the town to hold it.

When the party searching for little Paul walked down Main street in the dim, early light, their footsteps breaking loudly upon the morning silence, men jumped to their feet with revolvers at ready, and set faces, crowned with disheveled hair, looked out from doorways whence came the click of cocking triggers. As the party was divided in its political affiliations, the young men knew that it would be safer for them to separate and for each to walk down Main street on that side to which his elders belonged. And so it happened that armed men, jumping from their blankets with revolvers drawn and cocked, and sternly commanding "halt," heard on both sides of the street at the same time how Pierre Delarue's little boy was lost on the mesa. Over and over again the young men told their story as they walked down the street, and group after group of armed and expectant men asked anxiously, "What's the matter?" "What's up?" "What's happened?" As they listened, the angry resolve in their faces softened into sympathy and concern, and everywhere there were low exclamations of "We must hunt him up!" "We must all turn out!"

When Pierre Delarue returned he found the feud forgotten. Men were running hither and thither getting horses and carriages ready, a long line of men and boys straggled out across the mesa, the Main street barrier, which had risen sky high when he left the town, had sunk to the middle of the earth, and men who, a few hours before, would have shot to kill, had either opened mouth to the other, rode or walked side by side, talking together of the lost child, as they hurried out to the hills to join in the search.

Mrs. John Daniels, as soon as she rose from the breakfast table, hastened to Mrs. Judge Harlin's house, and together they went to offer sympathy and neighborly kindness to Marguerite. Other women came, and their tear-dyed lids told how the mother-sympathy in their hearts had already opened the flood-gates of feeling. None of them thought it possible that the child could be found alive, though they talked encouragingly with Marguerite. But among themselves they said, "Poor girl! It will kill her!"

Marguerite wished to join the searchers on the mesa, but the women would not let her go. She had not slept during the night, and her usually blooming

face was pale and drawn and her eyes were wide and brilliant. When her father came she appealed to him.

“No, my dear, you can do no good out there. Stay here and be ready to take care of him when we bring him home. We shall find him, my dear, we shall find him. Keep up your courage and save all your strength for the time when it will be needed.”

So Marguerite stood on her veranda and watched the people stringing out to the hills, men and boys and even a few women, on foot, on horseback, in carts and carriages and wagons. She could not shut from her eyes the vision of her little Bye-Bye alone, far out on the hills in the darkness and cold—the little baby Bye-Bye, who, if he wakened in the night, had always to be taken into her own bed and cuddled in her arms before he could sleep again.

Judge Truman, of the district court, reached Las Plumas on Sunday and prepared to open the court and call the case of Emerson Mead on Monday morning. The sheriff and his deputy brought Mead out of the jail and started to conduct him to the court-house. Suddenly the bell of the Methodist church began to ring violently; a moment later that of the Catholic convent added its sharp tones, and the fire bell, over by the plaza, joined their clamor.

“What are those bells ringing for, John,” said Mead to Daniels.

“Haven’t you heard about Frenchy Delarue’s kid? He was lost on the mesa last night and the whole town is turning out to hunt him. They are ringing the bells to call out everybody that hasn’t gone already.”

Mead stopped short at the words “Frenchy Delarue’s kid.”

“Little Paul Delarue?” he asked in quick, sharp tones.

“Yes, the little fellow with the yellow curls.”

Without a word Mead turned sharply on his heel and ran with long strides down Main street toward Delarue’s house. The hands of the two men went instinctively to their revolvers, then their eyes met, and Daniels said:

“I guess we’d better not touch him, Jim.”

At that moment Judge Truman turned the corner, just from the court-house, and saw the escaping prisoner.

“Let him go, Mr. Sheriff,” he said. “His help will be valuable in the search. Better go yourself, and take as many with you as you can. I have adjourned court and told everybody to hurry out to the mesa, and I’m going myself as soon as I can get a horse.”

Emerson Mead ran at the top of his speed to the Delarue house, going there without thought of why he did it, feeling only that Marguerite was in deepest trouble, and all his mind filled with the idea that it would kill her if anything happened to the child. As he entered the gate Marguerite saw him and rushed down from the veranda.

“How did it happen?” he asked hastily.

“I took him out to walk with me on the mesa yesterday afternoon, and he slipped away from me and I could not find him.”

“Can you tell me where you saw him last?”

“Let me go with you! I can show you the very place!”

“Are you strong enough? Can you stand it? You are very pale!”

“Yes, yes! It will not be so hard as to stay here and wait! Let me go with you and help you!”

“Come, then, quick!”

She snatched her little white sunbonnet from a chair on the porch and they hurried off. Walking swiftly and silently they passed through the back streets of the town and across vacant lots and hurried over the rising plain until they came to the place in the rolling hills where the child had disappeared.

“It was here,” said Marguerite. “I am very sure of the place. He stood beside me and while I was thinking about—something that troubled me, and reading a letter, he slipped away. I was sure he had only run down the hill into the arroyo, but when I looked for him, and it seemed hardly more than a minute, I could not find him.”

Mead looked about for footprints, but the ground had been trampled by scores of feet since the night before, and tracks of shoes in many sizes covered the sandy earth. A few scattered searchers were near them, but the great mass of people could be seen in groups and bunches trailing off over the hills, most of them headed to the northeast. A shout came along the line and one of the men near by ran across the hills to learn its cause.

“What had he been talking about?” Mead asked.

“About Heaven and our mother, and if he could see her if he should go there.”

Mead looked about him, thinking there was no clue in that, when his glance rested upon the towering peaks of the Hermosa range, their western slopes soft in the violet shadows of the forenoon, their upreared crags seeming to lean against the very blue of the sky. A sudden memory from his own childish years flashed into his mind.

“I remember when I was a kid I used to think that if I could only get to the top of a mountain I could jump from it into the sky and see God. Children always think Heaven is in the sky, don’t they? Maybe he had some such idea. Let’s go straight toward the mountain and see if we can’t find his tracks.”

They walked down the hill, and in the sand in the bottom of the arroyo Mead’s quick eye caught a faint depression. He stopped Marguerite as she was about to step on it, and they knelt together to examine it. There were other footprints all about, but this one little track had escaped obliteration, and none had noticed it. Marguerite thought it was the size and shape of his shoe, and they went on over the hill, watching the ground closely, but seeing nothing more. A man came running back to tell them that a child’s footprints had been found near the mountain road, two miles or more to the northward. Marguerite wished to go there at once.

“Yes, certainly, go if you wish,” said Mead, “but I think I will stay here. If they have found his tracks there are plenty of people there to follow them, but I am anxious to follow this lead.”

Marguerite said she would stay with him, and the others hurried over the mesa to the mountain road, leaving the two alone. They walked slowly up

and down the hills toward the mountains, finding in one place a little curved depression, as if from the toe of the child's shoe. And presently, close behind a clump of bushes, they saw two little shoe-prints clearly defined in the sand. They were so close to the bush that they had escaped detection.

"Why, he must have hid here while I was looking for him!" Marguerite exclaimed, "for I came to the top of the hill, not more than twenty feet away! He must have hid behind this big bush and kept very still when he heard me calling, and that was how he got away from me!"

They went on over the hills, Mead keeping a fairly straight course toward the mountains, and constantly running his eye along the ground in front of them. Twice he saw faint depressions in the sand, partly obliterated, but enough to make him think they were on the right track. At last, in a wide, sandy arroyo, he paused before a track in the farther edge of the sand which turned up the canyon.

"What time was it when you lost him?" he asked.

"Just at sunset. I remember, because the red was on the mountains and the sky was very brilliant."

"Then by the time he had traveled this far it was dark and this wide sandy streak was lighter and brighter than the hill up there, covered with bushes. Come on!"

Mead rushed up the canyon, almost on the run, his eye catching a toe-print here, a heel track there, a sunken pebble in one spot, a crushed blade of grass beside the sand in another. The young men who had gone out first had been through this arroyo the night before, when the moonlight did not show the faint trail. Since sunrise the searching parties had gone farther toward the north, covering ground which the other party had left untouched, for every one believed, since the failure of the first expedition, that the child must have turned in that direction and tried to go home.

Mead and Marguerite followed the winding of the arroyo for a mile or more, and at last, where it headed and the ground was covered by a thicker growth of bushes, the little tracks climbed the hill. By that time they were well beyond the farthest point toward the mountains which any one else believed the child could have reached, and there were no footprints of

previous searchers to perplex their eyes or blot out such traces as they might find. From the top of the hill they saw the great body of men again scattering out over the mesa, and knew that they had been disappointed.

It was some minutes before Mead found any indication of the trail on the hill. Then the child seemed to have wandered about in the dark without purpose. For a long time he had kept to the top of the hill, going backward and forward and circling about, and at last following its crest toward the mountains.

“This must have been after the moon rose,” Mead said, “and while it was still so low that only the top of the hill was light.”

After a time the track turned down the hillside again, and the man and the girl followed, eagerly scanning the ground for the faint traces of the child’s feet. Slowly and carefully they walked along, sometimes able to follow the trail without difficulty for long distances, and again keeping it only by the greatest care. Marguerite noticed that Mead looked for it always toward the south, and asked him why he did it.

“Because the moon was considerably past the full and shone more from the south, and he would have kept his face toward it.”

Up and down the hills they went and along the arroyos, the trail sometimes heading straight for the mountains, and again turning toward the south, sometimes following the sandy watercourse beds and sometimes the hilltops, and again crossing them at varying angles. Once they lost it entirely, and searched over a wide area in vain, until Marguerite found a shred of brown linen hanging upon the thorny limb of a mesquite bush.

“This is from his dress!” she exclaimed.

About the same time Mead saw a number of dog-like tracks, all going in the same direction, and a sickening fear rose in him so great that he scarcely dared sweep with his eyes the arroyo into which they were descending. He did not let Marguerite see that he had noticed anything unusual, and she followed him silently, wondering how he could trace the trail so rapidly. For he knew that he need not stop to look for the child’s footprints. He could follow swiftly, almost on the run, the plain trail of the dog-like tracks down the sandy arroyo. Presently she saw him stoop and pick up something from

the ground. He turned and held out to her a large yellow chrysanthemum. She ran to him and seized it eagerly.

“Yes, I picked it as we were leaving home yesterday. He wanted it and I gave it to him. And he clung to it all this way! I wonder what made him drop it finally!”

Mead did not tell her of the fear that probably had relaxed the little muscles and sent the weary feet flying over the sand. He could think of no word of encouragement to say, for he felt no hope in his heart. But her face had lighted with the finding of the flower and she seemed to feel almost as though it were a call from the child. She pressed the yellow bloom to her face and thrust it into her bosom. Then she dropped upon her knees and hid her face in her hands. Mead felt that she was praying, and impulsively he took off his hat and bent his head, but his eyes still swept the arroyo in front of them. As they went on he noticed that the child’s tracks had been almost obliterated. Here and there a toe print, pressed deeply into the sand, showed that the little one had been running. At last Mead stopped beside a large flat stone. The child’s footprints showed plainly beside it. And the dog-like tracks ranged in a half circle six or eight feet distant.

“He must have sat down here to rest,” said Mead, hoping she would not notice the other tracks. But she saw them and looked at him with sudden fear in her eyes. A single word shaped itself upon her whitening lips.

“Coyotes?”

He nodded, saying, “I have been watching their tracks for the last mile.”

She threw her hands to her head with a despairing gesture. He moved toward her, filled with the yearning to take her in his arms and comfort her. But he remembered that she was to be married to Albert Wellesly and his hands dropped to his sides. He turned to examine the ground about the stone and saw in the sand many little holes and scratches. He noticed, too, some pebbles in front of the coyote tracks.

“Look!” he exclaimed. “The brave little man! He threw stones at the coyotes and kept them off! He must have had a stick, too, for see these little holes in the sand. He probably stood up and thrust the stick toward them.”

“Could he keep them off so that they would not attack him?”

“Yes, I think he could. As long as—as he kept moving they would only follow him.”

A little farther on they found many deep impressions of the child’s feet close together, as if he had been jumping, and after that the coyote tracks disappeared.

“He must have jumped at them and shouted and thrust out his stick,” said Mead, “and frightened them away. He might have done that after he found he could drive them back. And this was probably after daybreak, when they would be less likely to follow him. We can’t be so very far behind him now, for he would be tired and could not walk fast.”

“Come, hurry! Let us go on!” urged Marguerite,

He looked at her doubtfully. Her face was drawn and white under her sunbonnet, notwithstanding her long walk in the hot sun, and dark rings circled her eyes.

“Have you strength to go farther? Hadn’t you better wait here?”

“No, no! I can go on! Come, let’s hurry!” and she moved forward.

“Then lean on my arm. That will help you some.”

“No, thank you. I might keep you back. You go on and follow the trail as fast as you can and I will come behind. Don’t stop a minute for me.”

The trail left the arroyo and climbed the hill again and from its summit they could see the crowd of people far toward the north scattering out over the mesa and dotting the hills beyond the mountain road. A banner of smoke lay low against the northern horizon, while across the distance came the faint whistle of an approaching train. A vague remembrance came into Marguerite’s mind that there was to have been trouble in the town, a battle and bloodshed, after the passing of that train, and that she had been anxious on her father’s account. But that all seemed years ago, and the remembrance of it quickly passed.

The trail wandered on, keeping to the hilltops for some time. Mead told Marguerite that the boy had been cold in the early morning and had stayed on the hilltops because it was warmer there when the sun first rose. Then the trail went up and down again, sometimes over the hills and sometimes following the arroyos, sometimes turning on itself and going back, and sometimes circling about in long curves, facing by turns all points of the compass. Along arroyos, and on hillsides that were comparatively barren and sandy it was easily followed. At other times Mead lost it entirely and they would wander about, searching the ground closely. Once Marguerite found the faint track of the shoe when Mead was going away in another direction, and she called him back delightedly. For long distances he would spring rapidly along a trail so faint that it was only by close scrutiny she could see anything, his mind unconsciously marking the distance from one trace to where the next should be, his eye skimming the ground and his quick sight catching the crushed flower stem, the sunken pebble, the broken blade of grass, the tiny depression of heel or toe that marked the way.

The girl toiled on after him, sometimes falling far behind and again catching up and walking by his side. The slumbrous heat of the October day filled the clear, dry air and the sun shone fiercely, unveiled by a single vaporous cloud. Marguerite's mouth was dry and her throat was parched and all her body called for water. She thought of the thirst and the hunger that must be tormenting the little thing that had been wandering over those sun-flooded hills, with neither food nor drink nor sight of friendly face, for so many hours, and the agony of the thought seemed more than she could endure. Sharp, lightning-like pains cracked through her brain, and a dizzy, chaotic whirl filled her head. She put her hands to her forehead and stopped short on the hillside, the fear flying through her mind that she might be going mad. Mead saw her and came quickly to her side, alarmed by her white, tense face and the wild look of agony in her eyes. Her lips were pale and dry.

"Do not stop!" she pleaded. "It is nothing but a little headache. Don't stop a minute for me. Five minutes may mean the difference between life and death for my little boy. Hurry on, and I will come close behind you."

The fear of delaying her companion gave her fresh strength and she went on beside him. In the next arroyo they found a footprint deeply marked in a

bed of sand. As Mead glanced at it he saw some grains of sand fall down from the rim of the depression. He called Marguerite's attention to them.

"We must be close behind him," he said, "or that sand would not still be trembling on the edge like that."

"If we only had some water for him!" said Marguerite. "He will need it so badly."

Mead thought that the child would probably be beyond the need of human aid when they should find him, but he merely answered: "Yes, I ought to have thought of it, but we started so hurriedly." His only hope was that they might be in time to save the little worn body from the coyotes. The trail crossed the arroyo and essayed the hill. It was steep and had been too much for the child's ebbing strength. The track went down into the valley again and part way up the other side, then back and across the arroyo, and took the hill once more at a long slant. They lost the trail there and walked about for a few minutes, searching the ground closely for signs of the little feet. Marguerite went on to the top of the hill, and Mead, glancing toward her, saw her standing stiff and still as if turned to stone, holding a little forward her tightly clasped hands. She gave a low cry and he sprang to her side. A moving splotch of red showed above a clump of greasewood half way down the hill. Then a tottering little figure in a torn and ragged linen kilt moved slowly down the hillside, lifting its feet wearily, but still going on.

"Paul! Paul! My darling!" A ringing call broke from Marguerite's lips and she rushed down the hill at a pace which even Mead's running strides could barely equal. The boy heard her cry, turned, swayed on trembling legs, and fell to the ground. She snatched the child to her breast and pressed her face to his. He smiled faintly and wearily, and his parched, cracked lips whispered, "some drink!" and then his eyes closed and his head fell back upon her arm. The gladness in her face froze into terror and she turned to Mead in despairing appeal.

"Is he dead?" she whispered.

The man bent one ear to the child's heart.

"No, he is not dead, nor dying. His heart seems to be beating naturally, but feebly. If we only had some water!"

She held the child toward him, speaking rapidly: "Take him in your arms and run to where the others are. Doctor Long is there, and somebody will have water."

He looked at her anxiously. "But you?" he exclaimed.

She answered with a sharp insistence in her tones, leaning toward him, the words flying from her lips:

"Take him and run, run! Never mind me. I will come behind you. Go, go quickly!"

He cradled the unconscious child in his arms, running with long strides up hill and down, aiming a straight course toward the bulk of the searching party, which he could see from the hilltops, a multitude of moving dots straggling back into the hills where he and Marguerite had first followed the footprints. As he ran, his mind went back over the winding trail they had followed, and he calculated that the child had traveled not less than a dozen miles since sunset of the night before. He glanced over the hills at the crowds beyond and thought it must be some four or five miles to the nearest one. He saw a single horseman off to his left who seemed much nearer, but he decided it would be safer to run straight for the greater number, lest the man might turn about and ride away without seeing him. But the horseman presently came in his direction and soon Mead saw that the man was looking toward him. He waved his hat and halloed, and the man evidently saw and understood, for he spurred his horse into a gallop. As he came nearer Mead thought there was something familiar in his attitude and the outline of his body. But he did not look closely, for he was running through a growth of prickly pear cactus and needed to watch his footsteps. Scarcely more than two hundred yards separated them when the horseman leaned forward in his saddle, studying keenly the figure of the man on foot. A look of cruel, snarling triumph flashed over his face and a Spanish oath broke from his lips. He whipped out a revolver and leveled it at the running man with the child in his arms. Mead had been looking at the ground, choosing his course, and then had glanced at Paul's face for a moment. When he raised his eyes again he saw the shining muzzle of a revolver pointed at his breast and above it the savage, revengeful, triumphant face of Antone Colorow.

CHAPTER XXII

A bullet tore through the sleeve of Mead's coat, passing but a few inches from the head of the unconscious child. Another sang over his left shoulder, scorching his coat. His face, flushed with running, went white and grim with sudden passion, his lips closed in a narrow, straight line, and the yellow flame blazed in his wide and brilliant eyes. He shifted the child more to the left and turned sidewise toward his assailant, shielding the little one with his body. Antone Colorow, shouting curses and vile names, came dashing on, revolver in hand, to try again at closer quarters. Mead kept on, running sidewise, his set white face turned over his shoulder and his flashing eyes fixed on Antone's revolver hand. They were within a score of paces of each other when Mead suddenly jumped to one side and the bullet that was meant for his head whistled harmlessly through the air. "Three!" he thought, his eyes fixed steadily on Antone's right hand, as he still advanced toward the angry man. For he had noticed that the Mexican wore no cartridge belt. Again he sprang to one side as he saw Antone's finger stiffen upon the trigger, and the ball rattled through the bushes behind him. "Four!" he thought, veering toward the west. The Mexican turned his horse to follow, and Mead, with eyes fixed on the trigger, and noting, too, the slant of the barrel, knew that he had no need to dodge the next bullet. It went wild and tore up the ground some feet away. "Only one more!" he thought, as he halted with the sun at his back and shining straight in the Mexican's face. A sudden, quick leap and a loud yell startled Antone's horse, it jerked backward, and the last bullet went singing harmlessly through the air.

Antone's voice shot up into a falsetto, and shrieking vile curses he threw the empty revolver over his shoulder and leaped to the ground. Mead's watchful eye caught the gleam of a steel blade in the sunlight. He dropped his burden upon the ground, in the shade of a clump of greasewood, and sprang to one side. He caught Antone's wrist, as the knife made its downward turn, and held that hand high in the air for a moment while he looked into the Mexican's eyes. They shone with the angry glare of a wild beast.

“Antone,” he said, “I have found the lost child. It is still alive, and it may live if I can get it to the doctor at once. Will you let me go and finish this quarrel afterward?”

The Mexican’s only answer was a volley of curses. This man had broken his wrists and made useless that boasted skill with the lasso which had been the one pride of his life. For weeks and months anger and hatred and the determination to have revenge had blazed in his heart, and at sight of his enemy everything else went from his mind. He too had been ranging the hills since early morning searching for the boy, but so fierce was his rage that he could have jumped upon the little form and trampled its life out, if by so doing he could have killed Mead with a double death.

Antone’s wrists were stiff and his arms had not recovered their full strength, so that Mead had no difficulty in holding the dagger aloft. He waited a moment to see if some glimmer of human feeling would not strike through the man’s rage. Suddenly Antone began kicking his shins, and Mead understood that the sooner the struggle began the sooner it would be ended. He strove warily, with the coolness of a masterful determination, with a quick eye, a quick hand, and a quick brain. The Mexican fought with the insensate rage of an angered beast. They struggled first for the possession of the knife. Antone succeeded in releasing his wrist and sprang backward out of Mead’s reach. With a lunge straight at his enemy’s heart he came forward again, but Mead sprang quickly to one side and the Mexican barely saved himself from sprawling headlong on the ground. He faced about, his features distorted with anger, and, as he dashed forward, Mead caught his wrist again. There was a short, sharp struggle, and Mead sent the knife whirling down the hillside.

Then they closed in a hand to hand struggle. Antone bent his head and sent his teeth deep into Mead’s arm. Into the flesh they sank and met and with a slipping sound tore the solid muscle from its bed. Then there flamed in Emerson Mead’s heart that wild, white rage that mettles the nerves and steels the muscles of him who suffers that indignity. He felt the strength of a giant in his arms as he gripped the Mexican by both shoulders. In another minute Antone Colorow was flat upon the ground and Emerson Mead was sitting on his chest.

“You hound!” Mead exclaimed, “I ought to kill you, and by the living God, I would if I could do it decently! But I’m no Greaser, to use lariats and knives and boot-heels, and so you get off this time, you beast! If I had a rope,” he went on, “I’d tie you here!”

With his right hand he grasped Antone’s two wrists while he thrust his left into his pockets in search of something with which he could bind the fallen man. From the side pocket of his coat he drew a shiny, snaky black thing, and a satisfied “ah!” broke from his lips as he saw the Chinaman’s queue, which Nick Ellhorn had forgotten, and which he had put into that pocket two weeks before.

As he held it in his hands Marguerite Delarue came running over the hill. Her sunbonnet hung by its strings around her neck, her hair had come down and was streaming over her shoulders, her dress hung in rags and tatters, and she was panting and almost breathless. She had hurried on behind Mead as rapidly as she could walk, until she heard the first pistol shot. Then, fearful of trouble, she had run as fast as possible, stopping at nothing, her anxiety giving speed to her feet and endurance to her muscles.

The look of savage triumph on Mead’s face made her shrink back for an instant, awed and frightened. But her comprehension quickly took in what had happened and her heart rose in sympathetic exultation.

“You are just in time,” said Mead, “and I’m mighty glad. I’ll have to ask you to sit on this man’s chest and hold him down while I tie him fast to that mesquite.”

Marguerite sat down on the Mexican’s breast while Mead tied his wrists tightly together and then began fastening them to the stocky stem of the bush beside which he had fallen. Antone struggled and tried to throw her off, and Mead said:

“I think, Miss Delarue, you’d better put your thumbs on his windpipe and press a little, just to keep him from fighting too hard. We’ve got no time to waste on him.”

Marguerite gasped and hesitated, but her eye fell on little Paul’s unconscious figure, and she did as he asked her.

“There,” said Mead. “Now get up and jump quickly away.”

The prostrate Mexican struggled and rolled about, but he could not rise. Marguerite ran to the child and with her ear to his breast she called to Mead.

“His heart is beating! He is still alive!”

Mead caught Antone’s horse, and with Marguerite behind him and the child on one arm started off on the gallop. A long, straggling line of searchers stretched across the mesa, the nearest at least four miles away. As Mead came nearer he dropped the bridle on the horse’s neck and waved his hat and shouted again and again. At last he attracted the attention of the nearest ones, and two or three came running toward him. “Water! Water!” he called, at the top of his voice. They understood, and one ran back to the nearest horseman, who galloped off to a group of people still farther away.

Almost instantly the great throng, like a huge organism, animated by one thought, started off across the mesa toward the galloping horse, every atom in it moved by the single purpose to reach at once the new-found babe. Two horses in front of the hastening multitude ran at their topmost speed and distanced all the others. One carried Pierre Delarue and the other Doctor Long, and behind them came horsemen, carts, carriages and people on foot, all rushing to the one point.

The physician administered such restoratives as he had with him and brought the boy back to consciousness. Then, in the shade of a canopy phaeton, he carried the child home in his arms, while Marguerite and her father and Emerson Mead followed in another carriage, and all the crowd came pouring along after them.

But there were four men who stayed behind. Joe Davis and John Daniels and two others, all in perfect accord and friendliness, went back to find Antone Colorow. They had listened to Mead’s hastily told story of how Antone had attacked and delayed him. Daniels and Davis had looked at each other with a single significant glance and the one remark, “We’d better attend to him!” And then they had taken the other two men and started back.

They found Antone Colorow still struggling, rolling and kicking on the ground. His lips were stained with the blood his own teeth had drawn, and his red beard was flecked with foam. They untied him, and he sprang to his

feet and would have darted away, intent on his one purpose to kill the enemy who had escaped his vengeance, had not quick hands seized him. They tied his arms behind him and set him astride his own horse, and then, surrounding him, with their revolvers drawn, they rode away to the southwest, leaving Las Plumas far to their right. On to the river bottom they went, and into a *bosque* where the cottonwoods and the sycamores grew thickly and the willow underbrush was dense.

Long afterward a river ranchman, hunting a lost cow, penetrated the *bosque* and started back in sudden fright from a dangling, decaying body that hung from a sycamore limb.

Pierre Delarue insisted that Emerson Mead should come into his house for some wine and wait until they should know the worst or the best concerning little Paul. He sat alone in the room where first he had seen Marguerite, his anxiety about the child driven quite out of his mind by the thought that the long hours alone with her, out on the hills, their hearts and minds united in a common purpose, had come to an end, that she was soon to be another man's wife, and that he would never see her again. After a time the door opened and she came toward him, smiling gladly. The color had come back to her cheeks and her eyes were bright, though there were still dark rings around them, and her face told of the weariness her brain had not yet recognized. So absorbed had she been in giving the physician assistance and carrying out his directions that she had not thought of her appearance. Her white dress, which yesterday had been fresh and dainty, was in tatters and bedraggled strings, and her hair hung down her back in a disheveled mass. But she came shining down upon Mead's dark thoughts, fresh and beautiful and glorious beyond compare. He did not remember rising, but presently he knew that he was on his feet and that she was standing in front of him. He did not even hear her say, "Doctor Long says my little Bye-Bye will live and that there will probably be no serious results."

Then she saw that he was trembling from head to foot, shaking as do the leaves of a cottonwood tree in a west wind, and she drew back in alarm, looking at him anxiously.

"What is the—" she began, but the look in his eyes stopped her tongue and held her gaze, while she felt her breath come hard and her heart beat like a

triphammer. For an instant there was silence. Then Marguerite heard in a whisper so soft that it barely reached her ears, "I love you! I love you!" It was the loosing of the floods, and at once their arms were about each other. But in a second he remembered that she was to be another man's wife, and the thought came over him like the drawing down of the black cap over the head of a condemned man. With a fierce girding of his will he put both his hands upon her shoulders and drew back.

"I forgot! Forgive me!" The words came in a groan from his lips. "I forgot you're going to be his wife!"

"Whose?" said Marguerite, stepping back. For the instant she had forgotten there was any other man in the world.

"Why, Wellesly's!"

"Indeed, I am not!" That one second in Mead's embrace had settled Marguerite's long-vexed problem, and she felt her mind grow full of sudden wonder that it had ever troubled her. "He wanted me to marry him, but I'm not going to do it!"

Again their arms were about each other, their lips met, and her head was pillowed on his shoulder. Then he remembered the fate that was hanging over him, and he said bitterly:

"I've no right to ask you to be my wife, for in another week I'll probably be convicted of murder and sentenced to be hung, or sent to the penitentiary for life."

From the yard came the sound of Pierre Delarue's voice speaking to the crowd. She took Mead's hands in hers and swung a little away from him, looking into his face.

"I know that you didn't kill Will Whittaker!"

"How do you know it?" he answered, looking at her in loving surprise.

"Because he was shot in the back!"

She felt herself swept into the sudden storm of a masterful embrace, and with soft laughter yielded to his rapturous caresses. "And all this time,"

came to her ear in a whisper, “I’ve cared about it only because I thought you would believe me guilty even if I was cleared!

“But I’ve no proof of my innocence,” he added presently, “and I can’t ask your father’s consent, or allow your name to be mentioned with mine in the town’s gossip until my own is clear. I’ve no right even to ask you for another kiss until—”

She closed his lips with the kiss he would not ask for, and said:

“I would just as lief go out there now and say to all that crowd that I love you and know that you are innocent—”

“No, no!” he broke in upon her passionate protestation. “No one shall couple your name with mine and pity you while they are doing it! The penitentiary may be my fate, for the rest of my life, but its shadow shall not touch yours. If I can clear myself of this charge I will come and ask you to be my wife, and openly ask your father’s consent. If I can’t—” He turned and looked out of the window, but instead of the trees and flowers that were there, he saw a big, grim building with a high stone wall all around it and armed guards on the bastions. Outside they heard the crowd calling for him. She understood his feeling, and taking his face between her palms she kissed his lips, whispering, “We will wait,” and hurried from the room.

The crowd massed itself around the house, squatting on the sidewalk, perching on the fence, and filling the waiting vehicles, until Pierre came out and announced that the physician said little Paul would recover and would probably be none the worse for his experience. Everybody shouted “hurrah!” and somebody yelled, “three cheers for Frenchy!” The cheers were given, and Pierre stepped out on the sidewalk and began thanking them all for the kindness and sympathy they had shown and for their willing efforts to help him in his trouble. Then he launched into rhetorical praises of the country, the climate and the community, and from these turned to enthusiastic commendation of the man who had restored to him his lost child. “Among all the brave and noble men of this favored region,” he exclaimed, “there is none braver, nobler, greater-hearted, more chivalrous, than he who has this day proved himself worthy of all our praises—Emerson Mead!” The crowd cheered loudly and called for Mead.

Somebody shouted, "Three cheers for Emerson!" and the whole assemblage, Pierre leading, waved their hats and cheered again and again.

Then there arose a general cry for "Emerson Mead! Emerson Mead!" "Where is Emerson!" "Bring him out, Frenchy!" and Delarue rushed back into the house to find him. When Pierre entered the room which his daughter had just left it occurred to him, vaguely, that Mead looked unusually proud and happy, but as he himself, also, felt happy and proud, and filled with a genial glow over the success of his burst of oratory, it seemed quite proper that every one else should also be elated. So he thought nothing of it and hurried Mead out to the waiting crowd, where everybody, Democrats and Republicans alike, gathered about him and shook hands and made terse, complimentary remarks, until Jim Halliday presently took him away to his former quarters.

The crowd trailed off down Main street, and Judge Harlin and Colonel Whittaker stood treat together for the entire company, first at the White Horse and then at the Palmleaf saloon. The whistle of the train from the south, two hours late, broke in upon all this friendliness with a harsh reminder. Men suddenly recalled the fact that the mail from the north had come in long ago and had not brought the court order for which they had been waiting. The issues which had set the town at gun muzzles the day before again asserted themselves, and gradually the two factions began to mass, each on its own side of the street. In the midst of this the clerk of the court came out of the post-office with the missing order, which had gone astray in the mails and had just come in on the train from El Paso. Neither Joe Davis nor John Daniels could be found, and it was an hour later when they rode together into the town, coming back from the hanging of Antone Colorow.

Daniels read the official paper through and handed it to Davis. "Well, Joe," he said, "the court says you are sheriff now, and I reckon there's no goin' back of that. I hope the office will bring you better luck than it has me. Let's have a drink."

CHAPTER XXIII

Darkness so dense lay over the Fernandez plain that not the faintest outline of the rimming mountains penetrated its blackness. Like some palpable, suffocating substance it filled the plain and mounted far up into the air, even to the blue-black sky, whence a million gemming stars pierced it with their diamond lances.

Perched alone among the foothills of the Fernandez range, Juan Garcia's gray adobe house glimmered faintly through the darkness. Every sound about the house was hushed, and only the burro in the *jacal* down the hillside made known to the silent plain that he was still awake. The door into the *portal* opened softly, and with a quick, gliding, silent movement a dark figure came hastily out, closed the door, listened a moment, and then trod lightly across the *portal* and down to the road. There it paused, and Amada Garcia's face, anxious and wistful, framed in the black folds of her mantilla, looked back at the silent house. A deep, dry sob shook all her frame and she half turned back, as if irresolute. Then she drew from her breast a folded bit of paper, pressed it to her heart and her cheek, and kissed it again and again. She cast another regretful, longing look at the gray adobe house, and started off in the direction of Muletown. The faintly glimmering track of the sandy road opened slowly before her in the darkness, and, drawing her mantilla closely around her shoulders, she walked briskly along the dusty highway.

She kept the folded paper in her hand, pressing it to her lips and cheek with little cooing sounds of love. Once, standing still in the darkness and silence of the wide, black plain, she unfolded the letter and kissed the open sheet. It was too dark for her to see a single word upon the page, but she knew just where were "*mi esposa*," and "*mi querida*," and "*mi corazon*."

That afternoon, as she filled her *olla* at the spring, a young Mexican came riding by in brave attire of braided jacket and trousers and silver trimmed sombrero. She knew him well. Indeed, she had often bantered back his compliments and adroitly turned to merriment the sweet speeches he would

rather have had her take in earnest. He stopped and gave her the letter, which he had brought all the way from the post-office at Muletown solely for excuse to see her. She poised the *olla* full of water upon her head and he walked up the hill to the house by her side, and while he talked to her mother she slipped stealthily out and hid in the *jacal* beside the burro for a chance to read the letter. When she returned she showed so plainly that his compliments and sweet speeches were distasteful to her that he sulkily left the house and galloped home again. Then her mother reproved her, telling her that she must not discourage the young man, because he was plainly in earnest in his attentions and would make the best and richest husband of all the young *caballeros* who came to the house, and that when next she saw him she must make amends for her unkind treatment. Amada listened with terror and rebellion in her heart; and in her brain there sprang into life the purpose which she set out to execute as soon as her father and mother were asleep.

In her pocket she had four dollars which she had saved from the sale of eggs and goat's-milk cheeses at Muletown, and which she had been carefully keeping for the purpose of buying a new mantilla with a deep, deep silk fringe the next time they should go to Las Plumas to celebrate the fiesta of its patron saint. And under one arm she carried some *enchiladas* and *tamales*, left from that night's supper.

She trudged on through the darkness and silence of the night, and, although she walked briskly, the frosty air now and again sent a shiver of cold through her body and made her draw her mantilla more closely across her chest. The staccato yelping of coyotes down in the plain was answered by short, sharp barks from the hills, and all night long the beasts kept up a running exchange of howls from one to the other side of the road. Sometimes Amada heard the stealthy rustle of the herbage as they neared the highway, or saw the gleaming of their eyes in the darkness. But she knew their cowardly nature too well to be afraid, and when they came too near, a pebble from her hand sent them scurrying away.

Hour after hour she followed the faint glimmer of the dusty road, over the low, rolling hills, across the sloping upland, and down into the edge of the Fernandez plain, steadily leaving behind her the slowly measured miles. At last the east began to glow above the Fernandez mountains and against the

golden sky shone the thin, silver-white crescent of the old moon. The blackness of night gradually faded into the gray light of dawn, the sky blushed rosy red, the plain spread itself out before her, flooded with golden red sunlight, and still Amada held to the pace she had kept up all night long. Before her she saw columns of blue smoke rising from the chimneys of Muletown, and she thought longingly of the well in the plaza. But early though it was, she feared to be seen and questioned, for she knew many people in Muletown. So she turned from the main road, leaving the town far to her right, and struck across the trackless plain for the highway running toward the Hermosa mountains. When she reached it the sun was well up in the sky and she sat down on a hillock of sand to rest and eat her breakfast. She was very tired and it seemed good to lie still on the warm sand under the warm sun, so she rested there for a long time, thinking at first of the little gray adobe house far back in the foothills and wondering what the two old people would think and what they would do when they should find their one child gone and no trace left to tell them whither or why she had fled. These thoughts would bring the tears to her eyes, then she would open the letter and read it slowly over and over, and kiss the words of love, and, with soft little laughs and cooings, picture to herself her journey's end.

At last she saw a cloud of dust coming toward her from the direction of Muletown and, reminded of the possibility of being seen and questioned by some one she knew, she got up and hurried on her way. She knew her father and mother would not at once be alarmed over her departure. They would think she had risen early and gone up into the foothills to gather sweet herbs. Even after they should find that she was gone she knew that, in the leisurely fashion of the land and people of *mañana*, it might be two or three days before they would hitch the horses to the wagon and drive to Muletown to ask if any one there had seen her. But she did not wish to be discovered in her flight by any one whom she knew, and so she hurried on, drawing her mantilla across her face until only her two great black eyes peeped from its folds.

The wagon behind her clattered up and its sole occupant, a middle-aged American, asked her in Spanish if she would like to ride. She hesitated, instinctively fearing speech with any one, and glanced shyly at the Americano, who was smiling down good-naturedly at her from the wagon. The man added that if she were going far she had better ride, for the road

across the plain would soon be very hot. She considered that she did not know this man, that he would not know who she was, and thought how much more quickly she could cross that wide plain, so, with a grateful glance of her black eyes and a “*muchas gracias, señor,*” she climbed up and sat down in the seat beside him. He asked her how far she was going, and she answered, to the other side of the Hermosa mountains. He replied that he was going to his mining camp in the mountains, but that he would drive her to the top of the pass, as the road was rocky and steep up the mountain side. He had some water in a canteen, from which she drank gratefully, and as midday approached, he shared with her his luncheon of bread and cheese, while she divided with him what remained of her *tamales* and *enchiladas*.

The man’s kindly manner gave her confidence and the innate coquetry of her nature unconsciously began to assert itself. She talked gaily with him, her eyes by turns sparkled, invited and repelled, her mantilla almost covered her face one moment and the next was shaken gracefully down to her shoulders, leaving the coils of her hair shining black as a crow’s wing in the sun. Her little, rosebud mouth pouted and smiled, and altogether she was so sweet and dainty and graceful that the middle-aged, gray-bearded Americano began to beam upon her with admiring eyes and to hover over her with jerky, heavy attempts at gallantry. He asked her name, but she took sudden alarm and answered only with a shrug of her shoulders and a swooning glance of her great black eyes. He put his arm about her waist and stooped to kiss her smiling mouth. She struggled away from him with a terrified, appealing cry, “No, no, señor!” of whose meaning there could be no mistake.

The man looked at her with wide, surprised eyes and exclaimed, “Well, I’ll be damned!” and whipped up his horses. He glanced at her curiously several times and saw that she had edged away from him as far as she could and drawn the black folds of her mantilla well over her face. Presently he said, in her own tongue:

“Pardon me, señorita! I thought you would not care.”

Her only answer was a little shiver, and they drove on in silence up the winding mountain road to the top of the pass. There she climbed out of the

wagon and smiled back at the man with a grateful “*muchas, muchas gracias, señor,*” and started down the road toward Las Plumas. He looked after her contemplatively for a moment and said to himself:

“Well, I’ll be damned! But you never can tell how a Greaser’s going to break out next!” Then he turned his team about and drove whistling back to his own road.

Amada’s spirits rose as she looked down into the Rio Grande valley and saw the thread of glowing yellow foliage which marked the course of the *acequia* and the long, straggling procession of gray dots which she knew was the town of Las Plumas. She had been there twice with her father and mother when they had gone to join in the fiesta of Santa Guadalupe. They had a “*primo*” there, one of those distant relatives of whom the Mexicans keep track so faithfully, but she meant to stay far away from his house and to be seen neither by him nor any of his family. She was sure she could reach the town by nightfall. She began to wonder if the train on which she meant to go away would come after that and what she should do with herself all night if it did not. The two visits she had made to Las Plumas had been the only times in her life when she had seen a railroad train, and she asked herself if she would be afraid when she should get into the car and it should go tearing across the country so fast. Ah, it would not go fast enough for her, not nearly fast enough! And unconsciously she quickened her steps to keep pace with her thoughts.

Presently mighty pains began to rack her body. She groaned and clenched her fists until the blood stained her palms. But still she hurried on, urging herself with thoughts of her journey’s end, which began to loom distant and impossible through the haze of her suffering. The road wound over the rounded foothills, across the crest of one, down the hillside, and over another, and another, and another, until Amada thought their end would never come. She longed to lie down there in the dusty road and give herself up to the agony that held her body in its grip. But she so feared that she might yield to the temptation, and never rise again, that she ran down the hills and hurried her aching feet up the slopes until she panted for breath. An awful fear had come to terrify her soul. In its absorbing clutch she scarcely thought again of her wish to reach the railroad, and the love letter that had brought her comfort and sustained her strength was almost

forgotten. If she should die there alone, with no priest to listen to the story of the sins that oppressed her soul, to give her the sacrament and whisper the holy names in her ear—ah, she could not—any suffering could be endured better than so terrible a fate. So she gathered up her strength and strove to force a little more speed into her aching, blistered feet and to endure the pains that gripped and racked her body, hoping only that she might reach the town and find the priest before the end should come.

At last the gray, rolling waves of the foothills smoothed themselves out and gently merged into the plain that rose from the valley below. So near seemed the houses and the long streets of the town, with the yellow cottonwoods flaming through its heart, that Amada felt encouraged. She hurried limping down the road, her black dress gray with dust, her mantilla pulled awry, her eyes wide with the terror that filled her soul, and her face tense and drawn with the pain that tortured her body.

She reached the edge of the town and saw people in the houses along the street. But she met none and she could not make up her mind to stop long enough to turn aside to one of the houses and ask the way to the priest's dwelling. Presently she saw two children come hand in hand through a gateway. One of them, a tiny boy with flaxen curls about his neck and a thin white face, put his hands on the shoulders of his baby girl companion and kissed the face she lifted to his. As she went away she turned and threw kisses to him and he waved his hand to her and called out "bye-bye, bye-bye."

Amada staggered against the fence and stood there resting a moment while she smiled at the pretty scene, notwithstanding her suffering and anxiety. When the child turned back into the yard she moved away from the fence and tried to go on. But her knees trembled and gave way, a cry of pain broke from her lips, and she fell upon the sidewalk. For woman's greatest extremity was upon her and she could go no farther.

Marguerite Delarue stood upon the veranda steps smiling fondly upon little Paul as he came up the walk. She had noticed the strange young Mexican woman leaning against the fence, and when Amada fell she ran down to the gate to see if the stranger were ill. The look of awful agony in Amada's face and eyes frightened her, and quickly calling the maid, the two women took

her into the house and put her to bed. Then Marguerite sent in all haste for the physician, and herself removed the dusty shoes and stockings, bathed the swollen, blistered feet, took off the dust-filled garments and clothed the suffering girl in one of her own night robes.

All night long the physician worked, his face anxious and troubled, and in the early morning he gave up hope. For Amada lay in a stupor from which he thought there was no probability she would ever rouse. Suddenly she moaned, stretched out her hands and called, "My baby! Where is my baby?"

Marguerite knelt beside her and tried to tell her that the little one had never breathed, and Amada flung herself upon the girl's neck and gave herself up to such transports of grief that the physician sat down in dumb, amazed helplessness, sure that immediate collapse would cut short her cries of woe.

"But you can't tell a blessed thing about these Greasers," he said afterward to Marguerite. "I was sure she was going to die, and I reckon she would if she had not done the very thing that I thought would be certain to finish her anyway. Maybe I'll learn sometime that these Mexican women have got to let out their emotions or they would die of suppressed volcanoes."

When Marguerite had sympathized with and soothed and comforted her accidental guest Amada asked if she would send for the *padre*.

"I shall die very soon," she said, "and he must come at once. I thought I should die long before this, but God has let me live through all that time that I do not remember, when I was so nearly dead, only that the *padre* might come and make me ready for death."

After the priest had gone Marguerite went to the sick girl's room with a cup of gruel. Amada lay back on the pillow, her face gray with pallor against the background of her shining black hair. She kissed and fondled Marguerite's hand.

"You have been very good to me, señorita, but I shall have to trouble you one little time more, and then I shall be ready to die, and some one can ride over to the Fernandez mountains, beyond Muletown, and tell my father, Juan Garcia, that his daughter, Amada, is dead, and that she was very, very sorry to bring so much grief to him and her mother. You will tell him that, will you not, señorita? But you must not tell him about the *niño*, because

they do not know—ah, señorita, you must not think that I am a—a bad woman! See! Here is a letter that says *mi esposa*! But they might not believe it—and they must not know—you will not tell them, señorita!”

“But you are not going to die!” said Marguerite encouragingly. “You will soon be strong again.”

Amada shook her head. “No! I shall be dead before another morning comes. But now the *padre* says I must see *el Señor Don Emerson Mead*.”

The girl’s eyes caught a sudden, brief flicker which crossed Marguerite’s face, and, weak though she was, she raised herself on one elbow, her black hair streaming past her face and her eyes shining. She caught Marguerite’s hand, calling softly:

“Señorita! You love Don Emerson! Is it not so? I saw it in your face! Ah, señorita, it is good to love, is it not? Now you must bring Señor Mead to me here and I must tell him something that the *padre* says I must before I die. But you must not ask me what it is, for I can not tell you. I can not tell any one but Don Emerson.”

“He is in the court room now,” Marguerite replied, “and they would not let him leave. But his friend, Señor Ellhorn, is here, and I will see if I can find him.”

Marguerite met Nick Ellhorn coming out of John Daniel’s office with a broad smile curling his mustaches toward his eyes. He had been on a still hunt for his Chinese queue, and had run at once upon the certainty that something had happened which several people would like to keep quiet. And he had not only recovered the pig tail, but had found out what had been done and who had done it.

“Oh, Mr. Ellhorn!” exclaimed Marguerite, “I am so glad to find you! There is a Mexican girl at my house—she dropped down dreadfully ill at my gate last night and I took her in—who wants to see Mr. Mead. She says her father is Juan Garcia, and that he lives away beyond Muletown, in the Fernandez mountains. The *padre* confessed her this morning and now she says he told her that she must tell Emerson Mead something before she dies. I do not know what it is, and she says she can not tell any one except Mr. Mead. Will you come to the house and find out what she wants?”

Ellhorn's eyes opened wide, but he kept an impassive face. "Amada Garcia! What the—whatever is she here for, and how did she get here!"

"I think she must have walked, for her feet were blistered."

"Walked! Walked from old Garcia's ranch! Good God! Well, I sure reckon she must have something to say. I'll go right along and see her."

When Nick Ellhorn came out of the Delarue house he heard the whistle of the train from the north.

"I've just time to make it," he thought. "I can't stop to say a word to anybody about this business, or I'll miss this train. Well, I reckon I might just as well not say anything about it, anyway, as long as Tommy isn't here, until I get back—if I ever get back! They'll be only too glad to snake me in down there, if they get the chance. I'll just have to make a quick scoot across the line, and trust to the luck of the Irish army! If Tommy was only here we'd get this thing through, if we had to wade through hell and tote home the back doors. But I can't stop to wait for company. I'll try it alone, and I sure reckon I'll be too smart for 'em!"

CHAPTER XXIV

Emerson Mead's trial had been in progress nearly two weeks, but most of the time had been exhausted in impaneling a jury. Almost the entire male population of Las Plumas had filed between the opposing lawyers and, for one reason or another, had been excused. At last a jury had been chosen, not because its members were satisfactory to either side, but because both sides had exhausted their peremptory challenges and neither could find further objection which the judge would allow.

Thomson Tuttle arrived soon after Nick Ellhorn's departure, and was alternately puzzled and indignant over his absence. He felt sure that Nick had gone away on some expedition of importance and probably of danger. He was puzzled to think what it could possibly be, and indignant that Nick had thus risked himself without the aid and protection of his best friend.

"It was plumb ridiculous for him to go off alone like that," he complained to Judge Harlin. "He knew I'd be along in a day or two, and here he goes flirtin' the gravel off the road all alone as if I was some didn't-know-it-was-loaded kind of a fool who couldn't handle a gun! He'll sure get into some kind of trouble if I'm not with him!"

Interest in the trial was universal and intense, and during the sessions of the court, especially after the taking of testimony began, the streets of the town were well nigh deserted, while a large part of the population crowded the court room, swarmed in the corridors, and filled the windows. Those who could not get into the court-house gathered in groups on the outside and discussed the news and the rumors, which came in plentiful supply from its doors.

The prosecution had put on several witnesses, employees of the Fillmore Cattle Company, who had sworn to the ill-feeling between Mead and young Whittaker, and one who had been a witness of the quarrel between them, just previous to Whittaker's disappearance, when Mead had threatened the young man's life. Then Colonel Whittaker took the stand. It was rumored that after him would be given the testimony of an eye-witness of the murder,

and an even larger crowd than usual sought the court-house that afternoon. Two score of women sat comfortably in a space fitted with chairs at one end of the judge's desk. But the body of the room was jammed with a standing crowd of men, both Mexicans and Americans. Late comers crowded the corridor, and those who could get them mounted chairs outside the door. Inside the room a row of men swung their heels from each window seat, while outside another row stood on the ledges and looked over their heads.

Colonel Whittaker told the story of how his son had set out from the ranch to come to town and had never been seen alive again. He declared that the young man had no enemies except the prisoner and that there was no possible explanation of his disappearance except that he had been murdered. Then he told of the work of the searching party which he had taken to the White Sands, and of the body which they had found. He had identified this corpse as the body of his son, and on the sketched outline of a man's back he located the position of the three bullet holes by which the young man had come to his death. The shirt, with the initials worked in the collar, the ring, scarfpin, memorandum book and envelopes that had been taken from the body were placed before him and he identified them all as having belonged to his son. The crowded court room was still, with the silence of tense expectancy. Every neck was craned and every eye was fixed on these articles as one by one they were held up before him and then passed on to the judge's desk.

A slight disturbance at the door, as of people unwillingly moving back, fell upon the strained hush. Some one was forcing his way through the crowd. The witness leaned back in his chair, waiting for another question, and the lawyers consulted together for a moment. Then the prosecuting attorney asked the witness if he had positively identified the body as that of his missing son, William Whittaker.

"I did, sir," replied Colonel Whittaker. As the words left his lips his gaze fell past the attorney upon two men who had just struggled out of the crowd and into the free railed space in front of the judge's desk. His jaw fell, his pale face turned an ashen gray, his eyes opened wide, and, with trembling hands upon the arms of his chair, he unconsciously lifted himself to his feet. The lawyers, the judge, and the jury followed his gaze. Some sprang to their feet and some fell back in their chairs, their mouths open, but dumb with

amazement. All over the court room there was a shuffling of feet and a craning of necks, and a buzzing whisper went back from the foremost ranks.

Nick Ellhorn was there, tall and slender and smiling, with a happy, triumphant look overspreading his handsome face. By his side was a young man, dark-skinned, black-haired and black-mustached, who looked ashamed and self-conscious. Ellhorn tucked one hand into his arm and urged him to a quicker pace. Nick's eye sought Emerson Mead and as Mead's glance flashed from the stranger's face to his, Nick's lid dropped in a significant wink. Mead leaned back in his chair, a look of amused triumph on his face, as he watched the scene before him and waited for it to come to its conclusion.

Slowly Colonel Whittaker stepped forward, trembling, with a look upon his face that was almost fear. The crowd was pushing and pressing toward the center of interest, and everywhere wide eyes looked out from amazed, incredulous faces. Nick Ellhorn and his companion slowly edged their way between the tables and chairs, the young man advancing reluctantly, with downcast face, until they stood in front of Colonel Whittaker. Then he looked up, and exclaimed in a choking voice:

“Father! I am not dead!”

CHAPTER XXV

“It was Amada Garcia put me on,” said Nick Ellhorn to Emerson Mead and Tom Tuttle, as the three sat in Mead’s room, whither they went at once to hear Nick’s story. “One morning the first of this week Miss Delarue came runnin’ up to me on the street and said Amada was sick at her house and had walked all the way in from Garcia’s ranch and had something to tell that she wouldn’t say to anybody but Emerson. I went over to see if she would tell me what she wanted, and Emerson can thank her, and the *padre*, for gettin’ out of this scrape with the laugh on the other side. She thought she was goin’ to die and had unloaded her soul on to the *padre*, and he had ordered her to tell Emerson Mead what she had told him. I reckon the little witch wouldn’t have peeped about it to anybody if the *padre* hadn’t made her. She didn’t want to say a word to me, and at first she said she wouldn’t, but I finally made her understand she couldn’t see Emerson, and I swore by all the saints I could think of that I’d tell him and nobody else exactly what she said. So then she whispered in my ear that Señor Mead didn’t kill Señor Whittaker, and I inched her along until I got out of her that Will Whittaker wasn’t dead.

“That was all she meant to tell me, but I was bound to get all she knew. And I got it, but I want to tell you right now, boys, that I had a hell of a time gettin’ it. Every time I got a new thing out of her she’d make me get down on my knees and kiss the crucifix and swear by a dozen fresh saints that I wouldn’t tell anybody but Don Emerson, and that he wouldn’t tell anybody else, and that nothin’ should happen to Don Will because she had told it.

“She finally admitted that she and Will Whittaker had been secretly married away last spring and had never said a word about it to anybody. By that time I felt pretty sure that it was Mr. Will himself who had made a killin’, and I sprung my suspicion on her and threatened her with the *padre* and swore a lot of things by a whole heap of fresh saints, and she finally told me just what had happened.

“It seems that a cousin of hers—one of their everlastin’ *primos* in the sixty-third degree, I reckon—came up from down along the line somewheres, and

she was so glad to see him and he was so glad to see her that he hugged her and stooped over to kiss her—I reckon likely she'd been flirtin' her eyes and her shoulders at him—when bang! bang! bang! and he dropped dead at her feet and there was *esposo* Will in the door, mad with jealousy and ready to kill her too. Say, boys!" Nick stopped short, the stream of his narrative interrupted by a certain memory. "Say, that was what it was!" And he slapped his thigh with delight at having solved a mystery. "That's the reason she had such fantods when I wanted to kiss her that day last summer! It was just because she happened to remember this other time!"

The others smiled and chuckled and Mead said: "You know I told you then, Nick, it wasn't because she didn't like your looks!"

"Well, he was ready to kill her, too, but she threw herself on him and begged for her life and swore the man was her cousin and there was no harm, and presently Will's companion came runnin' in and they got the young man cooled off. He and the other man talked together a little while and then they put Will's clothes on the corpse and Will dressed himself in the dead man's and they took the dead body away in the wagon, and Amada washed up all the blood stains and never let a soul know what had happened, because Will told her if she did her father would sure have him arrested and hung. And he made her swear to be a faithful wife to him and promised to send for her as soon as he could.

"So she waited for word from him all summer, and the other day there came a letter, and the same day she found out that her mother meant for her to marry some young Mexican blood at Muletown. Then she made up her mind to go to Will, although he had told her he couldn't send for her for another month or two. That night she started off alone in the dark and walked to Muletown. Somebody gave her a ride across the plain and then she walked to Plumas from the Hermosa pass.

"I made up my mind right then and there that I'd yank that young scrub back to Plumas quicker'n hell could singe a cat, but she wouldn't tell me where he was. And maybe I didn't have a skin-your-teeth sort of a time gettin' it out of her! I just tell you that little girl is cute enough to take care of herself most anywhere, and don't you forget it! I coaxed her and she'd coax back, and I threatened her and she'd come back at me with all the things I'd sworn not to tell, and I wheedled her as Irish as the pigs in

Drogheda, and she'd lie back on the pillow and smile at me—and all the time just lookin' too sweet and pretty and sick—well, it was the hardest job I ever tackled. Boys, I sure reckon that little handful of a girl would have been too many for me and we'd have been palaverin' yet if she hadn't gone too weak to talk any more. I saw she was mighty near played out, and I just sicked myself on for all I was worth. I felt ornery enough to go off and get horned by a steer, but I reckoned I sure had to. She gave up at last, when she couldn't hold out any longer, and agreed to let me see the envelope her letter had come in if I'd kiss the crucifix and swear by a few more saints that I wouldn't let anybody touch Will, and swear over again on my knees everything I'd promised her before. I finally got through with all the religious doin's she could think of, and then I lit out for the train. I heard it comin' when I left French's house, and I made a run for it, which was why I didn't tell Judge Harlin where I was goin'. I couldn't stop to say a word to anybody without missin' the train and losin' a day.

“The only clue I had was that he was at Chihuahua, and at work at something, I didn't know what, and I thought likely he was *pasearing* around under an assumed name, which he was. I nosed around for two days, layin' low and keepin' mighty quiet, and you better guess I made a quick scoot through Juarez, too.”

The others grinned broadly and as Nick stopped to light a fresh cigar Tom said:

“I sure thought, Nick, that you'd never get back alive, for I knew you-all must have gone off some place you'd no business to go alone, and I'd have started off on a blind hunt for you in another day.”

“Well, I run across him by accident on the street one evening, and you ought to have seen him turn white and shaky when I stepped up and spoke to him. The boy's nerve's all gone, and you know he used to have the devil's own grit. You-all saw how he acted when I got him into the court room this afternoon. I reckon it takes all the sand out of a fellow to live in the dark and be all the time afraid something's goin' to drop, the way he's done all summer.

“‘Hullo, Will,’ says I, and then I took pity on him and showed my hand right from the start. But I'd sized him up all in a minute, and I reckoned that

would work best anyway. ‘I haven’t got any warrant for you,’ says I, ‘and I don’t mean to arrest you, and I’ve sworn to Amada Garcia not to let any harm happen to you, but I’ve got a proposition I want to talk over with you, if you’ll take me somewheres where we can be private.’ For I didn’t mean to let him out of my sight again until I got him into the court room at Plumas, and I didn’t, neither. He took me to his room and we chinned the thing over for two or three hours. He knew that everybody thought he was dead and that his body had been found, and that Emerson was being tried for his murder. But he’d started out on that lay and he was afraid to go back on it.

“He told me the whole story, on my promise to keep it secret. I told him I’d have to tell it to you-all, because Emerson had the right to know it, and Tommy would be sure to go makin’ some bad break if he didn’t know it, but that I’d give him my word of honor it shouldn’t go outside of us three. He was just gone plum’ crazy on Amada, and one day he was at her house when a justice of the peace from Muletown came along. The old folks were out in the fields and for a good, plump fee the justice married them right then and there. They had no witnesses, and it happened that the justice died in a week—it was old Crowby, from Muletown, you remember him. Will was deathly afraid his father would find it out and be bull roaring mad about it and hist him out of the country, and so he didn’t dare say a word about it, and he made Amada keep it secret, too. Well, the boy’s young, and I reckon that’s some excuse for him, but I’ll be everlastingly horn-spooned if I think his father’s got much reason to be proud of him.

“Then came the day when he stepped to the door and saw that Mexican *primo* hugging her, and he swore to me that all in a flash he was so wild with anger and jealousy he didn’t know what he was doin’ until he heard the report and the man dropped dead—that he didn’t remember drawin’ or takin’ aim, or anything but just wantin’ to kill. When he cooled down and realized what he had done he was in a regular panic. If he gave himself up the facts about the wedding would have to come out, in order to protect Amada, and then his father would roar, and probably cast him off if he wouldn’t give her up, and if he escaped conviction for the murder the *primo*’s relatives would be dead sure to get even with him. The only way he could see out of it was to hide the body and skip. The man who was with him—a cow-boy they had just hired who had come out of the mountains to make a stake so he could go prospectin’ again—Bill Frank was his name,

and I told him yes, I knew him—well, this man offered to see him out for the stake he'd expected to have to work some time for, and as Will had some money in his clothes they made the bargain and skipped. They changed the clothing and carried the body in their wagon up to the White Sands and buried it. It was them that held you up, Tom, that night last spring, and it was Will Whittaker, in the Mexican's duds, that you thought was a Mexican, who slunk around in the bushes and held the gun on you part of the time. They had the Mexican's body in the wagon and they didn't mean to allow any curiosity about it or about their business, and you'd have dropped dead in your tracks if you'd shown any."

"I knew that very well all the time I was with 'em," Tom answered quietly.

"When they got nearly to the railroad they burned the wagon and killed the horses, and Will scooted for Mexico, and he's been in Chihuahua ever since.

"‘My boy,’ I says to him, ‘you’ve got to come back with me.’ ‘I can’t,’ says he, ‘it will be my everlasting ruin if I do.’ ‘Face the music like a man,’ I said, ‘and get out of it what you can.’ I could see by his eyes that he was honin’ to come back, but he was almighty afraid, I reckon mostly on Amada’s account. He’s plum’ daft about her—and I don’t know as I blame him very much—and he told me he had planned to get her down there soon.

"‘How can I go back?’ says he. ‘I’ll be arrested and tried and probably convicted.’ ‘No, you won’t,’ says I. ‘You go back with me and get Emerson Mead out of this scrape and I’ll give you my word of honor you won’t be arrested.’ ‘But what can I say?’ he says. ‘How can I explain?’ ‘Hell!’ says I. ‘Explain nothin’! Tell your father as much or as little as you like, and if Colonel Whittaker walks down Main street with his head up and his mouth shut I reckon nobody’s goin’ to ask him any impudent questions. If you want any help yourself you’ve got Nick Ellhorn and Emerson Mead and Tommy Tuttle behind you, and if you think them three couldn’t send the devil himself sashayin’ down the Rio Grande you’d better not say so to yours truly. If you don’t want to stay there, take Amada and get out, and if your father won’t set you up somewheres we three will see that you have what you need. And whatever he does we’ll give you a thousand apiece anyway.’

“‘I wish I dared!’ says he. ‘Will Whittaker,’ says I, ‘Amada Garcia started out to come to you with only four dollars in her pocket, and she walked in the night nearly all the way to Plumas, and then she nearly died givin’ premature birth to your child, because she had tried to find you.’ With that he jumped up and grabbed my arm and could hardly speak, for I hadn’t told him about any of that business before.

“‘She isn’t dead,’ says I, ‘but you may thank Miss Delarue that she isn’t. The child was born dead. But do you think, after all that, you-all can do any less than go back and marry her again, with a priest and a ring and a white dress and all the rest of it? Do you think, after that, you-all can do any less than pretend you’re a man, and ever face yourself in the glass again without smashin’ it?’

“He dropped back in his chair with his face in his hands and cried, actually cried. But I sure reckon he was shook up pretty sudden by what I told him about Amada. I didn’t say any more, but I just made up my mind that if he hung back after that I’d tie my Chiny pig tail around his neck and yank him back to Plumas like a yellow dog at the end of a string.

“After a little while he said he’d go. I knew he meant it, but I was so almighty afraid he’d go back on it if he got thinkin’ about his father and skip on me that I didn’t let him out of my sight while he was awake, and at night I tied his arm fast to mine with my pig tail.

“Well, when we finally got to Plumas I just concluded Emerson’s neck wasn’t in danger for another hour, and that I’d better set that little girl straight the first thing I did, before the young chap got under his father’s thumb. I knew he meant all right and loved her like hell’s blazes, but he’s more afraid of his father than a self-respectin’ young man of his age ought to be. So we went straight to Miss Delarue’s. I tell you what, boys, that Miss Delarue is a regular royal flush. There ain’t another girl can stack up with her in the whole territory. I took Will Whittaker in and told her how matters stood, and you ought to have seen how pleased she was! If it had been her own weddin’ she couldn’t have been more interested, or looked happier. She was as glad to see Will as if he’d been her own brother, and all because she likes poor little Amada, and was glad to see her made happy, for of course it didn’t concern her any other way.”

A little smile moved Mead's lips as he heard this, and he turned his eyes away to hide the happy look he felt was in them, for he knew how deep were Marguerite's reasons to be glad the runaway had returned.

"While I went down-town to hunt up the *padre*," Nick went on, "she fixed Amada up with a white veil—you know these Mexican girls hardly think they've been married if they haven't had a white veil on—and a bunch of white flowers and a white sack that was all lace and ribbons over her night gown—for Amada's in bed yet, and had to be propped up on the pillows—and then she and I stood up with 'em and put our names down as witnesses. Then I marched the young man up to the court-house, and you-all know what happened there."

"I saw you talking with Colonel Whittaker," said Mead. "Did you tell him about the wedding?"

"You bet I did! I was plum' determined he should hear some straight talk about that, and if that little girl don't have a fair show with the Whittaker family it won't be my fault."

"What did you-all say to him?" Tom asked.

"Oh, I gave it to him straight from the shoulder! 'Colonel Whittaker,' I said, 'I've brought your son back to you alive, and I'm goin' to see to it that no harm comes to him because he's been away. He can tell you as much or as little as he likes, but I know the whole story, and I want to tell you right now that if anybody tries to get him into trouble about it they've got Nick Ellhorn and Tom Tuttle and Emerson Mead to buck against, and there's my hand on it. But you needn't thank me. You can thank a little Mexican girl whose name was Amada Garcia, but it's Amada Whittaker now. They have been married without any proof of it ever since last spring, but they are married tight and fast now, *padre* and witnesses and the whole thing, and I helped 'em to do it not an hour ago. Now, keep your temper, Colonel,' says I, 'and wait till I get through. I know you'll be disappointed and mad, but you'd better keep cool and make the best of it, for the girl's just as good as you are, if she is a Mexican, and she's a whole heap too good for your son. And she's just the cutest and prettiest little piece of calico you ever laid your eyes on, in the bargain. Now, don't try to step in and make a mess of this, Colonel,' I said, 'for you won't succeed if you do try, because the boy has

got Emerson and Tom and me to back him, and if you-all don't play a father's part toward him we will. If you should get him away from her you'd just simply send your son to the devil, and he'd be the devil's own brat if he let you do it.

“‘Now, Colonel,’ says I, ‘you-all better go and make a call on your new daughter-in-law, and find out from Will what she’s done to protect him and get to him, and if you don’t take her right into camp you’re not the gentleman and the judge of beauty I take you for. Besides, Colonel’ says I, ‘if Amada gets the right kind of treatment from you and your folks, my bargain with Will holds. If she don’t—well, I’ll keep my word, of course, but there’s likely to be consequences.’”

Nick’s narrative came to its end and for a few minutes the three men smoked in silence. Then Ellhorn turned half reluctantly to Mead:

“Say, Emerson, that was mighty queer about those three bullet holes. We sure thought nobody but you-all could do that.”

Mead smiled, thinking of Marguerite. “Even if he was shot in the back?” he said quietly.

Nick and Tom looked at each other with chagrin on their faces. “We-all never thought of that!” Tom exclaimed.

“And he did need killin’ so damn bad,” said Nick, “and you-all never said a word to deny it.”

“I don’t usually deny things I’m charged with,” said Mead.

“That’s so, Emerson, you don’t,” assented Tom.

“People are welcome to believe anything they like about me,” Mead went on, “and I don’t intend to belittle myself askin’ ’em not to. It’s all right, boys. I didn’t blame you for believin’ I’d done it But I did think you’d notice he’d been shot in the back. I’m goin’ out now. I’ll see you later.” And he hurried off down Main street to find Pierre Delarue.

CHAPTER XXVI

The February sunshine lay warm and bright and still over Las Plumas and the sky bent low and blue and cloudless above the town. Bright feathered birds were darting through the orchards and trilling their nesting songs, the peach tree buds were showing their pink noses, and the promise of spring was everywhere. In the big, wide hall of Pierre Delarue's house Marguerite stood beside the door of her room, talking with Emerson Mead, while he clumsily buttoned her gloves. She was dressed in a traveling gown, and as his glance wandered over her figure his eyes shone with admiration. Tall though he was and superb of physique, her head reached his shoulder and her figure matched his in its own strength and beauty.

"Tom and Nick look as forlorn as two infant orphans," he was saying to her. "You would think I had died instead of getting married. Nick has hinted that he means to go on a spree, and Tom says he'll lock him up in their room and sit on his chest for a week if he tries to make that kind of a break."

"Do you think he will?" Marguerite asked.

"Sit on him? Yes, I think likely. He's done it before, and it's about the only thing that will keep Nick sober when he has made up his mind that he wants to get drunk. It's a good plan to keep Nick sober, too, for when he gets drunk most anything's likely to happen."

"No, I meant, do you think he will get drunk?"

Emerson shrugged his shoulders. "I reckon that will depend on whether Tom goes to sleep or not."

"Where are they?"

"Out on the porch with Bye-Bye."

They went out on the veranda where Tom and Nick were standing, and Marguerite put a hand on the arm of each, looking up in their faces with

smiling earnestness. "I wonder," she said, "if I could ask you boys to do something for me while we are gone?"

They turned toward her eagerly. "You bet we'll do anything you-all want us to, Mrs.—Mrs.—" Nick tried to say "Mrs. Mead," choked a little, and ended with "Mrs. Emerson." And "Mrs. Emerson" she was to him and Tom from that time forth.

"What can we-all do?" asked Tom.

"Why, I've been hoping you wouldn't mind looking after Paul a little bit for me. I am so afraid he will miss me, because I've always been with him. The housekeeper will take good care of him, of course, but I know he will be lonely if there is nothing to distract his mind. And I couldn't be happy, even on my wedding journey, if I thought my little Bye-Bye was crying for me."

"Don't you worry, Mrs. Emerson," Nick exclaimed. "We'll give him so much fun he won't know you're gone. I'll bring my horse and take him to ride every day."

"We'll buy all the playthings in town for him."

"We'll tote him around all the time. It'll give us something to do and keep us out of mischief. He shan't shed a tear while you're gone."

"Here, Bye-Bye," called Tom, "come and ride on my shoulder." And mounted on that big, high pedestal the child was marched up and down the porch, laughing and clapping his hands. "We'll stay and amuse him while you-all go to the depot, so he won't cry after you."

"I'll make him some reins out of my Chiny pigtail," said Nick. "You-all go right along, Mrs. Emerson, and don't you worry once. He shan't whimper while you're gone, and he'll have such a good time he'll be sorry to see you come home."

Marguerite looked back from the carriage window as they drove away and saw little Paul holding fast to the middle of Nick's precious queue, laughing and shouting, while two tall figures attached to its ends pranced and kicked and cavorted up and down the veranda.

THE END

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